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Purchased by	: SATYA DEVELOPERS PRIVATE LIMITED
Description of Document	: Article (s) Agreement (in any other cases)
Property Description	: SHAREHOLDERS AGREEMENT
Consideration Price (Rs.)	: 0 (Zero)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATYA DEVELOPERS PRIVATE LIMITED
Stamp Duty Paid By	: SATYA DEVELOPERS PRIVATE LIMITED
Stamp Duty Amount (Rs.)	: 100 (Two Hundred only)



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MEMORANDUM OF AGREEMENT

DATED July 16, 2024

AMONGST

VISION SOFTTECH FACILITIES PRIVATE LIMITED
("Company")

AND

HORIZON INDUSTRIAL PARKS LIMITED
("Investor")

AND

DARSHITA LANDED PROPERTY LLP
("Darshita")

AND

SATTVA DEVELOPERS PRIVATE LIMITED
("SDPL")

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SHAREHOLDERS' AGREEMENT

This shareholders' agreement ("Agreement") is executed, at Bengaluru, on July 13, 2024 ("Execution Date") by and amongst:

1. **VISION SOFTECH FACILITIES PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 with permanent account number AACCVT271D and having its registered office at 4th Floor, Satva Windows 49, Ulsoor Road, Silver Cherry Gardens, Bengaluru - 560 042, Karnataka, India (hereinafter referred to as the "**Company**"), which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FIRST PART**;

AND

2. **INDREON INDUSTRIAL PARKS LIMITED**, a public company incorporated under the Companies Act, 1956 with permanent account number ANCCED46P and having its registered office at One World Centre, Unit No 1501B, Tower 1, 841, Jigjiga Tawla Mills, Serapet Bapat Marg, Marolli City, Marolli, Maharashtra, India - 400013 (hereinafter referred to as "**Investor**"), which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **SECOND PART**;

AND

3. **DARSHITA LANDED PROPERTY LLP**, a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 and having its registered office at 4th floor, Satva Windows, No. 3, Ulsoor Main Road, Bengaluru Karnataka 560042, India and permanent account number as ANMP090201 (hereinafter referred to as "**Darshita**"), which expression shall include its successors and permitted assigns) of the **THIRD PART**;

AND

4. **SATVA DEVELOPERS PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 with permanent account number ANCS2814C and having its registered office at 41, Maraji Sahakar Road, 6th Floor, Raven No. 604, Kulkarni - 700 001 (hereinafter referred to as "**SDPL**"), which expression shall include its successors and permitted assigns) of the **FOURTH PART**.

Each of Darshita and SDPL shall hereinafter be referred to individually as an "**Existing Shareholder**" and collectively as the "**Existing Shareholders**".

Each of the Investor, the Existing Shareholders and the Company shall hereinafter be referred to individually as a "**Party**" and collectively as the "**Parties**".

WHEREAS

- (A) The Company is engaged in the business of developing and operating industrial and logistics park, light assembly, light industry, cold storage or data centre project ("**Business**"); and is proposing to obtain allotment of the KIADB Land from the KIADB for this purpose.
- (B) The Existing Shareholders and Satva Road Estate Private Limited ("**SREPL**") were holders of 100% (one hundred per cent) of the share capital of the Company.
- (C) The Investor, Existing Shareholders, SREPL and Company have entered into a SSPA (as defined hereinafter), pursuant to which the Investor proposes to acquire 24,500 (Twenty Four Thousand Five Hundred) equity shares of the Company and subscribe to 5,68,89,717 (six crore

sixty eight lakh nine thousand seven hundred and twenty seven) CCIDs (as defined hereinafter). The shareholding pattern of the Company as on the Execution Date is set out in **SCHEDULE I**.

- (C) Now, the Parties are desirous of executing this Agreement to set out the agreement and relationship between the Parties and their rights and obligations as shareholders of the Company and other matters in connection therewith.

NOW THEREFORE, the Parties, intending to be legally bound, hereby agree as follows:

I. DEFINITIONS AND INTERPRETATION

1.1 Definitions

"Act" shall mean the Companies Act, 2013, and shall include any rules, regulations, notifications and circulars issued by the relevant Governmental Authority thereunder, as may be amended, modified, supplemented or re-enacted thereof from time to time;

"Adjourned Board Meeting" shall have the meaning set forth in Clause 4.2(i).

"Affiliate" shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise. If such Person is an individual, in addition to the aforementioned the term "Affiliate" shall include a relative of such individual. In relation to the Investor, in addition to the aforementioned, the term "Affiliate" shall include (i) the funds, collective investment schemes, trusts and partnerships directly and indirectly owned, managed, advised and/or Controlled by Blackstone Inc. or any of its Affiliates; and (ii) any investment trust in relation to which the Investor and/or its respective Affiliates hold at least 50% (fifty per cent) or more of: (A) the total outstanding units of such investment trust, and/or (B) the shareholding (on a fully diluted basis) of the investment manager of such investment trust, but shall exclude portfolio companies that are not Controlled by the Investor and/or its respective Affiliates. It is clarified that each of NDPL and Dardara shall be deemed to be an Affiliate of the other; however, the Investor shall not be considered an Affiliate of NDPL and Dardara and vice versa, for any purpose hereunder.

"Agreement" shall mean this shareholders' agreement, together with the Schedules, as may be amended, modified or supplemented from time to time, in accordance with its terms.

"Anti-Corruption Laws" shall mean any anti corruption and anti bribery Law, including the (Indian) Prevention of Corruption Act, 1988, the U.S. Foreign Corrupt Practices Act of 1977, and the United Kingdom Bribery Act of 2010, in each case as amended, to the extent applicable to such Party.

"Anti-Money Laundering Laws" shall mean the: (a) (Indian) Prevention of Money Laundering Act, 2002, as amended and any related or similar Law issued, administered or enforced by any Governmental Authority in India; and (b) all applicable financial record keeping and reporting requirements and prevention of money laundering statutes (including applicable rules and regulations thereunder) and all applicable rules, regulations or guidelines in which jurisdiction such Party is established, incorporated or otherwise conducts business or carries assets, and any related or similar rules, regulations or guidance administered or enforced by any Governmental Authority of such jurisdiction;

"Applicable Law" or "Law" shall mean any statute, law, regulation, ordinance, code, rule, judgment, notification, rule of common law, Order, decree, bye-law, Governmental Approval,

directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Governmental Authority having jurisdiction over the matter in question, whether in effect as of the Issuance Date or thereafter;

"Articles" shall mean the articles of association of the Company, as amended from time to time;

"Board" shall mean the board of directors of the Company in office at the relevant time, appointed in accordance with this Agreement, the Articles and applicable Law;

"Blackstone Non-Employee Persons" means a former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner or other beneficial owner of Investor or Blackstone Inc.; or any direct or indirect former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner of any of the foregoing;

"Blackstone Shareholder" shall mean any Shareholder that is an Affiliate of Blackstone Inc.;

"Business Day" shall mean any day (other than Saturday or Sunday) on which banks are generally open for operation in Mumbai, India and Bangalore, India;

"Call Option Agreement" shall mean the call option agreement dated July 18, 2026 executed by and amongst the Investor, Existing Shareholders, and the Company;

"CCBs" shall mean the compulsorily convertible debentures issued by the Company of face value INR 10 (Indian Rupees Ten) each, with the terms as set out in **SCHEDULE III**;

"Charter Documents" shall mean, with respect to a Person, the articles of association and memorandum of association, the certificate of incorporation or similar organizational or incorporation documents, of such Person;

"Closing" shall have the meaning ascribed to it under the ISPA;

"Closing Date" shall have the meaning ascribed to it under the ISPA;

"Code" or "IRC" shall mean the United States Internal Revenue Code of 1986, as amended;

"Consent" shall mean any approval, consent, ratification, waiver, notice or other authorization of or from or to any Third Party, including scheduled banks and financial institutions (other than a Governmental Approval), that may be required for (i) fulfilling the obligations under the Transaction Documents; or (ii) carrying on the Business in accordance with applicable Laws;

"Contract" shall mean, with respect to a Person, any agreement, contract, obligation, promise, undertaking, understanding, subcontract, lease, instrument, note, warranty, insurance policy, benefit plan or legally binding commitment or undertaking of any nature, whether express or implied, that is enforceable against and/or by such Person under applicable Laws;

"Control" (including with correlative meaning, the terms "Controlled by", "Controlling" and "under common Control with") shall mean, with respect to a Person, the acquisition or control, directly or indirectly, of more than 50% (fifty per cent) of the voting rights or of the issued share capital of such Person or the right to appoint and/or remove all or the majority of the members of the board of directors or other governing body of such Person, the power to direct or cause the direction of the management, to exercise significant influence on the management or policies of such Person, whether obtained directly or indirectly, and whether

obtained by ownership of share capital, the possession of voting rights, through Contract or otherwise;

"Deadlock" shall mean situations where:

- (a) a resolution is tabled at a duly convened meeting of the Board, and is not passed / approved because of equality of votes; or
- (b) a resolution is tabled at a duly convened General Meeting, but is not approved / passed on account of disagreement among the Investor and the Existing Shareholders;

"Director" shall mean a director of the Company on the Board;

"Encumbrance" shall mean any mortgage, pledge, non disposal undertaking, reserve, power of attorney (by whatever name called) charge, lien or other security interest securing any obligation of any Person or any other agreement or arrangement having a similar effect, option, pre-emptive right, advance claim, title retention agreement, conditional sale agreement, co-sale agreement, trust (other title exceptions of whatever nature) or other encumbrance of any kind, or a Contract to give or refrain from giving any of the foregoing, including any restriction imposed under applicable Laws or Contract on the Transferability of Shares or the operation of the business, and the term **"Encumbrance"** shall be construed accordingly;

"Equity Shares" shall mean the equity shares of the Company of face value of INR 10 (Indian Rupee Ten) each;

"Escrow Agreement" shall have the meaning ascribed to the term under the SSPA;

"Event of Default" shall mean either an Existing Shareholder Event of Default or an Investor Event of Default, as applicable;

"Existing Shareholder Director" shall have the meaning set forth in Clause 3.2;

"Existing Shareholder Event of Default" shall have the meaning set forth in Clause 30.1;

"General Meeting" shall mean a general meeting of the holders of Equity Shares of the Company;

"Group" shall mean the Company and its subsidiaries from time to time;

"Government Official" shall mean: (i) an officer, employee, agent or any person acting in an official capacity for or on behalf of a government, including its departments, agencies, instrumentalities, quasi- or partially government owned or controlled entities, or publicly privatised government entities; (ii) an officer or employee of an international organisation (e.g., World Bank, United Nations, Japan Bank for International Cooperation or International Monetary Fund); or (iii) an officer or employee of a political party or any party official, or a candidate for political office;

"Governmental Actions" shall have the meaning ascribed to the term under the SSPA;

"Governmental Approvals" shall have the meaning ascribed to the term under the SSPA;

"Governmental Authority" shall have the meaning ascribed to the term under the SSPA;

"Improper Payment" shall mean any bribe, improper rebate, payoff, kickback, or any other item of value provided with the intent to obtain or secure an undue business advantage;

"Information" shall have the meaning set forth in Clause 1.1.1;

"Investor Director" shall have the meaning set forth in Clause 3.2(i);

"Investor Event of Default" shall have the meaning set forth in Clause 13.3;

"KINDB Land" shall have the meaning ascribed to the term under the 55FA;

"KINDB" shall mean the Karnataka Industrial Areas Development Board;

"Material Adverse Effect" shall have the meaning ascribed to the term under the 55FA;

"Order" shall mean any order, injunction, judgment, decree, ruling, writ, assessment or award of a court, arbitration body or panel or other Governmental Authority;

"Original Board Meeting" shall have the meaning set forth in Clause 4.2(i);

"Person" shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, society, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under applicable Laws;

"Related Party", with respect to the Company, shall mean:

- (i) the Existing Shareholders, directors and shareholders of the Existing Shareholders, any Affiliates of any such directors and shareholders of the Existing Shareholders;
- (ii) any Person in, or of which, any of the Persons in paragraphs (i) above are directors, partners or proprietors or in which any of the above have any Control; or
- (iii) any Person constituting a Related Party under the Act;

"Relative" shall have the meaning as set forth in Section 2 (77) of the Act;

"Sanctions Laws" shall mean all the economic or financial sanctions, trade and import and export-related laws, regulations or embargoes implemented or enforced by the United States (including U.S. Treasury Department, U.S. Commerce Department and U.S. State Department), the European Union, His Majesty's Treasury, the United Nations, the Reserve Bank of India or any other Governmental Authority to whose jurisdiction a Party is subject;

"Sativa Non-Resident Persons" means, in relation to each of SCPL and Darshita, any direct or indirect Person, current or future shareholder, director, officer, employee, or Affiliate of SCPL and Darshita, as may be applicable;

"Share Capital" shall mean the share capital of the Company;

"Shareholders" shall mean the holders of Shares of the Company;

"Shares" shall mean shares in the Share Capital, whether equity or preference;

"SIPA" shall mean the share subscription and purchase agreement dated July 10, 2026 executed by and amongst the Investor, Existing Shareholders, Darshita and the Company;

"Tax" or collectively "Taxes" or "Taxation" includes any and all taxes, assessments, duties, impositions, liabilities and other governmental charges by any Governmental Authority, including, without limitation, taxes on income, capital gains, profits, service, sales, wealth, use

and occupation, and value added, ad valorem, transfer, franchise, withholding, payroll, employment, excise, stamp duty and property taxes, together with all interest, penalties and additions imposed with respect to such amounts by any Governmental Authority in any jurisdiction;

"Tax Compliance Costs" shall have the meaning set forth in Clause 8.1;

"Tax Matters Person" shall mean the Blackstone Shareholder, or any other person designated by the Blackstone Shareholder;

"Third Party" shall mean a Person who is not a Party to this Agreement;

"Transaction Documents" shall mean, collectively, this Agreement, SSPA, Interest Agreement, Call Option Agreement, and any other agreement or document designated in writing as a Transaction Document by the Investor on one hand, and any of SRIPL, SDPL or DSPL on the other hand;

"Transfer" (including, with correlative meaning, the terms "Transferred by" and "Transferability") shall mean to transfer, sell, assign, Encumber, place in trust (voluntarily or otherwise), exchange, gift or transfer by operation of Law or in any other way, dispose of, whether or not voluntarily;

"Treasury Regulations" shall mean the United States federal income tax regulations promulgated under the Code; and

"U.S." shall mean the United States of America.

1.2 Interpretation

- (i) Headings and bold typeface are only for convenience and shall be ignored for the purpose of interpretation;
- (ii) Unless the context of this Agreement otherwise requires:
 - (a) Words using the singular or plural number also include the plural or singular number, respectively;
 - (b) Words of any gender are deemed to include the other gender;
 - (c) Reference to the word "include" shall be construed without limitation;
 - (d) The terms "hereof", "herein", "hereby", "herein" and derivative or similar words refer to this entire Agreement or specified Clauses or Schedules of this Agreement, as the case may be;
 - (e) The terms "Clause" and "Schedule" refer to the specified Clause including their sub clauses or Schedule of this Agreement;
- (iii) Reference to any legislation or law or any policy issued by a Governmental Authority or to any provision thereof shall include reference to any such legislation, law or any policy as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to statutory provision shall include any subordinate legislation made from time to time under that provision;
- (iv) The Recitals and the Schedules shall constitute an integral part of this Agreement;

- (v) The index hereto and headings and titles herein are used for convenience of reference only and shall not affect the construction of this Agreement;
- (vi) Any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 above shall have the meaning assigned to it in such definition throughout this Agreement and/or the SSHA, unless the contrary is expressly stated or the contrary clearly appears from the context;
- (vii) If any provision in Clause 1 is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement;
- (viii) When any number of days is prescribed in any document, the same shall be reckoned exclusively of the first and inclusively of the last day unless the last day does not fall on a Business Day, in which case the last day shall be the next succeeding day that is a Business Day;
- (ix) Time is of the essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of the essence;
- (x) Notwithstanding anything to the contrary, any time limits specified in any provision of this Agreement, within which any Party is required to perform any obligations or complete any activity, shall be extended by such period as may be required to comply with any requirement of Law; provided that, the Party that is required to comply with such Law shall, upon informing the other Parties of such extension in writing, act in good faith and take all necessary steps to ensure compliance with such Law within the minimum time possible;
- (xi) Reference to any document includes an amendment or supplement to, or replacement or revision of, that document, but disregarding any amendment, supplement, replacement or revision made in breach of this Agreement;
- (xii) Reference to an "amendment" includes a supplement, modification, revision, replacement or re-enactment and "amended" is to be construed accordingly;
- (xiii) Any obligation, covenant, warranty, representation or undertaking in this Agreement that is expressed to be made, undertaken or given by any of the Existing Shareholders shall be deemed *mutatis mutandis* to be jointly and severally made, undertaken and given by each of the Existing Shareholders, and the Existing Shareholders shall be jointly and severally responsible in respect of the same;
- (xiv) No provision of this Agreement shall be interpreted in favour of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting thereof or by reason of the extent to which any such provision is inconsistent with any prior draft thereof. This Agreement has been negotiated and reviewed by the Parties and the Parties have participated jointly in the negotiation and drafting of this Agreement. Accordingly, in the event any ambiguity or a question of intent or interpretation arises, this Agreement will be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favouring or disfavoursing any Party by virtue of the authorship of any provisions of this Agreement. Additionally, no court or arbitrator construing this Agreement will construe it more stringently against one Party than against the other.

2. REPRESENTATIONS, WARRANTIES AND COVENANTS

- 2.1 Each of the Shareholders and the Company severally represents, warrants and covenants in favor of the other Parties that:
- (i) It is duly organized and validly existing under the applicable Laws of its jurisdiction of formation. It has the power and authority to execute, deliver and perform the obligations set out in this Agreement.
 - (ii) This Agreement has been duly and validly executed by it and constitutes legal, valid and binding obligations, enforceable against it in accordance with terms of this Agreement.
 - (iii) The execution, delivery and performance by it of this Agreement will not:
 - (a) Violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any liens, encumbrances or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event causing rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:
 - (A) its Charter Documents;
 - (B) any Contract to which it is a party;
 - (C) any Consent, Governmental Approval or Order to which it is a party or by which it is bound; or
 - (D) any applicable Law;
 - (b) Constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other applicable Law for the protection of debtors or creditors.
 - (iv) Except in relation to Governmental Actions (which are governed as per Clause 7.3 of the SPA),
 - (a) The Company conducts and will continue to conduct its operations in compliance with Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws. No funds derived from criminal activities or otherwise in violation of Anti-Money Laundering Laws shall be transferred to the Company.
 - (b) The Company has not made, shall not make, nor promise to make any Improper Payments: (x) to or for the use or benefit of any Government Official, (y) to any other person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be paid by such other Person, or will reimburse such other Person for payments previously made, to any Government Official; or (z) to any other Person or entity to obtain or keep business or to secure some other improper advantage, or otherwise;
 - (c) In connection with the Business, the Company shall immediately notify the Board of any actual or potential violation of Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by the Company.
 - (d) If any action (including but not limited to an investigation or inquiry) by or

before any Governmental Authority with respect to a violation or potential violation of any Anti-Corruption Laws or Anti-Money Laundering Laws, is taken or to the knowledge of Company, threatened by any Governmental Authority against the Company, the Company shall notify the Board and Investor immediately and shall reasonably cooperate with any audit or inquiry by the Investor in relation to same.

- (c) The Company shall not engage in any business activities, directly or indirectly, in violation of Sanctions Laws.

2.2 The Shareholders are not, and no portion of the assets used by the Shareholders to subscribe for, acquire or hold any Shares, CCIs or other interest bearing contracts or will contribute the assets of, a plan or similar program which provides for retirement income, a deferral of income in contemplation of retirement or payments to be made upon termination of employment, or entity whose underlying assets are considered to include the assets of any of the foregoing described in this Clause 2.2.

3. BOARD OF DIRECTORS

3.1 Subject to applicable Law, all decisions in respect of the business, assets and affairs of the Company, including the development and operations of the project on the KINSH Land, shall be taken only by the Board by way of resolutions passed at duly convened meetings of the Board (or by written resolutions, where permitted). Any delegation of authority shall be valid only to the extent expressly approved by the Board and subject to such limits as the Board may prescribe.

3.2 Board composition:

- (i) The Board shall consist of not more than 4 (four) Directors;
- (ii) The Investor shall be entitled to nominate 2 (two) Directors on the Board, each, as "Investor Director" and collectively "Investor Directors"; and
- (iii) The Existing Shareholders (acting collectively) shall, for so long as they hold at least 50% (fifty per cent) of the Share Capital, be entitled to nominate 2 (two) Directors to the Board ("Existing Shareholder Director").

3.3 Upon the Existing Shareholders ceasing to hold 50% (fifty per cent) of the Share Capital, the right of the Existing Shareholders to appoint the Existing Shareholder Director as per Clause 3.2(iii) and the corresponding rights under Clause 4 (Meetings of the Board) shall fall away. The Existing Shareholders (and their Affiliates who hold Shares, as applicable) shall diligently cooperate with the Company and the other Shareholders in effecting such Director removal and/or replacement (including the adoption of relevant resolutions to remove any Director appointed by it and approve the appointment of a Director of the Investor).

3.4 The chairman of the Board shall be an Investor Director, appointed by the Board, and each chairman shall not have a casting vote.

3.5 All appointments of the Directors shall take place at duly constituted meetings of the Board and the Shareholders. The Investor and the Existing Shareholders shall be entitled to appoint an alternate Director in accordance with the Act, who shall be deemed to be a Director at any Board meeting if the Investor Director / Existing Shareholder Director (as relevant) is not present. Any such appointment of alternate Directors shall take place as the first item of business at the Board meeting and the General Meeting following receipt by the Company of such nomination. Upon further appointment, an alternate Director shall be entitled to constitute

be present, vote, issue consent and sign written resolution(s) on behalf of the Investor Director/ Existing Shareholder Director (as applicable) for whom he/she is an alternate.

- 3.6 Any vacancy occurring with respect to the position of an Investor Director, by reason of death, disqualification, resignation, removal or inability to act, shall be filled only by another nominee specified by the Investor. Any vacancy by reason of death, disqualification, resignation, removal or inability to act as Existing Shareholder Director shall be filled only by the nominee of the Existing Shareholders.

- 3.7 The Company expressly agrees and shall take all action to ensure that:

- (i) No Director shall be identified as an 'officer in default' of the Company, or occupation of any premises used by the Company or employees under applicable Laws, unless applicable Law requires the Directors to be specifically identified in such roles. The Company shall ensure that at all times, the Company shall identify and appoint suitable persons other than the Directors as officers in default, occupation or employees, as the case may be, in order to ensure that no Director incurs any liability.
- (ii) Each Director shall be covered under a directors' and officers' insurance policy from a 'AAA' rated insurance company for such amount as may be acceptable to the Investor and the Existing Shareholders, for any liability, cost or expense (including legal expenses) accruing, incurred, suffered, and/or borne by each Director in its capacity as Director, which insurance shall be procured within 45 (forty five) days from the Issuance Date.
- (iii) The Articles shall provide for indemnification of the Directors, to the maximum extent permitted under applicable Laws against any losses, costs and expenses incurred, suffered or borne by each Director in (a) defending any proceedings, whether civil or criminal, against the Company, or (b) in his/her capacity as Director. The right to be indemnified under this Clause shall not be enforceable if the loss suffered by a Director is on account of his/her fraud or breach of fiduciary duties towards the Company.

4. MEETINGS OF THE BOARD

- 4.1 The Board shall hold regular meetings at the registered office of the Company or at such other place as is mutually acceptable to the Investor and the Existing Shareholders. The notice for meetings of the Board shall be sent to the Directors (with a copy to Shareholders) at least 7 (seven) days prior to the meeting together with an agenda setting out in reasonable detail the items of business proposed to be transacted thereat together with necessary background and other information and/or supporting documents pertaining thereto. The Existing Shareholder Director and the Investor Directors may, within 3 (three) days from the receipt of the aforementioned notice, seek clarifications on the agenda items or information provided or request additional information. The Company shall provide such clarifications and additional information within 5 (five) days of receipt of such request. If to such request for clarification or additional information is made it would be construed that the information and supporting documents are in order. A meeting of the Board may be called at shorter notice, with specific written consent of one Investor Director and one Existing Shareholder Director.

4.2 Quorum

- (i) The quorum for meeting of the Board shall be the presence of at least 2 (two) Investor Directors and 1 (one) Existing Shareholder Director.
- (ii) In the absence of a valid quorum at a meeting of the Board, duly convened (the "Original Board Meeting"), the Original Board Meeting shall be adjourned to the

same time and place, 7 (seven) days thereafter (such adjourned meeting being referred to as the "Adjourned Board Meeting"). The quorum of any such Adjourned Board Meeting, shall be 2 (two) Investor Directors, and all business transacted thereat shall be regarded as having been validly transacted.

- 4.3 Subject to the provisions of Clause 5 and Clause 4.2, a decision shall be said to have been made and/or a resolution passed at a meeting of the Board only if passed at a validly constituted meeting in terms of Clause 4.2, and such decisions are approved by, and the resolution is approved by, a majority of the Directors present and voting at such meeting of the Board.
- 4.4 Subject to applicable Law, Directors may participate in meetings of the Board or committees in any manner permitted under applicable Law, including by way of video-conference.
- 4.5 A written resolution circulated to all the Directors, whether in India or overseas, and signed by a majority of them as approved shall (subject to compliance with the relevant requirements of the Act) be as valid and effective as a resolution duly passed at a meeting of the Board, called and held in accordance with this Agreement and the Articles (provided that such written resolution has been circulated in draft form, together with the relevant papers, if any, to all the Directors and has been approved by both Investor Directors to the extent such resolution includes any decision in relation to a Minority Protection Matter and has been approved by majority Directors with respect to all other resolutions not being a Minority Protection Matter).
- 4.6 The Company shall reimburse reasonable and documented expenses of the Directors for costs incurred in attending meetings of the Board and committees and other meetings or events attended on behalf of the Company.

5. SHAREHOLDERS' MEETINGS

- 5.1 The Company shall hold at least 1 (one) General Meeting in any given calendar year. All General Meetings shall be governed by the Act and the Articles.
- 5.2 Shareholders agree that they shall, at all times, exercise their voting rights in accordance with the decisions of the Board validly taken at a meeting duly convened in accordance with this Agreement or through a circular resolution passed in accordance with Clause 4.3. In the event any decision of the Board requires ratification or approval of the Shareholders at a General Meeting, each Shareholder shall exercise its voting rights in a manner consistent with the decision of the Board.

5.3 Quorum

- (i) Subject to the remainder of this Clause 5.3, the quorum for a meeting of the Shareholders shall be the presence of at least 1 (one) representative of the Investor and 1 (one) representative of the Existing Shareholders.
- (ii) In the absence of a valid quorum at a meeting of the Shareholders, duly convened (the "Original Shareholder Meeting"), the meeting shall be adjourned to the same time and place 7 (seven) days thereafter (such adjourned meeting being referred to as the "First Adjourned Shareholder Meeting"). The quorum for such First Adjourned Shareholder Meeting shall be as required under applicable Law and also include 1 (one) representative of the Investor, and all business transacted thereat shall be regarded as having been validly transacted.
- (iii) For the purposes of this Agreement, a meeting shall be considered to be duly constituted if at least 7 (seven) days prior to the Original Shareholder Meeting or such shorter period as may be agreed by the Investor and the Existing Shareholders, a notice of a

meeting of the shareholders is issued and accompanied by an agenda setting out in reasonable detail, the items of business proposed to be transacted (together with necessary background and other information and/or supporting documents pertaining thereto). A Shareholder shall within 3 (three) days after the receipt of the aforementioned notice, seek clarification on the agenda items or information provided, if required. The Company shall provide such clarifications within 3 (three) days after receipt of the request for clarification. If no such request for clarification or additional information is made, it would be construed that the information and supporting documents are in order.

6. MINORITY PROTECTION MATTERS

- 6.1 Notwithstanding anything contained in this Agreement, in the event that any matter, decision, action or resolution relating to a matter set forth in **SCHEDULE II** ("Minority Protection Matters") is proposed to be considered or passed in respect of the Company (w) in a meeting of the Board; (x) by written resolution; (y) in a meeting of the Shareholders of the Company; or (z) in any other manner, then the Company (with respect to which a Minority Protection Matter is being considered) shall inform the Investor at least 7 (seven) days prior to the occurrence of any of the events set forth in **SCHEDULE II** to consider or pass such Minority Protection Matter. A Minority Protection Matter shall be approved only with the written consent of the Investor.

7. RESTRICTIONS ON TRANSFER OF SHARES

- 7.1 The Existing Shareholders shall not, until the Investor or its Affiliates cease to hold any Shares in the Company, Transfer their Shares in the Company to any Person or create an Encumbrance on their Shares (other than as contemplated under the Transaction Documents). The Investor shall not, for a period of 12 (twelve) months from the Execution Date ("Investor Lock-In Period"), Transfer its Shares in the Company to any Person (other than its Affiliate). During the Investor Lock-In Period: (i) if the Investor has Transferred Shares to an Affiliate then the Affiliate shall be bound by the terms of this Agreement as applicable to Investor; and (ii) if such Affiliate subsequently ceases to be an Affiliate of the Investor, then the Investor shall cause such Affiliate to forthwith Transfer such Shares to the Investor, and the Investor shall continue to be bound by the terms of this Agreement in respect of such Shares.
- 7.2 Any breach of this Clause 7 shall be considered to be a fundamental breach of this Agreement.
- 7.3 The Company shall not register any Transfer of Shares in violation of the provisions of this Agreement, and shall not recognize as a shareholder, nor accord any rights (whether relating to payment of dividend or voting) to the purported transferee of any Shares in violation of the provisions of this Agreement. Any Transfer of Shares in violation of the provisions of this Agreement shall be void ab initio and shall not be binding on the Existing Shareholders, the Investor or the Company.
- 7.4 In accordance with the terms of the SSFA, Existing Shareholders have agreed to place their Shares in escrow with the Escrow Agent. The Existing Shareholders agree that they shall not change the signature(s) to the escrow deposit accounts or provide any instructions to their depository participant to close the escrow deposit accounts or change the terms of use, without specific consent of the Escrow Agent and the Investor.
- 7.5 In the event the Company proposes to incur any financial indebtedness (including by way of debentures) from a bank or a financial institution, which requires the provision of security by the Shareholders, then each of the Shareholders shall bear restrictions with respect to creation of any Encumbrance, pledge or charge over the Shares held by them on a pro-rata basis in proportion to their respective shareholding in the Company. Further, it is agreed the Existing

Shareholders shall not be required to provide any corporate guarantee, personal guarantee or sponsor support in connection with any such financial indebtedness incurred or to be incurred by the Company.

8. ACCOUNTING AND TAX MATTERS

- 8.1 From the date of this Agreement, the Tax Matters Person shall coordinate the preparation of all accounting and Tax reporting related to the Company and the Group. The Tax Matters Person shall: (i) promptly notify the Company's Board of any notices that it receives, and (ii) timely inform the Company's Board of the status of all administrative and judicial proceedings in relation to U.S. federal income tax matters. The Tax Matters Person shall receive no compensation for its services. All Third Party costs and expenses incurred by the Company in relation to this Clause 8 or incurred by the Tax Matters Person in performing its duties in such (including legal and accounting fees and any out-of-pocket expenses) (any of the foregoing, "Tax Compliance Costs") shall be borne by the Company or its designees, except that any such Tax Compliance Costs incurred in respect of U.S. federal income tax matters, including pursuant to Clauses 8.2, 8.3, and 8.4 (but in the case of Clause 8.4 only insofar as any such elections are made for U.S. federal income tax purposes) shall be borne by the Investor or their designees, and the Investor shall reimburse the Company for any such costs and expenses incurred by such Persons. Nothing herein shall be construed to restrict the Company from engaging an accounting firm or other experts or consultants to assist the Tax Matters Person in discharging its duties hereunder, so long as the compensation paid by the Company under the Investor for such services is reasonable and provided that the Investor shall reimburse the Company if the Company incurs any costs in respect of such engagement that relate to U.S. federal income tax matters, including pursuant to Clauses 8.2, 8.3, and 8.4 (but in the case of Clause 8.4 only insofar as any such elections are made for U.S. federal income tax purposes).
- 8.2 The Investor has informed the Existing Shareholders, and the Parties have agreed, that the Company is to be treated as a partnership for U.S. federal income tax purposes. Subject to U.S. federal income tax purposes, the Tax Matters Person shall keep capital accounts for the Company and its Shareholders in accordance with Part I of Schedule IV. In addition, Part II of Schedule IV will also govern in respect of the tax matters addressed therein.
- 8.3 The Tax Matters Person is hereby authorized and empowered on behalf and in the name of the Company and each member of the Group to make any elections pursuant to Treasury Regulations Section 301.7701-3, and the Company shall provide to the Tax Matters Person any information and cooperation required to enable the Investor to do so. If any Governmental Approval is required to be obtained by the Company under the laws of India pursuant to the provisions of this Clause 8.3, then the Shareholders shall use their commercially reasonable efforts to provide requisite cooperation to the Company to enable it to obtain the same.
- 8.4 The Tax Matters Person is hereby authorized and empowered on behalf and in the name of the Company and each member of the Group, or on its own behalf and in its own name, or through agents, as may be appropriate, to make, in its sole discretion, any and all elections for U.S. federal, state, local and foreign tax matters, including any election to adjust the basis of property of the Company pursuant to Sections 701(b), 701(c) and 701(d) of the Code or comparable provisions of state, local or foreign law. If required, the Shareholders other than the Tax Matters Person shall cooperate with the Tax Matters Person in making of any such election.
- 8.5 Each Shareholder shall, upon request, provide to the Company or the Tax Matters Person such documentation and any other information on it and its direct or indirect owners as is required in order for the Company, any subsidiary of the Company or the Tax Matters Person to satisfy any applicable tax reporting or compliance requirements, including sections 1471 through 1474 of the IRC and any U.S. Treasury Regulations, forms, instructions or other guidance issued pursuant thereto, any agreements entered into pursuant to section 1471(b)(1) of the IRC, any

intergovernmental agreement entered into in connection with such sections of the DRC, any law implementing any such intergovernmental agreement and any legislation or regime which implements, or implements rules similar to, the Organisation for Economic Co-operation and Development's Common Reporting Standard.

- 8.6 The Existing Shareholders represent that, as of the date hereof, they are not subject to taxation under the laws of the United States of America. Therefore, the Investor confirms that any action taken by Investor or the Tax Matters Parties pursuant to Clauses 8.2, 8.3, and 8.4 (but in the case of Clause 8.4 only insofar as any such elections are made for U.S. federal income tax purposes) shall not, solely as a result of their application, subject the Existing Shareholders to taxation under any Law of the United States. So long as the Existing Shareholders are not subject to taxation under the laws of the United States of America, the Investor confirms that (i) none of the provisions of Clauses 8.2, 8.3, and 8.4 (but in the case of Clause 8.4 only insofar as any such elections are made for U.S. federal income tax purposes) are expected to affect the rights of the Existing Shareholders provided for elsewhere under this Agreement in a manner that would be materially adverse to the interest of the Existing Shareholders or have any Material Adverse Effect, (ii) neither the Existing Shareholders nor the Company will be treated as causing an Event of Default (including as a result of a Material Adverse Effect, if any) solely as a result of the application of Clauses 8.2, 8.3, and 8.4 (but in the case of Clause 8.4 only insofar as any such elections are made for U.S. federal income tax purposes) and (iii) in the event that the application of Clauses 8.2, 8.3, and 8.4 (but in the case of Clause 8.4 only insofar as any such elections are made for U.S. federal income tax purposes) conflict with the Laws of India, the Existing Shareholders and Company will be required to comply with the Laws of India to the extent of such conflict in respect of any of the provisions of the Law of the United States and such non-compliance shall not be an Event of Default of the Existing Shareholders or the Company.

9. FURTHER FUNDING

- 9.1 In the event the Company requires funds which it is unable to meet through internal resources, the Company shall issue a written notice to all the Shareholders setting out the quantum of funds required, the purpose for which such funds are required, terms of securities and/or loan and the proposed terms of such financing ("**Funding Notice**"). Each Shareholder shall be entitled to infuse such additional funds pro-rata to their respective shareholding in the Company as on the date of the Funding Notice, or may be required by the Company by subscribing to the securities or providing loan or investment set out in the Funding Notice. In the event that any Existing Shareholder fails or elects not to infuse all or any part of its pro-rata portion of the additional funds required pursuant to a Funding Notice (the amount of such undelivered portion being the "**Shortfall Amount**"), the Investor has the right (but not obligation) to infuse funds equal to the Shortfall Amount on the terms set out in the Funding Notice.
- 9.2 It is hereby clarified that the failure of the Existing Shareholders to infuse any amounts pursuant to a Funding Notice issued by the Company shall not be considered to be a default or a breach of Agreement by the Existing Shareholders.
- 9.3 It is hereby clarified that any infusion of funds by the Investor (including any infusion of the Shortfall Amount) pursuant to Clause 9.1 shall not impact the Option Consideration as agreed (and defined) under the Call Option Agreement.

10. EVENTS OF DEFAULT

- 10.1 The occurrence or subsistence of any of the following events shall be considered a "**Existing Shareholder Event of Default**":
- (i) Breach by the Existing Shareholders or the Company of the provisions of Clause 3

(Board of Directors), 4 (Meetings of the Board), 5 (Shareholders' Meetings), and 6 (Minority Protection Matters);

- (ii) Breach by the Existing Shareholders of the provisions of Clause 7 (Restrictions on Transfer of Shares);
- (iii) Occurrence of a Default;
- (iv) Revocation of any authorization or decisions of the Board or Shareholders, other than pursuant to duly convened meetings of the Board and Shareholders as per this Agreement;
- (v) Non-consummation of the transfer of Shares by the Existing Shareholders pursuant to a valid exercise of the Call Option (as defined under the Call Option Agreement) by the Investor in accordance with the terms of the Call Option Agreement, or any breach by the Existing Shareholders of their obligations under the Call Option Agreement in connection therewith;
- (vi) Initiation of any litigation or proceedings under the provisions of the Companies Act, 2013, by the Existing Shareholders against the Company, and/or the Investor (specifically in relation to the Company); or
- (vii) The commencement of any insolvency resolution process of any of the Existing Shareholders (which is not Elevation or vacation) under the Insolvency and Bankruptcy Code, 2016 and where the claim under the proceeding is for an amount of more than INR 1,00,00,000 (Indian Rupees Five Crores) which has not been set aside, dismissed or stayed within a period of 120 (one hundred and twenty) days of the commencement of the proceedings.

10.2 Upon the occurrence of an Existing Shareholder Event of Default, the Investor may, by a written notice (the "Default Notice"), require the Existing Shareholder to remedy the Existing Shareholder Event of Default within 30 (thirty) days of the Default Notice (the "Cure Period") to the satisfaction of the Investor. If an Existing Shareholder Event of Default remains unremedied after the expiry of the Cure Period or if such Existing Shareholder Event of Default is incapable of being remedied, the Investor may, at its sole discretion and option, exercise any or all of, or a combination of, the following remedies, without prejudice to the other rights that the Investor may have under this Agreement or Applicable Law:

- (i) **Reconstitution of the Board:** The Investor can appoint such number of Directors on the Board as it deems fit and also require the removal of all or any of the Existing Shareholder Directors from the Board. The Existing Shareholders shall cause the Existing Shareholder Directors to forthwith submit letters of resignation to the Company as may be required to give effect to this Clause 10.2(i) and the Company shall immediately accept their resignations and take their resignations on record. For avoidance of any doubt, any action/ omission which requires the vote of a majority director of the Existing Shareholder Directors, such action/ omission shall, be deemed validly passed if it is passed only by the Investor Directors.
- (ii) **Call Option:** Investor shall have the right to exercise the Call Option (as defined under the Call Option Agreement), in accordance with the terms and conditions set out under the Call Option Agreement.
- (iii) **Put Option:** Investor shall have the right to exercise a put option on SREPL on terms as may be agreed in writing between SREPL and Investor.

- (iv) **EDD Conversion:** Investor shall have right to convert the CCDs at the Default Conversion Ratio in accordance with the terms of the CCDs under SCHEDULE III.

Provided that, the exercise of any right or remedy by the Investor under this Clause 10.2 shall not restrict, limit or prejudice the ability of the Investor to exercise any other right or remedy available to it under this Clause 10.2, unless the Investor and any of the Existing Shareholders have specifically agreed otherwise in writing.

10.3 The occurrence or subsistence of any of the following events shall be considered as "Investor Event of Default")

- (a) The commencement of any insolvency resolution process of the Investor (which is not liquidation or voluntary) under the Insolvency and Bankruptcy Code, 2016 and where the claim under the proceeding is for an amount of more than INR 1,00,00,000 (Indian Rupee Five Crore) which has not been set aside, dismissed or stayed within a period of 120 (one hundred and twenty) days of the commencement of the proceedings; or
- (b) any default by the Company in payment of any financial indebtedness or credit facility availed by the Company from scheduled banks and financial institutions, other than where caused pursuant to an Existing Shareholder Event of Default, and such default remains unremedied for a continuous period of 25 (twenty five) days from the date of occurrence of such default.

11. DISPUTE RESOLUTION

11.1 All disputes or differences regarding this Agreement shall be submitted to final and binding arbitration at the request of any of the Disputing Parties upon written notice to that effect to the other Parties. In the event of such arbitration:

- (a) The arbitration shall be in accordance with the rules of the Singapore International Arbitration Centre ("SIAC"), in force at the relevant time (which is deemed to be incorporated into this Agreement by reference);
- (b) All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall be the seat of the arbitration;
- (c) The arbitration shall be conducted before a tribunal ("Tribunal") which consists of 3 (three) arbitrators. The claimant(s) shall nominate one arbitrator in the notice of arbitration. The respondent(s) shall nominate one arbitrator in the response to the notice of arbitration. The two party-nominated arbitrators shall then have 20 (twenty) days to agree, in consultation with the parties to the arbitration, upon the nomination of a third arbitrator to act as presiding arbitrator of the tribunal, having which the President of SIAC shall select the third arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing);
- (d) The award rendered by the Tribunal shall, in addition to dealing with the merits of the case, fix the costs of the arbitration (which includes the Tribunal's fees) and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by such parties;
- (e) Arbitration awards shall be reasoned awards and shall be final and binding on the Disputing Parties;
- (f) The existence or subsistence of a dispute between the Parties, or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone

the performance of these obligations of Parties under the Agreement which are not in dispute, and the arbitrators shall give due consideration to such performance, if any, in making a final award; and

- (vi) The provisions of Part I of the Indian Arbitration and Conciliation Act, 1996 (save and except Section 9 (herein)) shall not be applicable to, and shall be specifically excluded from, any and all arbitration proceedings conducted in accordance with this Clause 11.1.

11.2 Nothing shall preclude a Party from seeking interim equitable or injunctive relief, or both. The pursuit of equitable or injunctive relief shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 11.

12. CONFIDENTIALITY AND NON-DISCLOSURE.

12.1 Each Party shall keep all information and other materials passing between it and the other Parties in relation to the transactions contemplated by this Agreement and the other Transaction Documents also in relation to the Company, Investor and/or the Existing Shareholders, as well as the existence and the terms and conditions of this Agreement and the other Transaction Documents ("Information") confidential and shall not, without the prior written consent of the other Party, divulge the Information to any other Person or use the Information other than for carrying out the purposes of this Agreement and the other Transaction Documents except:

- (i) to the extent that such Information is in the public domain other than by breach of the Agreement and the other Transaction Documents;
- (ii) to the extent that such Information is required or requested to be disclosed by any Applicable Law, the rules of any stock exchange or any applicable regulatory requirements or by any regulatory body to whose jurisdiction the relevant Party is subject or with whose instructions it is necessary to comply under notice to the other Party(ies);
- (iii) to the extent required to be disclosed to any Governmental Authority for the purpose of enforcement of rights and obligations under this Agreement and the other Transaction Documents;
- (iv) to Affiliates, employees, officers, directors, agents, insurers (including brokers and reinsurers) or professional advisers (including, without limitation, attorneys, accountants, consultants, appraisers, auditors and financial advisors of any Party, subject to such Persons being subject to similar confidentiality obligations as set forth hereunder;
- (v) to the extent that any of such Information is later acquired by a Party from a source not obligated to any other Party hereto, or its Affiliates, to keep such information confidential;
- (vi) to the extent that any of such Information was previously known or already in the lawful possession of a Party, prior to disclosure by any other Party hereto;
- (vii) to the extent that any information, similar to the Information, shall have been independently developed by a Party without reference to any Information furnished by any other Party hereto;
- (viii) to any direct or indirect or shareholders/investors in the Parties or potential sources of capital (including, without limitation, prospective limited partners and any related

advisors, Affiliates or agents, subject to each Person being subject to customary confidentiality obligations; and

- (iii) to any potential transferee of Securities (as defined under the SEPA) in the Company held by the Investor, subject to each Person being subject to similar confidentiality obligations as set forth hereunder.
- 12.2 No formal or informal public announcement or press release which makes reference to the Parties or the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued by any Party without the written consent of the other Parties.
- 12.3 If any of the Parties are obliged to make or issue any announcement or press release required by Law or by any stock exchange or Governmental Authority, it shall give the other Parties every reasonable opportunity to comment on any announcement or release before it is made or issued.
- 12.4 Each Party accepts and acknowledges that the undertakings set out in this Clause 12 are reasonable restrictions placed on the Parties and a breach thereof would cause loss and injury to the other Parties. Each Party agrees that, without prejudice to any other rights of the other Parties, such other Parties will be entitled to seek equitable remedy in the form of restraint orders against the defaulting Party for any breach or attempted breach of this Clause 12.

13. NOTICES

- 13.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below:

(i) If to the Investor:

Address	Tower 1, 11th Floor, 1501 B, One World Centre, Sonagiri Bopal Marg, Pashchim, Colaba Road, Mumbai- 400011, Maharashtra, India
E-mail	Compliance@sigarix.com
Attention	Legal Department

(ii) If to the Existing Shareholders:

Address	Satva Windsor, Floor 4, No. 3, Ulhas Road, Bengaluru, Karnataka - 560032, India
E-mail	secretarial@satvagroup.in and jain@satvagroup.in
Attention	Mr. Pradyumna Kumar Mishra

(iii) If to the Company:

Same details as those of the Investor

- 13.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 13, by giving the other Parties written notice of the new address in the manner set forth above.

14. TERM AND TERMINATION

14.1 Term

This Agreement shall come into effect on and from the Closing Date upon the occurrence of Closing as contemplated under the terms of the SSPA. However, the provisions of Clause 2.1 (Representations), Clause 11 (Dispute Resolution), Clause 12 (Confidentiality and Non-Disclosure), and Clause 14 (Termination) shall come into effect and be binding on the Parties on and from the Execution Date. This Agreement shall remain valid and binding on the Parties until such time that each Party ceases to be a shareholder of the Company or, it is terminated in accordance with Clause 14.2 below.

14.2 Termination

- (i) This Agreement shall terminate automatically if the SSPA is terminated prior to Closing, in accordance with the terms thereof.
- (ii) This Agreement shall terminate if the Existing Shareholders and/or the Investor (including their Affiliates), cease to hold any Shares in the Company.
- (iii) This Agreement may be terminated at any time by the mutual written agreement of the Existing Shareholders and the Investor.

14.3 Effect of Termination

- (i) The right to terminate as aforesaid shall be without prejudice to all the contractual, equitable and legal rights and remedies available to the Parties.
- (ii) The termination of this Agreement shall not release any Party of any obligation or liability accrued prior to the date of termination.
- (iii) Whichever of the Existing Shareholders or Investor has ceased to hold Shares in the Company, shall cause its nominee directors to tender their resignation to the Board.
- (iv) The provisions of Clauses 1 (Definitions and Interpretation), 11 (Dispute Resolution), 12 (Confidentiality and Non-Disclosure), 13 (Notices), 15.8 (Governing Law and Jurisdiction), and 15.12 (Costs and Expenses), as are applicable or relevant thereto, shall survive termination of this Agreement.

15. MISCELLANEOUS

15.1 Counterparts

This Agreement shall be executed simultaneously in any number of counterparts, each of which shall be deemed an original, but all of which will constitute one and the same instrument. The delivery of signed counterparts by electronic mail in "portable document format" ("pdf") shall be as effective as signing and delivering the counterpart in paper.

15.2 Specific Performance

This Agreement (and each of the other Transaction Documents in which they are Parties) shall be specifically enforceable at the instance of any Party. The Parties agree that a non-defeating

Party will suffer immediate, material, irreparable, continuing and irreparable damage and harm in the event of any material breach of this Agreement and the remedies at Law in respect of such breach will be inadequate and that each non-defaulting Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under this Agreement (and each of the other Transaction Documents to which they are Parties) in addition to any and all other legal or equitable remedies available to it.

15.3 Entire Agreement

This Agreement together with the Schedules and all the Schedules hereto, together with the Transaction Documents, and any agreements between the Parties, executed in writing, on or about the date of this Agreement, constitute and contain the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersede all previous communications, negotiations, commitments, either oral or written between the Parties in respect of the subject matter hereof.

15.4 Governing Law and Jurisdiction

This Agreement shall be governed in all respects by the Laws of India (without reference to its conflict of Laws provisions) and, subject to the provisions of Clause 11 (Dispute Resolution), the courts at Bangalore, India shall have exclusive jurisdiction, with respect to all matters arising out hereof.

15.5 Severability

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties shall negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

15.6 Further Assurance

The Parties shall execute other documents, cause meetings to be held, resolutions passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be reasonably necessary or in order to give full effect to this Agreement and the transactions contemplated under the Agreement, provided that no such document or agreement shall be inconsistent with the spirit and intent of this Agreement, and provided further that, this Clause 15.6 does not limit a Party's right to grant or withhold a consent, where such Party had full discretion to exercise such consent under the Transaction Documents.

15.7 Rights Cumulative

- (a) The rights, powers, privileges and remedies provided in this Agreement are cumulative and are without prejudice, independent of and in addition to, such other rights and remedies as the Parties may have at law or in equity or otherwise, including the right to seek damages, specific performance, rescission, restitution or other injunctive relief, none of which rights or remedies shall be affected or diminished thereby.
- (b) Neither failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.

- (d) No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

13.8 Successors and Assigns

No rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties, provided that Investor can assign its rights, liabilities and/or obligations to transferees to whom it transfers its ownership in accordance with the terms of this Agreement.

13.9 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or in otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

13.10 No Waiver

No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing. A waiver or any failure or delay by the Existing Shareholders or the Investor to require the enforcement of the obligations, agreements, undertakings or covenants in this Agreement shall not be construed as a waiver by the Existing Shareholders or the Investor of any of their rights, unless made in writing referring specifically to the relevant provisions of this Agreement and signed by a duly authorized representative of the Existing Shareholders or the Investor, as the case may be. Any such waiver shall not affect in any way the validity of this Agreement or the right to enforce such obligation, agreement, undertaking or covenant at any other time. All rights and remedies existing under this Agreement, except as otherwise provided herein are cumulative to, and not exclusive of any rights or remedies otherwise available.

13.11 Amendments

This Agreement shall be modified, amended or supplemented only by the mutual written agreement of the Parties. No change, alteration, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

13.12 Costs and Expenses

Except as otherwise provided in this Agreement and the other Transaction Documents, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the other Transaction Documents and the consummation of the transactions contemplated hereby and thereby, including without limitation all fees and expenses of legal and financial advisers, independent accountants and auditors. Stamp duty payable on the execution of the Transaction Documents, shall be borne by the Company.

13.13 No Recourse

- (i) Notwithstanding anything that may be expressed or implied in this Agreement and/or the other Transaction Documents, the Parties agree and acknowledge that neither Existing Shareholders nor their respective Affiliates shall have any rights against, and

no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Blackstone Non-Restructured Person in connection with this Agreement and/or the Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Blackstone Non-Restructured Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the Company. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by Existing Shareholders (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Blackstone Non-Restructured Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation. Notwithstanding anything to the contrary herein or any actions or omissions or representations of Blackstone Inc. or any of its Affiliates, in whatever capacity, it is understood that neither Blackstone Inc. nor any of its Affiliates is acting as a financial adviser, agent or underwriter to or otherwise on behalf of the Company or any of its respective Affiliates, unless so stated to provide such services pursuant to a separate written agreement.

- (E) Other than as expressly provided in the Transaction Documents, the Parties agree and acknowledge that neither the Investor nor any of its Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Sotera Non-Restructured Person in connection with this Agreement and/or the other Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Sotera Non-Restructured Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the applicable Existing Shareholder. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by the Investor (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Sotera Non-Restructured Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation, other than as expressly provided in the Transaction Documents.

15.14 Authorized Representative

Each of the Existing Shareholders shall respectively amongst themselves, nominate an authorized representative for and on their behalf (the "Authorized Representative") for the purpose of communicating the decisions of the Existing Shareholders (with respect to the Agreement and all matters relating thereto) to the Company and the other Party and such decisions by the Authorized Representative shall be binding on the respective Party. The Authorized Representative of the Existing Shareholders, as of the date hereof shall be SDPL, provided that the Existing Shareholders may change the Authorized Representative, by giving the Company and the Investor a written notice of such new Authorized Representative.

[THE REMAINDER OF THIS PAGE HAS BEEN INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, the Parties have entered into this Agreement the day and year first above written.

For and on behalf of BOSTON INDUSTRIAL PARKS LIMITED


Name: Barry Dineen

Title: Managing Director

IN WITNESS WHEREOF, the Parties have entered into this Agreement this day and year first above written.

For and on behalf of BARBETTA LANDSCAPE PROPERTY LLP



Name: PEOADJAME CONBOY M.D.P.A.

Title: FULFILLING SIGNATURE

Signature page to the shareholders' agreement executed by and between Weston Industrial Parks Limited, Galena Developers Private Limited, Barbetta Landscaped Property LLP and Euron Systems Facilities Private Limited

IN WITNESS WHEREOF, the Parties have entered into this Agreement this day and year first above written.

For and on behalf of SATYA DEVELOPERS PRIVATE LIMITED



Name: DEEPA KUMAR E. CARRA SATYA

Title: Authorised Signatory

Signature page to the Shareholders' agreement executed by and between Vizion Industrial Parks Limited, Satya Developers Private Limited,昌发地产有限公司 and Vizion Software Facilities Private Limited.

IN WITNESS WHEREOF, the Parties have entered into this Agreement for day and year first above written.

For and on behalf of VISION NORTHCH HATCHERIES PRIVATE LIMITED



Name: N. ACHIMONA OLUWALUWA

Title: AUTHORIZED SIGNATORY

Signature page to the shareholders' agreement executed by and between Atlantic Industrial Ports Limited, Atlantic Conveyance Private Limited, Carshale Limited Property LLP and Vision Softtech Facilities Private Limited.

SCHEDULE I**SHAREHOLDING PATTERN OF THE COMPANY**

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
SCPL	18,000	36%
Carlisle	7,500	15%
Ernst&Y	24,500	49%

SCHEDULE II.

MINORITY PROTECTION MATTERS

Any action by the Company with respect to the following shall be as per the terms set out in Clause 6:

1. Any change in the Business;
2. Any acquisition of shares or business, by the Company;
3. Any restructuring, amalgamation, merger, de-merger, scheme of arrangement, winding up, dissolution or liquidation of the Company, whether voluntary or involuntary, or any application or petition filed in connection therewith, or the appointment of any receiver, administrator, liquidator or similar officer in respect of the Company or any of its assets;
4. Any amendment, supplement, modification or restatement to the Charter Documents of the Company;
5. Creation of legal entities, joint ventures or partnerships;
6. Any sale, transfer, lease, license, disposal of, or creation of any license/right over, any immovable property owned, held or occupied by the Company (including the KAADB Land), or the relinquishment or surrender of any rights, title or interest of the Company in any immovable property;
7. Any change in the status of the Company from a private to a public company or vice versa;
8. Any transactions with Related Party(ies);
9. The incurrence or modification of any form of any financial indebtedness;
10. The incurrence of any capital expenditure in excess of INR 1,00,00,000 (Indian Rupees One Crore);
11. Appointment or termination of the development manager and/or asset manager for KAADB Land, or any amendments to the terms of their engagement;
12. Any variation in the terms of the Shares, CCDA, and other securities of the Company; reclassification of any outstanding securities into securities having differential or preferential rights as to dividends, voting or otherwise;
13. Any declaration of dividends, distribution of profits or issuance of bonus shares, and buy back of the securities of the Company;
14. The amendment of any material Tax Return, or the making, amendment or revocation of any material election relating to Taxes, including without limitation, the filing of any entity classification elections pursuant to United States Treasury Regulations section 301.7701-30(c) or the taking of any other action to change any member of the Group's entity tax classification for U.S. federal income tax purposes; and
15. Any change to the board composition of the Company as set out in this Agreement.

SCHEDULE III.

TERMS OF CCD

1. Compulsorily Convertible Debentures

- (a) Each CCD issued by the Company shall have a face value of INR 10 (Indian Rupees Ten) ("CCD Face Value"). Each Person holding the CCDs shall be referred to as the "CCD Holder".
- (b) The CCDs shall be unsecured, non-redeemable and compulsorily convertible into Equity Shares in accordance with the terms of this SCHEDULE III.

2. Interest

- (a) The CCDs shall carry coupon of 12% (twelve per cent) per annum on the CCD Face Value, and upon occurrence of an Event of Default the coupon shall increase to 18% (eighteen per cent) per annum on the CCD Face Value, computed from the date of issuance of the CCD and shall accrue until fully paid.
- (b) The coupon in paragraph (a) above shall be subject to applicable withholding Taxes under the IT Act.

3. Maturity and Conversion

- (a) **Conversion.** Each CCD shall be convertible into Equity Shares at the option of the CCD Holder upon receipt of written notice by the Company from each CCD Holder, as follows:

- (i) At any time after the allotment of the CCD; or
- (ii) Upon occurrence of any of the following events: (x) conveyance of the KLAJIB Land to the Company under a registered sale deed from KLAJIB; (y) Company having received approval from the KLAJIB for change in shareholding of the Company; or (z) expiry of 10 (ten) years from the date of allotment of such CCD.

- (b) **Conversion Ratio**

Every 825 (eight hundred and twenty five) CCDs shall be convertible into 1 (one) Equity Share ("Conversion Ratio"), provided that, upon the occurrence of an Event of Default under this Agreement, each CCD shall be convertible into 1 (one) Equity Share ("Default Conversion Ratio").

The Conversion Ratio, or the Default Conversion Ratio, as the case may be, will be appropriately adjusted for corporate actions such as any share split, issue of bonus shares, consolidation of shares, combinations, recapitalizations and other similar events.

- (c) **Conversion Process:**

- (i) On the relevant conversion date, which shall be no less than 5 (five) days of the written notice from the CCD Holder pursuant to paragraph (a)(i) the Company shall, at its expense, take all actions required for such conversion in accordance with the requirements of the relevant depository / depository

participants.

- (i) The Company shall file all relevant documents and forms with the Registrar of Companies and any other Governmental Authority as may be required under Applicable Law, in relation to the conversion and the allotment and issuance of the Equity Shares, along with all supporting documents within the timelines prescribed under Applicable Law.
- (ii) Simultaneously with conversion of the CCDs, at the option of the CCD Holder, either
 - (A) unpaid interest that has accrued shall be paid by the Company to the holder of the CCD; or
 - (B) subject to applicable Law, Shares equivalent to the fair value of the unpaid interest shall be issued to the CCD Holder.
- (iii) No fractional Shares shall be issued upon conversion of CCDs, and the number of Equity Shares to be issued shall be rounded up to the nearest whole number.
- (iv) If at any time the authorized share capital of the Company is not sufficient to effect the complete conversion of the then-outstanding CCDs, the Company shall take all such corporate actions as may be necessary to increase/revitalize the Company's authorized share capital and to issue the Equity Shares to be issued pursuant to conversion of the CCDs, so that the Company can issue the Equity Shares on the relevant conversion date.

4. Transferability:

The CCDs shall be transferable in accordance with, and subject to, the terms of this Agreement.

SCHEDULE IV.

TAX MATTERS

Part I

- (4) The following definitions shall apply:

"Carrying Value" shall mean, in respect of any Company asset, the asset's adjusted basis for U.S. federal income tax purposes, except that the Carrying Value of all Company assets shall be adjusted to equal their respective fair market values, in accordance with the rules set forth in Treasury Regulations Section 1.704-1(b)(2)(i)-(iii), except as otherwise provided herein, as of: (a) the date of the acquisition of any additional shares in the Company by any new or Existing Shareholder in exchange for more than a de minimis capital contribution, other than pursuant to the initial formation of the Company; (b) the date of the distribution of more than a de minimis amount of the Company's assets to a Shareholder; (c) the date of the liquidation of the Company within the meaning of Treasury Regulation Section 1.704-1(b)(2)(i)(g); or (d) any other event upon which the book value of the Company assets is permitted to be adjusted under Treasury Regulation Section 1.704-1(b)(2)(i)-(iii); provided, however, that adjustments pursuant to clauses (a), (b) and (d) above shall be made only if such adjustments are deemed necessary or appropriate by the Tax Matters Person to reflect the relative economic interests of the Shareholders. The Carrying Value of any Company asset distributed to any Shareholder shall be adjusted immediately prior to such distribution to equal its fair market value and depreciation shall be calculated by reference to Carrying Value, instead of tax basis once Carrying Value differs from tax basis. The Carrying Value of any asset contributed (or deemed contributed under Treasury Regulations Section 1.704-1(b)(1)(v)) by a Shareholder to the Company will be the fair market value of the asset at the date of its contribution thereto.

"Net Income (Loss)" shall mean for any fiscal year or other period, the taxable income or loss of the Company, or particular items thereof, for such period as determined in accordance with the accounting method used by the Company for U.S. federal income tax purposes with the following adjustments: (i) any income of the Company that is exempt from U.S. federal income taxation and not otherwise taken into account in computing Net Income (Loss) shall be added to such taxable income or loss; (ii) if the Carrying Value of any asset differs from its adjusted tax basis for U.S. federal income tax purposes, any depreciation, amortization or gain resulting from a disposition of such asset shall be calculated with reference to such Carrying Value; (iii) upon an adjustment to the Carrying Value of any asset, pursuant to the definition of Carrying Value, the amount of the adjustment shall be included as gain or loss in computing such taxable income or loss; and (iv) any expenditures of the Company not deductible in computing taxable income or loss, not properly capitalizable and not otherwise taken into account in computing Net Income (Loss) pursuant to this definition shall be treated as deductible items.

- (5) There shall be established for each Shareholder on the books of the Company as of the Effective Date, a capital account (each being a "Capital Account"). Each Shareholder's Capital Account shall be (i) credited with capital contributions to the Company and all Net Income (Loss) allocated to such Shareholder pursuant to this Schedule IV; (ii) debited with all Net Losses allocated to such Shareholder pursuant to this Schedule IV and all cash and the Carrying Value of any property (net of liabilities assumed by such Shareholder and the liabilities to which such property is subject) distributed by the Company to such Shareholder and (iii) otherwise maintained in accordance with the provisions of the Code. Any other item which is required to be reflected in a Shareholder's Capital Account under Section 704(b) or Section 704(c) of the Code or otherwise under this Agreement shall be so reflected. Capital Accounts shall be appropriately adjusted to reflect transfers of part (but not all) of a Shareholder's interest in the Company. Interest shall not be payable on

Capital Account balances. Notwithstanding anything to the contrary contained in this Agreement, the Tax Matters Person shall maintain the Capital Accounts of the Shareholders in accordance with the principles and requirements set forth in Section 704(b) of the Code and Section 704(c) of the Code.

- (c) Net Income (Loss) of the Company for each fiscal year shall be allocated among the Capital Accounts of the Shareholders in a manner that as closely as possible gives economic effect to the provisions of this Agreement and the organizational documents of the Company.
- (d) Notwithstanding any other provision of this Agreement, (i) "partner nonrecourse deductions" (as defined in Treasury Regulations Section 1.704-2(f), if any, of the Company shall be allocated for each fiscal period to the Shareholder that bears the economic risk of loss within the meaning of Treasury Regulations Section 1.704-2(f), and (ii) "nonrecourse deductions" (as defined in Treasury Regulations Section 1.704-2(f)) and "excess nonrecourse liabilities" (as defined in Treasury Regulations Section 1.752-3(a)), if any, of the Shareholder shall be allocated to the Shareholders in accordance with the number and type of their Shares.
- (e) This Agreement shall be deemed to include "qualified income offset," "minimum gain chargeback" and "partner nonrecourse debt minimum gain chargeback" provisions within the meaning of Treasury Regulations under Section 704(c) of the Code.
- (f) Any allocations required to be made pursuant to clause (c) and clause (e) of this Schedule IV (the "Regulatory Allocations") (other than allocations, the effect of which are likely to be offset in the future by other special allocations) shall be taken into account, to the extent permitted by the Treasury Regulations, in computing subsequent allocations of income, gain, loss or deduction pursuant to this Schedule IV so that the net amount of any items so allocated and all other items allocated to each Shareholder shall, to the extent possible, be equal to the amount that would have been allocated to each Shareholder pursuant to this Schedule IV had such Regulatory Allocations under this Schedule IV not occurred.
- (g) All items of income, gain, loss, deduction and credit of the Company shall be allocated among the Shareholders for U.S. federal, state and local income tax purposes consistent with the manner that the corresponding constituent items of Net Income (Loss) shall be allocated among the Shareholders pursuant to this Agreement, except as may otherwise be provided herein or by the Code. Notwithstanding the foregoing, the Tax Matters Person shall make such allocations for tax purposes as may be needed to ensure that allocations are in accordance with the intentions of the Shareholders, within the meaning of the Code and Treasury Regulations, and in accordance with Section 704(c) of the Code and the Treasury Regulations thereunder, income, gain, loss and deduction in respect of any property contributed to the capital of the Company shall, solely for tax purposes, be allocated among the Shareholders under any method selected by the Tax Matters Person so as to take account of any variation between the adjusted basis of such property to the Company for U.S. federal income tax purposes and its initial Carrying Value. The Tax Matters Person shall determine all matters concerning allocations for tax purposes not expressly provided for herein in its sole discretion.
- (h) The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Treasury Regulations Section 1.704-1(b) and the Tax Matters Person may allocate items among the Capital Accounts in its discretion in order to comply with those Treasury Regulations.
- (i) The determinations of the Tax Matters Person in respect of the treatment of any item or its allocation for U.S. federal income tax purposes shall be binding upon all of the Shareholders so long as such determination shall not be inconsistent with any express term of this Agreement and no Shareholder shall take a position on any tax return inconsistent with such determination.

- (4) The Tax Matters Person shall act as or designate (in its sole discretion) the "partnership representative" within the meaning of Section 6221(a) of the Code (the Tax Matters Person acting in such capacity and/or such other appointed persons (as the case may be), the "Partnership Representative"). The Partnership Representative shall have all of the rights, duties, powers and obligations provided for in sections 6221 through 6231 of the Code. The Partnership Representative shall (i) promptly notify the Board of any action that it receives, and (ii) timely inform the Board of the status of all administrative and judicial proceedings in relation to the U.S. taxes. All reasonable third party costs and reasonable expenses incurred by the partnership representative in performing its duties as partnership representative (including legal and accounting fees and any out-of-pocket expenses) shall be borne by the Company. Nothing herein shall be construed to restrict the Company from engaging an accounting firm or other experts or consultants to assist the Tax Matters Person in discharging its duties hereunder.
- (5) To the extent that the Tax Matters Person, the Company or any of their Affiliates are required by law to withhold or to make tax payments on behalf of or with respect to any of its shareholders ("Tax Advances"), the Company may withhold such amounts and make such tax payments as is required. All Tax Advances made on behalf of any shareholder of the Company shall be repaid by reducing the amount of the current or next succeeding distribution or distributions which would otherwise have been made to such shareholder or, if such distributions are not sufficient for that purpose, by so reducing the proceeds of liquidation otherwise payable to such shareholder. If a distribution to any shareholder is actually reduced as a result of a Tax Advance, for all other purposes of this Agreement such shareholder shall be treated as having received all distributions reduced by the amount of such Tax Advance. Each shareholder of the Company hereby agrees to indemnify and hold harmless the Company and the shareholders of the Company from and against any liability (including, without limitation, any liability for taxes, penalties, or additions to Tax or interest) with respect to income attributable to or distributions or other payments to such shareholder.

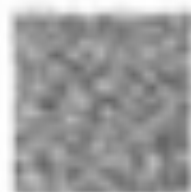


IMPACT AND FUTURE RESEARCH

Government of Karnataka

References

Certificate No.	: IN-ARJ1608400098100V
Certificate Issued Date	: 26-JUL-2026 11:53 AM
Account Reference	: NORDCO (P) LIMITED DOCK TOWN KALDI
Unique Doc. Reference	: SUSHILAKKANSFCLOD0000070400F
Purchased by	: SATYKA DEVELOPERS PRIVATE LIMITED
Description of Document	: Article 5(L) Agreement (in any other terms)
Property Description	: CALL OPTION AGREEMENT
Consideration Price (Rs.)	: 0 (Zero)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATYKA DEVELOPERS PRIVATE LIMITED
Stamp Duty Paid By	: SATYKA DEVELOPERS PRIVATE LIMITED
Stamp Duty Amount(Rs.)	: 000 (Five Hundred only)



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on a number of the items and have asked me whether or not I was planning to do any further work on the items. As I have said, in the spirit of the Conference and as a result of the work done at previous meetings

† The cost of training the operators is the responsibility of the authors.

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CALL OPTION AGREEMENT

DATED July 30, 2018

AMONGST

VISION SOFTECH FACILITIES PRIVATE LIMITED

("Company")

AND

HORIZON INDUSTRIAL PARKS LIMITED

("Aqeeb")

AND

DARSHITA LANDED PROPERTY LLP

("Darshita")

AND

SAITVA DEVELOPERS PRIVATE LIMITED

("SDPL")

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CALL OPTION AGREEMENT

This call option agreement is executed on July 13, 2024 ("Execution Date") at Bengaluru, India,

BY AND AMONGST:

1. **VISION SORTECH FACILITIES PRIVATE LIMITED**, a company incorporated under Companies Act, 1956 with permanent account number AAJCV1271D, and having its registered office at 4th Floor, Satva Windsor #3, Ulloor Road, Sirva Cherry Gardens, Bengaluru - 560 042, Karnataka, India (hereinafter referred to as the "**Company**"), which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FIRST PART**.

AND

2. **HORIZON INDUSTRIAL PARKS LIMITED**, a public company incorporated under the laws of Companies Act, 1956 with permanent account number AAJCE1546P, and having its registered office at One World Centre, Unit No. 1501B, Tower 3, 841, Jupiter Excellence 15/1b, Sanapal Dapsi Marg, Marolli City, Marolli, Mahadevra, India - 400033 (hereinafter referred to as "**Acquirer**"), which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **SECOND PART**.

AND

3. **BARSHITA LANDED PROPERTY LLP**, a limited liability partnership incorporated under the laws of Limited Liability Partnership Act, 2008 and having its registered office at 4th Floor, Satva Windsor, No. 3, Ulloor Main Road, Bengaluru Karnataka 560042, India and permanent account number as AANFD012HH (hereinafter referred to as "**Barshita**"), which expression shall include its successors and permitted assigns) of the **THIRD PART**.

AND

4. **SATVA DEVELOPERS PRIVATE LIMITED**, a company incorporated under Companies Act, 1956 with permanent account number AAJCS246PL, and having its registered office at 4th, Nringi Sahasra Road, 4th Floor, Roost No. 404, Kulkarni - 700 001 (hereinafter referred to as "**SDPL**"), which expression shall include its successors and permitted assigns) of the **FOURTH PART**.

Barshita and SDPL shall hereinafter be referred to collectively as "**Seller Group**".

Each of the Company, Acquirer, and the Seller Group shall hereinafter be referred to individually as a "**Party**" and collectively as the "**Parties**".

WHEREAS:

- A. The Company is engaged in the Business (defined hereinafter).
- B. As on the Closing Date (as defined under the SDA), the shareholding of the Company is as set out in **SCHEDULE I**. The Parties and Satva Real Estate Private Limited ("**SREPL**") have entered into a Share Subscription and Purchase Agreement ("**SPA**") dated July 13, 2024 under which the Seller Group and SREPL agreed to transfer to the Acquirer, and the Acquirer agreed to purchase from the Seller Group and SREPL, 49% (forty nine percent) of the Equity Shares (defined hereinafter), subject to the terms and conditions of the SDA.
- C. The Seller Group has agreed to grant to the Acquirer a Call Option (defined hereinafter), pursuant to which the Acquirer shall have the right to require the Seller Group to sell and transfer

the Option Securities to the Acquirer, subject to and in accordance with the terms and conditions of this Agreement.

- D. The Parties now wish to enter into this Agreement, to record the terms and conditions in relation to the Call Option and certain other matters in connection therewith and incidental thereto.

NOW THEREFORE, in consideration of the foregoing and other good and valuable considerations, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

"Act" shall mean the Companies Act, 2013, and shall include any rules, regulations, notifications and circulars issued by the relevant Governmental Authority thereunder, as may be amended, modified, supplemented or re-enacted thereof from time to time;

"Additional Warranties" shall mean the representations and warranties set forth in SCHEDULE IV (Joinder Group Warranties);

"Advance Payment" shall have the meaning ascribed to it under Clause 4.5;

"Affiliate" shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise. If such Person is an individual, in addition to the aforementioned, the term "Affiliate" shall include a Relative of such individual. In relation to the Acquirer, in addition to the aforementioned, the term "Affiliate" shall include (i) the funds, collective investment schemes, trusts and partnerships directly and indirectly owned, managed, advised and/or Controlled by Blackstone Inc. or any of its Affiliates, and (ii) any investment trust in relation to which the Acquirer and/or its respective Affiliates hold at least 50% (fifty per cent) or more of: (A) the total outstanding units of such investment trust, and/or (B) the shareholding (on a fully diluted basis) of the investment manager of such investment trust, but shall exclude portfolio companies that are not Controlled by the Acquirer and/or its respective Affiliates. It is clarified that each of SDPL and Dardika shall be deemed to be an Affiliate of the other; however, the Acquirer shall not be considered an Affiliate of SDPL and Dardika and vice versa, for any purpose hereunder;

"Agreement" shall mean this call option agreement, together with the Schedules and Annexures hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms;

"Anti-Corruption Laws" shall have the meaning ascribed to it in the SSPA;

"Anti-Money Laundering Laws" shall have the meaning ascribed to it in the SSPA;

"Applicable Law" or "Law" shall mean any statute, law, regulation, ordinance, code, rule, judgment, notification, rule of common law, Order, decree, bye-law, Governmental Approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Governmental Authority having jurisdiction over the matter in question, whether in effect as of the Execution Date or thereafter;

"Area Shortfall Payment" shall have the meaning ascribed to it in the SSPA;

"Base Option Consideration" shall mean an aggregate amount of INR 44,00,00,000 (Indian Rupees Forty Four Crores);

"Blackstone Non-Reserve Person" shall mean a former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner or other beneficial owner of Acquiror or Blackstone Inc., or any director or indirect former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner of any of the foregoing;

"Board" shall mean the board of directors of the Company;

"Business" shall mean the business of acquisition, construction, development, ownership and maintenance of the Project;

"Call Option" shall have the meaning ascribed to it under Clause 3.1;

"Call Option Exercise Notice" shall have the meaning ascribed to it under Clause 4.2;

"Call Option Trigger Events" shall collectively mean the events set out in Clause 4.1 and any other triggers as may be agreed by the Parties in writing;

"CCDs" shall have the meaning ascribed to it in the Shareholders' Agreement;

"Charter Documents" shall mean, with respect to a Person, the articles of association and memorandums of association, by-laws, the certificate of incorporation or similar organizational or incorporation documents of such Person;

"Company" shall have the meaning ascribed to it in the preamble to this Agreement;

"Consent" shall mean any approval, consent, ratification, waiver, notice or other authorization of or from or to any Third Party, including scheduled banks and financial institutions (other than a Governmental Approval) that may be required for: (i) fulfilling the obligations under the Transaction Documents; and/or (ii) carrying on the Business in accordance with Applicable Law;

"Contract" shall have the meaning ascribed to it in the MSA;

"Control" shall have the meaning ascribed to it in the SSFA;

"Encumbrance" shall mean any mortgage, pledge, non-disposal undertaking, encroachment, power of attorney (by whatever name called) charge, lien or other security interest securing any obligation of any Person or any other agreement or arrangement having a similar effect, option, pre-emptive right, adverse claim, title retention agreement, conditional sale agreement, co-lease agreement, tenancy (other than tenancies of whatsoever nature) or other encumbrance of any kind, or a contract to give or refrain from giving any of the foregoing, including any restriction imposed under applicable Laws or contract on the Transferability of Shares or the operation of the Business, and the term "Encumbered" shall be construed accordingly;

"Equity Share" shall mean ordinary equity shares of the Company of face value INR. 10 (Indian Rupees Ten);

"Escrow Agent" shall mean CTL Trusteeship Limited, acting in its capacity as escrow agent pursuant to the Escrow Agreement;

"Escrow Agreement" shall mean the escrow agreement to be executed between the Seller Group, the Escrow Agent and the Acquiror, in relation to the deposit and release of the Option

Secretary;

"**Execution Date**" shall have the meaning ascribed to it in the preamble to this Agreement;

"**Government Official**" shall have the meaning ascribed to it in the SSPA;

"**Governmental Approvals**" shall mean any permission, approval, consent, license, permit, Order, authorization, registration, filing, notification, exemption or ruling to, from or with any Governmental Authority;

"**Governmental Authority**" shall have the meaning ascribed to it in the SSPA;

"**Improper Payment**" shall have the meaning ascribed to it in the SSPA;

"**Information**" shall have the meaning ascribed to it under Clause 8.1;

"**INR**" or "**Indian Rupee**" shall mean the lawful currency of the Republic of India;

"**IT Act**" shall mean the Income-tax Act, 2025 (which, with effect from April 1, 2024, replaced and re-enacted the Income-tax Act, 1961), as amended from time to time, together with any statutory modification or re-enactment thereof, and references to the "IT Act" shall, where the context so requires, be construed as including references to the Income-tax Act, 1961 to the extent applicable to periods prior to April 1, 2024;

"**IT Rules**" shall mean the Income-tax Rules, 2026 (which replaced the Income-tax Rules, 1962 with effect from April 1, 2024), as amended from time to time, together with any statutory modification or re-enactment thereof, and references to the "IT Rules" shall, where the context so requires, be construed as including references to the Income-tax Rules, 1962 to the extent applicable to periods prior to April 1, 2024;

"**KIADB Land**" shall have the meaning ascribed to it in the SSPA;

"**KIADB Lease Deed**" shall have the meaning ascribed to it in the SSPA;

"**KIADB**" shall mean the Karnataka Industrial Areas Development Board;

"**Option Closing Action**" shall have the meaning ascribed to the term under Clause 3.3;

"**Option Closing Date**" shall have the meaning ascribed to the term under Clause 3.1;

"**Option Closing Due Date**" shall have the meaning ascribed to the term under Clause 4.1.4;

"**Option Closing**" shall mean consummation of the transactions contemplated in Clause 3 (Option Closing), including but not limited to the Transfer of the Option Securities by the Seller Group (through release from escrow) to the Acquirer and payment of the Option Consideration;

"**Option Consideration**" shall have the meaning ascribed to the term under Clause 4.3;

"**Option Securities**" shall mean all the Shares (as defined under the Shareholders' Agreement) held by the Seller Group or their respective Affiliates, as on the date of issue of the Call Option Exercise Notice;

"**Order**" shall mean any order, injunction, judgment, decree, ruling, or award of a court, arbitration body or panel, or other Governmental Authority;

"**Party(ies)**" shall have the meaning ascribed to it in the preamble to this Agreement;

"Person" shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, society, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under Applicable Law;

"Post Closing Actions" shall have the meaning ascribed to the term under Clause 5.4;

"Project" shall have the meaning ascribed to it in the SSPA;

"Provisional Letter of Assignment" shall have the meaning ascribed to it in the SSPA;

"Relative" has the meaning as set forth in Section 2(77) of the Act and shall include the meaning ascribed to it under Accounting Standard 18 prescribed by the Institute of Chartered Accountants of India or other successive accounting standard prescribed under Applicable Law;

"Representative" shall mean, any Person, such Person's principal, owner, executive, manager, director, officers, employees, or agents working on behalf of and at the direction of such Person;

"Sanctioned Jurisdiction" shall have the meaning ascribed to it in the SSPA;

"Sanctioned Person" shall have the meaning ascribed to it in the SSPA;

"Sanctions Laws" shall have the meaning ascribed to it in the SSPA;

"Selling Non-Revenue Persons" means, in relation to each of SDPL and Dardara, any direct or indirect former, current or future shareholder, director, officer, employee, or Affiliate of SDPL and Dardara, as may be applicable;

"Securities" shall mean Equity Shares, any options, warrants, convertible shares, bonds, notes, debentures (including the optionally convertible debentures, if any) and other equity and debt securities of whatever kind of any Person that are directly or indirectly convertible into or exercisable or exchangeable for any equity share, in each case of the Company, including the Option Securities;

"Seller Directors" shall mean Mr. P.K. Mishra, Mr. Shrikant Khatri, or any other directors appointed by the Seller Group as of the Option Closing Date;

"Seller Group Warranties" shall have the meaning ascribed to it under Clause 4.2;

"Shareholders' Agreement" shall mean the shareholders' agreement entered into by and amongst the Parties on July 10, 2024;

"SIAC" shall have the meaning ascribed to it under Clause 7.1.1;

"SSPA" shall have the meaning ascribed to it under Recital B;

"Tax" or collectively **"Taxes"** or **"Taxation"** includes any and all taxes, assessments, duties, impositions, liabilities and other governmental charges by any Governmental Authority, including, without limitation, taxes on income, capital gains, profits, services, sales, wealth, use and occupation, and value added, ad valorem, transfer, franchise, withholding, payroll, employment, excise, stamp duty and property taxes, together with all interest, penalties and additions imposed with respect to such amounts by any Governmental Authority in any jurisdiction;

"Tax Deducted at Source" shall have the meaning ascribed to it under Clause 6.4.1;

"Third Party" shall mean a Person who is not a party to this Agreement;

"Transaction Documents" shall mean, collectively, this Agreement, ISPA, Escrow Agreement, Shareholders' Agreement, and any other agreement or document designated in writing as a Transaction Document by the Acquirer on one hand, and any member of the Seller Group on the other hand;

"Transfer" (including, with correlative meaning, the terms "Transferred by" and "Transferability") shall mean to transfer, sell, assign, Encumber, place in trust (vesting or otherwise), exchange, gift or transfer by operation of Applicable Law or in any other way, dispose of, whether or not voluntarily;

"Tribunal" shall have the meaning ascribed to it under Clause 7.1.3;

"U.S." shall mean the United States of America; and

"Valuation Report" shall mean (i) a valuation report, from a chartered accountant of repute with respect to the fair market value of the Option Securities as of a date as computed in accordance with Rule 57 of the IT Rules, and (ii) a valuation report, from a chartered accountant or a merchant banker registered with the Securities and Exchange Board of India or a practicing cost accountant with respect to the fair market value of the Option Securities as of the Option Closing Date as computed in accordance with the Foreign Exchange Management (Non-Debt Instruments) Rules, 2014 read with the Foreign Exchange Management Act, 1999.

1.2 Interpretation

In this Agreement, unless the context otherwise requires:

1.2.1 reference to an "amendment" includes a supplement, modification, revision, replacement or re-enactment and "amended" is to be construed accordingly;

1.2.2 any reference to "writing" shall include printing, typing, lithography, e-mails or transmissions by facsimile and other means of reproducing words in visible form, but excluding text messaging via mobile phones and WhatsApp or any similar messages;

1.2.3 any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 (Definitions) above shall have the meaning assigned to it in such definition throughout this Agreement unless the ISPA, unless the contrary is expressly stated or the contrary clearly appears from the context;

1.2.4 if any provision in this Clause 1 (Definitions and Interpretation) is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement;

1.2.5 reference to any document includes an amendment or supplement to, or replacement or revision of, that document, but disregarding any amendment, supplement, replacement or revision made in breach of this Agreement and/or that document;

1.2.6 reference to any legislation or statute or statutory provision shall include a reference to that legislation, statute or statutory provision as amended, modified, supplemented, consolidated or replaced from time to time (whether before or after the Issuance Date) and include all statutory instruments, rules, regulations or orders made pursuant to that legislation, statute or statutory provision and any subordinate legislation made under that legislation, statute or statutory provision;

1.2.7 reference to Recitals, Clauses, Annexures, Paragraphs, Provisions and Schedules are to

Recitals, Clauses, Annexures, Paragraphs of Schedules, Preamble and Schedules of this Agreement, all of which form a part of this Agreement.

- 1.2.8 the *cuius in quo* (of the same kind) rule will not apply to the interpretation of this Agreement. Accordingly, references to "include" or "including" are to be construed without limitation;
- 1.2.9 the index, table of contents, headings, subheadings, titles and subtitles are inserted for convenience only and shall not affect the construction or interpretation of this Agreement;
- 1.2.10 the Parties have participated jointly in the negotiation and drafting of this Agreement. In the event any ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by all Parties, and no presumption or burden of proof shall arise favouring or disfavours any Party by virtue of the authorship of any provision of this Agreement;
- 1.2.11 the Recitals and the Schedules hereto shall constitute an integral part of this Agreement;
- 1.2.12 the terms "hereof", "herein", "hereby", "hereto" and derivatives or similar words refer to this entire Agreement or specified Clauses, Schedules and/or Annexures of this Agreement, as the case may be;
- 1.2.13 the words "directly or indirectly" include directly or indirectly through one or more intermediary Persons or through contractual or other legal arrangements, and "direct or indirect" have the cumulative meanings;
- 1.2.14 time is of the essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of the essence;
- 1.2.15 unless otherwise specified, references to days, months and years are to calendar days, calendar months and calendar years, respectively;
- 1.2.16 when any number of days is prescribed in this Agreement, the same shall be reckoned exclusion of the first and inclusive of the last day. For instance, if the number of days prescribed is 30 (thirty) days from 1 July then the computation of 30 (thirty) days shall commence from 2 July and end on 31 July;
- 1.2.17 where any obligation is imposed on or in relation to the Company prior to Option Closing under this Agreement, such an obligation shall also be deemed to include an obligation on the Seller Group to procure / cause such an obligation to be performed, and the Seller Group shall take necessary steps and do or cause to be done all acts, deeds and things, commissions or omissions as required to ensure compliance of such obligations of the Company under this Agreement;
- 1.2.18 words of any gender are deemed to include the other genders; and
- 1.2.19 words using the singular or plural number also include the plural or singular number, respectively.

2. ACTIONS ON THE EXECUTION DATE

2.1 On or any time prior to the Execution Date:

- 2.1.1 each member of the Seller Group shall deliver to the Acquirer, a certified true copy of the resolution passed by its board of directors or governing body (and where applicable,

shareholders), authorizing the execution, delivery and performance of this Agreement and authorizing its officer(s) to execute this Agreement on its behalf; and

- 2.1.2 the Acquirer and the Company shall deliver to the Seller Group, a verified true copy of the resolution passed by their respective boards of directors, authorizing the execution, delivery and performance of this Agreement and authorizing their respective officer(s) to execute this Agreement on their behalf.

3. GRANT OF CALL OPTION

- 3.1 **Call Option.** The Seller Group agrees that Acquirer has an irrevocable right and option (but not an obligation) to, either by itself or through its Affiliate, purchase the Option Securities from the Seller Group, free and clear of all Encumbrances, for the Option Consideration ("Call Option"), in accordance with the provisions of Clause 4 (Exercise of Option) and Clause 5 (Option Closing and Post-Closing Actions).

- 3.2 The Parties agree that the Option Securities shall be held in escrow with the Escrow Agent pursuant to the Escrow Agreement pending exercise of the Call Option or termination of this Agreement.

4. EXERCISE OF OPTION

4.1 Call Option Trigger Events

- 4.1.1 **Mandatory Call Trigger.** The Acquirer shall, upon the occurrence of any of the following events, exercise the Call Option:

- (a) Company having been conveyed the KIADB Land by KIADB under a registered sale deed; or
- (b) Company having received permission from KIADB to effect the transfer of the Option Securities to the Acquirer (or its nominee) after receipt of the KIADB Lease Deed.

- 4.2 **Call Option Exercise Notice.** The Call Option is exercised by the Acquirer by issuing a written notice ("Call Option Exercise Notice") to the Seller Group in the format provided under **SCHEDULE III**. The Call Option Exercise Notice shall also specify:

- 4.2.1 name of the entity acquiring the Option Securities;
- 4.2.2 applicable Call Option Trigger Event;
- 4.2.3 the Option Consideration payable to each member of the Seller Group; and
- 4.2.4 the scheduled date to consummate the Option Closing Actions, which shall be within 30 (thirty) days of the receipt of the Call Option Exercise Notice ("Option Closing Due Date").

- 4.3 **Option Consideration.** The amount payable by the Acquirer to the Seller Group on the Option Closing Date shall be equal to the Base Option Consideration, less any Advance Payment already made by the Acquirer to the Seller Group ("Option Consideration").

Provided that, in the event any Area Shortfall Payment is payable under the SSFA, the Acquirer shall have the right to, and the Seller Group hereby grants the Acquirer the right to, set off such Area Shortfall Payment from the Option Consideration; and such adjusted amount shall be the "Option Consideration" for purposes of this Agreement (including, to the extent allowable under

applicable Law, for Tax purposes).

4.4 Tax Deducted at Source.

4.4.1 The Acquirer shall be entitled to deduct and withhold from payment of Option Consideration to be made pursuant to this Agreement as per section 370 read with section 402 of the IT Act ("Tax Deducted at Source").

4.4.2 To the extent that amounts are so withheld and paid to the appropriate Governmental Authority pursuant to any Applicable Law relating to Tax, such withheld amounts shall be treated for all purposes of this Agreement as having been paid to the relevant payee in respect of which such deduction and withholding was made.

4.4.3 The Acquirer shall: (i) deposit any Taxes withheld under this Agreement with the relevant Governmental Authority; (ii) complete filing of withholding tax returns within the statutory due date; and (iii) issue a withholding Tax certificate as per the applicable Tax laws within the prescribed statutory timelines.

4.5 In case any advance has been granted by the Acquirer to the Seller Group towards the Base Option Consideration ("Advance Payment") under this Agreement, the Acquirer may by written notice to the Seller Group, require the Seller Group to either refund the Advance Payment to the Acquirer prior to the issuance of the Call Option Exercise Notice or adjust such Advance Payment from the Base Option Consideration to arrive at the Option Consideration payable at the Option Closing Date, at its sole discretion, at any time.

4.6 Upon issuance of the Call Option Exercise Notice, the Seller Group shall (a) undertake all the relevant actions required to be undertaken by them under SCHEDULE II, (b) vote in favour of any corporate actions of the Company under SCHEDULE II, (c) execute all documents and take all actions necessary to effect the Transfer of the Option Securities to the Acquirer (or its nominee), and (d) cooperate with the Acquirer, the Company and the Escrow Agent to complete the Option Closing Actions prior to the Option Closing Due Date.

4.7 The Company shall undertake all corporate actions as well as provide necessary support to the Seller Group and the Acquirer to complete the Option Closing Actions prior to the Option Closing Due Date.

4.8 If any Consents or Governmental Approvals are required to give effect to Option Closing, the Parties shall cooperate with the Company and each other to obtain the same, in a timely manner and in compliance with Applicable Laws.

5. OPTION CLOSING AND POST CLOSING ACTIONS

5.1 Subject to Clauses 4.6 and 4.8, the Option Closing shall take place on the date specified in the Call Option Exercise Notice, at the registered office of the Company, or such other place as may be mutually decided by the Parties ("Option Closing Date").

5.2 On or prior to the Option Closing Date, the Seller Group shall (unless waived by the Acquirer in writing), provide to the Acquirer a certificate from a reputed chartered accountant, in a form and manner acceptable to the Acquirer, confirming that there are no pending or ongoing tax proceedings against or outstanding demands against the relevant Seller Group, which could render the transactions contemplated under this Agreement void pursuant to Section 409 of the IT Act and/or Section 68 of the Central Goods and Services Tax Act, 2017.

5.3 On the Option Closing Date, the relevant Parties shall do or cause to be done, each of the actions set out in SCHEDULE II ("Option Closing Actions").

- 5.4 **Post-Closing Actions:** Within 7 (seven) days after the Option Closing Date, Acquirer and the Company shall file necessary documents (including in relation to resignation of Seller Directors from the Board), forms and filings with the Governmental Authorities (including the Reserve Bank of India and Registrar of Companies), as may be necessary in connection with the actions set out in Clause 5.

6. REPRESENTATIONS AND WARRANTIES

- 6.1 **Acquirer Warranties:** The Acquirer hereby represents and warrants to the Seller Group that the following warranties are true, correct and complete in all respects and not misleading in any respect as of the Execution Date, and on the Option Closing Date, as if made on such dates, by reference to the facts and circumstances then existing:

6.1.1 it is duly organized and validly existing under the laws of the jurisdiction of its incorporation;

6.1.2 it has the power and authority to execute, deliver and perform the obligations set out in this Agreement, and the execution, delivery and performance by it of this Agreement will not:

(a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Acceleration or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:

- (i) its Charter Documents;
- (ii) any contract to which it is a party;
- (iii) any Consent, Governmental Approval or Order to which it is a party or by which it is bound; or
- (iv) any Applicable Law,

in each case, which would materially and adversely affect its ability to perform its obligations under the Transaction Documents; or

(b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy law applicable to it for the protection of debtors or creditors;

6.1.3 this Agreement, when executed, shall be duly and validly executed by it and shall constitute legal, valid and binding obligations, enforceable against it in accordance with terms of this Agreement; and

6.1.4 it has obtained all necessary corporate authorizations required under Applicable Law, to enter into this Agreement and to perform its obligations hereunder.

- 6.2 **Seller Group Warranties:** Each member of the Seller Group hereby jointly and severally represents and warrants to the Acquirer and the Company that the warranties set out under SCHEDULE IV are true, correct and complete in all respects and not misleading in any respect as of the Execution Date and the Option Closing Date, as if made on such dates, by reference to the facts and circumstances then existing ("Seller Group Warranties").

4.3 **Warranty to be Independent:** Each of the representations and warranties provided under this Agreement shall be construed as a separate representation and warranty and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement.

4.4 **Knowledge:** None of the Seller Group Warranties shall be treated as qualified by any actual, imputed or constructive knowledge on the part of the Company, the Acquirer and/or any of its Affiliates or its and their respective agents, Representatives, officers, employees or advisors and no such knowledge shall prejudice any claim for breach of any warranty or operate so as to reduce any amount recoverable.

7. DISPUTE RESOLUTION

7.1 All disputes or differences regarding this Agreement shall be submitted to final and binding arbitration at the request of any of the Disputing Parties upon written notice to that effect to the other Parties. In the event of such arbitration:

7.1.1 The arbitration shall be in accordance with the rules of the Singapore International Arbitration Centre ("SIAC"), in force at the relevant time (which is deemed to be incorporated into this Agreement by reference);

7.1.2 All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall be the seat of the arbitration;

7.1.3 The arbitration shall be conducted before a tribunal ("Tribunal") which consists of 3 (three) arbitrators. The claimant(s) shall nominate one arbitrator in the notice of arbitration. The respondent(s) shall nominate one arbitrator in the response to the notice of arbitration. The two party nominated arbitrators shall then have 21 (twenty) days to agree, in consultation with the parties to the arbitration, upon the nomination of a third arbitrator to act as presiding arbitrator of the tribunal, having which the President of SIAC shall select the third arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing);

7.1.4 The award rendered by the Tribunal shall, in addition to dealing with the merits of the case, fix the costs of the arbitration (which includes the Tribunal's fees) and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by each party;

7.1.5 Arbitration awards shall be reasoned awards and shall be final and binding on the Disputing Parties;

7.1.6 The existence or subsistence of a dispute between the Parties, or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under the Agreement which are not in dispute, and the arbitrators shall give due consideration to such performance, if any, in making a final award; and

7.1.7 The provisions of Part I of the Indian Arbitration and Conciliation Act, 1996 (save and except Section 9 therein) shall not be applicable to, and shall be specifically excluded from, any and all arbitration proceedings conducted in accordance with this Clause 7.

7.2 Nothing shall preclude a Party from seeking interim equitable or injunctive relief, or both. The pursuit of equitable or injunctive relief shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 7.

8. CONFIDENTIALITY AND NON-DISCLOSURE

- 8.1 Each Party shall keep all information and other materials passing between it and the other Parties in relation to the transactions contemplated by this Agreement and the other Transaction Documents, and also in relation to the Company and/or the Acquirer and/or the Seller Group as well as the existence and the terms and conditions of this Agreement and the other Transaction Documents ("Information") confidential and shall not, without the prior written consent of the other Party, divulge the Information to any other Person or use the Information other than for carrying out the purposes of this Agreement and the other Transaction Documents except:
- 8.1.1 To the extent that such Information is in the public domain other than by breach of the Agreement and the other Transaction Documents;
 - 8.1.2 To the extent that such Information is required or requested to be disclosed by any Applicable Law, the rules of any stock exchange or any applicable regulatory requirements or by any regulatory body to whose jurisdiction the relevant Party is subject or with whose instructions it is customary to comply under notice to the other Party(ies);
 - 8.1.3 To the extent required to be disclosed to any Governmental Authority for the purpose of enforcement of rights and obligations under this Agreement and the other Transaction Documents;
 - 8.1.4 To Affiliates, employees, officers, directors, agents, insurers (including brokers and reinsurers) or professional advisors (including, without limitation, attorneys, accountants, consultants, appraisers, auditors and financial advisors) of any Party, subject to such Persons being subject to similar confidentiality obligations as set forth hereunder;
 - 8.1.5 To the extent that any of such Information is later acquired by a Party from a source not obligated to any other Party hereto, or its Affiliates, to keep such Information confidential;
 - 8.1.6 To the extent that any of such Information was previously known or already in the lawful possession of a Party prior to disclosure by any other Party hereto;
 - 8.1.7 To the extent that any information, similar to the Information, shall have been independently developed by a Party without reference to any Information furnished by any other Party hereto;
 - 8.1.8 To any direct or indirect shareholders/investors in the Parties or potential sources of capital (including, without limitation, prospective limited partners and any related advisors, Affiliates or agents), subject to such Persons being subject to customary confidentiality obligations; and
 - 8.1.9 To any potential transferee of Securities, subject to such Persons being subject to similar confidentiality obligations as set forth hereunder.
- 8.2 No formal or informal public announcement or press release which makes reference to the Parties or the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued by any Party without the written consent of the other Parties.
- 8.3 If any of the Parties are obliged to make or issue any announcement or press release required by Law or by any stock exchange or Governmental Authority, it shall give the other Parties every reasonable opportunity to comment on any announcement or release before it is made or issued.
- 8.4 Each Party accepts and acknowledges that the undertakings set out in this Clause 8 are

reasonable restrictions placed on the Parties and a breach thereof would cause loss and injury to the other Parties. Each Party agrees that, without prejudice to any other rights of the other Parties, each other Parties will be entitled to seek equitable remedy in the form of restraint orders against the defaulting Party for any breach or attempted breach of this Clause 8.

9. NOTICES

- 9.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below:

9.1.1 If to Salzer Group:

Address	Setra Windsor, Floor 4, No. 3 Ulaan Road, Bangalore - 560042, India
E-mail	sew@salzergroup.co.in
Attention	Mr. Pradyumn Kumar Mishra

9.1.2 If to the Acquirer and/or Company:

Address	Tower 1, 15th Floor, 1341 B, One World Centre, Senapati Bapat Marg, Pratikesh, Behind Road, Mumbai - 400013, Maharashtra, India
E-mail	Compliance@hipeda.com
Attention	Legal Department

- 9.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 9, by giving the other Parties written notice of the new address in the manner set forth above.

10. TERM AND TERMINATION

- 10.1 This Agreement shall come into full force and effect from the Closing Date (as defined under the SPA).

- 10.2 This Agreement may be terminated by written agreement of all the Parties.

10.3 Effect of Termination

- 10.3.1 Save and except as otherwise expressly provided under this Agreement, the right to terminate this Agreement shall be without prejudice to all other rights and remedies available to a Party under Applicable Law.

- 10.3.2 The termination of this Agreement shall not relieve any Party of any obligations or liabilities accrued prior to the date of termination or affect the right of any Party (including remedies) accrued prior to the date of termination.

- 10.3.3 Clause 1 (Definitions and Interpretation), Clause 6 (Representations and Warranties), Clause 7 (Dispute Resolution), Clause 8 (Confidentiality and Non-Disclosure), Clause 9 (Notices), Clause 10.3 (Effect of Termination) and Clause 11 (Miscellaneous), shall

survive the termination of this Agreement.

11. MISCELLANEOUS

11.1 Counterparts

This Agreement shall be executed simultaneously in any number of counterparts, each of which shall be deemed an original, but all of which will constitute one and the same instrument. The delivery of signed counterparts by electronic mail in "portable document format" ("pdf") shall be as effective as signing and delivering the counterpart in person.

11.2 Specific Performance

This Agreement (and each of the other Transaction Documents to which they are Parties) shall be specifically enforceable at the instance of any Party. The Parties agree that a non-defaulting Party will suffer immediate, material, irreparable, continuing and inseparable damage and harm in the event of any material breach of this Agreement and the remedy at Law in respect of such breach will be inadequate and that such non-defaulting Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under this Agreement (and each of the other Transaction Documents to which they are Parties) in addition to any and all other legal or equitable remedies available to it.

11.3 Entire Agreement

This Agreement together with the Exhibits and all the Schedules hereto, together with the Transaction Documents, constitute and contain the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersede all previous communications, negotiations, commitments, either oral or written between the Parties in respect of the subject matter hereof.

11.4 Governing Law and Jurisdiction

This Agreement shall be governed in all respects by the Laws of India (without reference to its conflict of Laws provisions), and subject to Clause 7 (*Dispute Resolution*), the courts at Bangalore, India, shall have exclusive jurisdiction with respect to all matters set out herein.

11.5 Severability

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties shall negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position as that which prevailed prior to such invalidity, illegality or unenforceability.

11.6 Amendments

This Agreement shall be modified, amended or supplemented only by the mutual written agreement of the Parties. No change, deletion, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

11.7 Rights Cumulative

11.7.1 The rights, powers, privileges and remedies provided in this Agreement are cumulative and are without prejudice, independent of and in addition to, such other rights and

remedies as the Parties may have at law or in equity or otherwise, including the right to seek damages, specific performance, rescission, restitution or other injunctive relief, none of which rights or remedies shall be affected or diminished thereby.

11.3.2 No failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.

11.3.3 No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

11.8 Successors and Assigns

No rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties; provided, however, and notwithstanding the foregoing, that the Acquirer shall be entitled to assign the whole or any part of this Agreement to one or more of its Affiliates, or to any Person who acquires all the Securities in the Company held by the Acquirer and/or its Affiliates in accordance with the terms of the Shareholders' Agreement, without the prior consent of the other Parties.

11.9 Costs and Expenses

11.9.1 Except as otherwise provided in this Agreement, each Party shall pay their own expenses in connection with the preparation and performance of this Agreement and the other Transaction Documents and the consummation of the transactions contemplated hereby and thereby, including without limitation all fees and expenses of legal and financial advisors, independent accountants and retention.

11.9.2 Stamp duty payable on the execution of this Agreement and the Transfer of the Option Securities shall be borne by the Acquirer.

11.10 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligations or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

11.11 No Waiver

11.11.1 No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing. Any failure or delay by the Seller Group or the Acquirer to require the enforcement of the obligations, agreements, undertakings or covenants in this Agreement shall not be construed as a waiver by the Seller Group or the Acquirer of any of their rights, unless made in writing referring specifically to the relevant provisions of this Agreement and signed by a duly authorized representative of the Seller Group or the Acquirer, as the case may be. Any such waiver shall not affect in any way the validity of this Agreement or the right to enforce such obligation, agreement, undertaking or covenant at any other time. All rights and remedies existing under this Agreement, except as otherwise provided herein are cumulative to, and not exclusive of any rights or remedies otherwise available.

11.11.2 Parties agree that consummation of transactions under this Agreement shall not be considered as a waiver of any rights of the Parties under any other Transaction Documents.

11.12 Further Assurances

The Parties shall execute other documents, cause meetings to be held, resolutions passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be reasonably necessary or in order to give full effect to this Agreement and the transactions contemplated under the Agreement, provided that no such document or agreement shall be inconsistent with the spirit and intent of this Agreement, and provided further that, this Clause 11.12 does not limit a Party's right to grant or withhold a consent, where such Party had full discretion to exercise such consent under the Transaction Documents.

11.13 No Recourse

11.13.1 Notwithstanding anything that may be expressed or implied in this Agreement and/or the other Transaction Documents, the Parties agree and acknowledge that neither Seller Group nor their respective Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Blackstone Non-Recourse Person in connection with this Agreement and/or the Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Blackstone Non-Recourse Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the Company. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by the Seller Group (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Blackstone Non-Recourse Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation. Notwithstanding anything to the contrary herein or any actions or omissions or representations of Blackstone Inc. or any of its Affiliates, in whatever capacity, it is understood that neither Blackstone Inc. nor any of its Affiliates is acting as a financial adviser, agent or underwriter to or otherwise on behalf of the Company or any of its respective Affiliates, unless retained to provide such services pursuant to a separate written agreement.

11.13.2 Other than as expressly provided in the Transaction Documents, Parties agree and acknowledge that neither the Acquirer nor any of its Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Sotera Non-Recourse Person in connection with this Agreement and/or the other Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Sotera Non-Recourse Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against Seller Group. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by the Acquirer (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Sotera Non-Recourse Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation, other than as expressly provided in the Transaction

Documents.

[Following this page is the signature page]

IN WITNESS WHEREOF, the Parties have entered into this Agreement for the day and year first above written.

For and on behalf of **BRIDGEMAN INDUSTRIAL PARKS LIMITED**


Name **Pauline Green**

Title **Authorized Director**

IN WITNESS WHEREOF, the Parties have entered into this Agreement by day and year first above written.

Received 10 October 2007; accepted 12 November 2007

 PDA Adm. 1999-2000

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Pa. Frequency

Figure 6

Signature page is the last system agreement provided by and between Interim Industrial Parks Limited, Joint Developers, Prime Limited, Strategic Land Property LLP and Prime Sports Facilities Private Limited

ON BEHALF OF FIDELITY, the Parties have entered into this Agreement this day and year first above written.

For and on behalf of SATURN DEVELOPMENT PRIVATE LIMITED:



Name: PER-CHRISTER CUPER, M-ENGA
Title: BOARD CHIEF, EQUATEX

Signatures page to the call option agreement executed by and between Fidelity Industrial Private Limited, Saturn Developers Private Limited, Shreebhui Limited Property LLP and Fidelity Global Real Estate Private Limited.

IN WITNESS WHEREOF, the Parties have entered into this Agreement the day and year first above written.

For and on behalf of VISION HORTICULTURAL FACILITIES PRIVATE LIMITED



Name: RACHANA KUMAR MISHRA

Title: MANAGING DIRECTOR

Signature page to the call option agreement entered by and between Indian Industrial Parks Limited, Satna Development Private Limited, Darbhanga Landel Property LLP and Vision Horticultural Facilities Private Limited.

SCHEDULE 1 | SHAREHOLDING PATTERN ON CLOSING DATE

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
NDPL	18,000	50%
Darecha	1,500	1%
Acquirer	24,500	69%

SCHEDULE II | OPTION CLOSING ACTIONS

1. The Seller Group shall have:
 - 1.1 complied with the covenants and obligations under this Agreement; and
 - 1.2 confirmed that Seller Group Warranties are accurate as of the Option Closing Date.
 2. The Acquirer shall remit the relevant proportion of the Option Consideration (subject to deduction of Tax Deducted at Source as per clause 4.4 of this Agreement) into the respective bank accounts of each of the Seller Group entities (details of which shall have been provided by the Seller Group entities in writing to the Acquirer) based on their respective shareholding percentage of Option Securities in the Company as of the Execution Date, by way of a wire transfer or such other method as may be acceptable to the respective Parties, and the Acquirer shall furnish to the Seller Group a copy of the necessary document evidencing the respective remittance.
 3. Simultaneously with the remittance of the Option Consideration, the relevant Party(ies) shall provide instructions to the Escrow Agent, in accordance with the terms of the Escrow Agreement, to release and transfer the Option Securities to the Acquirer.
 4. Seller Group shall ensure that the Seller Directors tender their resignation from the Board of the Company.
 5. The Company shall convene a meeting of its Board and undertake to approve and take on record the:
 - 5.1 Transfer of the Option Securities to the Acquirer (and its nominee);
 - 5.2 resignation of the Seller Directors from the Board;
 - 5.3 authorisation to:
 - 5.3.1 update the register of members to reflect the Acquirer as the owner of the Option Securities;
 - 5.3.2 update the register of directors to reflect the resignation of Mr. P.K. Vidya as director;
 - 5.3.3 filing of necessary forms with the registrar of companies and authorized depository bank;
- and provide a certified true copy of the minutes of such meeting to the Parties.

SCHEDULE III | FORMAT OF CALL OPTION EXERCISE NOTICE

(to be printed on the letterhead of the Acquirer)

Date: _____

CALL OPTION EXERCISE NOTICE

To:

(*)

Re: Call Option Exercise Notice issued pursuant to the call option agreement dated July 18, 2024 ("Call Option Agreement") entered into between Horizon Industrial Parks Limited ("Acquirer"), Vision Software Facilities Private Limited ("Company"), Darshita Landed Property LLP ("Darshita"), and Settha Developers Private Limited ("SDPL") (Darshita and SDPL collectively, the "Seller Group")

- Capitalised terms used but not defined in this Call Option Exercise Notice shall have the meaning set forth in the Call Option Agreement.
- Pursuant to Clause 8 of the Call Option Agreement, we are exercising our Call Option pursuant to the following Call Option Trigger Event (i):

(i) *(details of the specific Call Option Trigger Event completed / waived).*

- The computation of the Option Consideration payable to each of you is set out below:

Name of Seller Group Entity	Base Option Consideration (A)	Advance Consideration (B)	Area Shortfall Payment (C)	Option Consideration (A+B+C)

- You are required to provide the following details of your designated bank account to which your respective portion of the Option Consideration is to be transferred:

Account Number	(*)
Name	(*)
Branch	(*)
IFSC Code	(*)

- In respect of the Option Securities being purchased, the Valuation Reports are hereby annexed as **Annexure I**.
- We request you to complete all actions required to be undertaken by you, to adhere the instructions set out in Clause 5 read with SCHEDULE II of the Call Option Agreement.

7. **Clause 7 (Dispute Resolution), 8 (Confidentiality and Non-Disclosure) and 11 (Miscellaneous)** of the Call Option Agreement shall apply mutatis mutandis to this Call Option Exercise Notice.

For and on behalf of (name of the person(s) exercising the call option),

Authorized Signatory

SCHEDULE IV | SELLER GROUP WARRANTIES

1. Power and Authority

- 1.1 Each of the Seller Group entities is duly organized and validly existing under the laws of its jurisdiction of formation.
- 1.2 Each of the Seller Group entities has the power and authority to execute, deliver and perform this Agreement and the other Transaction Documents to which it is a party and to consummate the transactions contemplated hereby and thereby.
- 1.3 This Agreement and the Transaction Documents, when executed, will have been duly and validly executed by each of the Seller Group entities, and each constitutes or will constitute, as applicable, legal, valid and binding obligations of each of the Seller Group entities, enforceable against them in accordance with their terms.

2. Conflicting Instruments, Consents and Governmental Approvals

- 2.1 The execution, delivery and performance by each of the Seller Group entities, of this Agreement and the other Transaction Documents to which it is a party and the transactions contemplated hereby or thereby do not and shall not:
 - (a) Violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrance or constitute a default, an event of default (or an event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:
 - (i) The Charter Documents of any of the Seller Group entities;
 - (ii) Any outstanding contract that imposes material obligations or liabilities or grants material rights or entitlements to which any of the Seller Group entities is a party;
 - (iii) Any Governmental Approval or Order to which any of the Seller Group entities, is a party or by which it is bound;
 - (iv) Any Consents, or Governmental Approvals, as the case may be, of any Third Party required to give effect to and complete the transactions contemplated in this Agreement; or
 - (v) Any Applicable Law affecting any of the Seller Group entities; or
 - (b) Constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other Applicable Law.

- 2.2 No Consent or Governmental Approval is, from or with any Person is required on the part of any of the Seller Group entities in connection with the execution, delivery and performance of this Agreement and the other Transaction Documents, the compliance by any of them with any of the provisions hereof or thereof, or the consummation of the transactions contemplated hereby or thereby.

3. Ownership of Option Securities

- 3.1 Each of the Seller Group entities is the sole legal and beneficial owner of its respective Option Securities as set forth in Schedule I.

1.2 Each of the Seller Group entities has duly acquired its respective Option Securities and all such Option Securities are fully paid.

1.3 Each of the Seller Group entities has good and marketable title to its respective Option Securities, free and clear of any and all Encumbrances (other than as contemplated under the Transaction Documents), claims, and claims whatsoever, with full right and authority to sell and deliver the same to the Acquirer, under this Agreement, and upon delivery of the Option Securities, shall convey to the Acquirer, good and marketable title to its respective Option Securities free and clear of all Encumbrances.

1.4 None of the Seller Group entities have, nor has anyone on their behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Option Securities can be forfeited, extinguished or rendered void or voidable.

4. Seller Group Tax Warranties

4.1 There are no pending or ongoing claims, audits, suits, proceedings, disputes, demands or investigations or actions or appeals or litigation against or with respect to any of the Seller Group entities with respect to any Taxes or Tax returns that can render the transfer of the Option Securities on the Option Closing Date void under Section 499 of the IT Act and Section 61 of the Central Goods and Services Tax Act, 2017 and no notifications, inquiries or investigations have been received by any of the Seller Group entities that such a claim, audit, suit, proceeding or investigation is pending or threatened.

4.2 Each of the Seller Group entities is a resident of India for Tax purposes.

4.3 All the rights attached to the Option Securities are exercisable only by respective Seller Group entities.

5. Compliance with Law

5.1 None of the Seller Group entities have received any written notice from any Governmental Authority in respect of any actual or potential non-compliance with any applicable Laws, including Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws, in respect of Option Securities or the KIADB Land (as the case may be).

5.2 In relation to the KIADB Land, none of the Seller Group entities have, and have not caused the Company to, make, promise to make, or cause to be made, any Improper Payments: (i) to or for the use or benefit of any Government Official; (ii) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would reimburse such other Person for Improper Payments previously made, to any Government Official; or (iii) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate Anti-Corruption Laws.

5.3 Seller Group entities are not and none of the directors, employees of the Seller Group entities are, a Governmental Authority or Government Official, as the case may be.

5.4 The Seller Group entities have not made a voluntary, directed or involuntary disclosure to any Governmental Authority with respect to any alleged act or omission relating to any non-compliance with any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws in relation to the KIADB Land.

5.5 Compliance with Sanctions Laws:

(i) None of the Seller Group entities is a Sanctioned Person.

- (f) Seller Group will not use any amounts payable under this Agreement or the relationship proposed herein, for the purposes of financing the activities of, any persons and countries that are, or were at the relevant time, subject to any Sanctions Laws, including (i) any Sanctioned Person (ii) Sanctioned Jurisdiction; or (iii) otherwise in violation of any Sanctions Laws.

5.6 Compliance with Anti-Money Laundering Laws

- (i) None of the Seller Group entities have, in relation to the KIMDIB Land, taken any action that would constitute a violation of any applicable Anti-Money Laundering Laws.
- (ii) The Option Consideration payable under this Agreement is for the sole benefit of each of Seller Group entities.



INDIA NON JUDICIAL

Government of Karnataka

Stamp

Certificate No.	: BHACBMMH62T728FY
Certificate issued Date	: 00-Jul-2006 08:04 PM
Account Reference	: H0RAGG (7)9HAB0002 CCR T00THKA-01
Unique Doc. Reference	: 0L0H KAKAR03F000CH0000000007H0T
Purchased by	: SATTVA REAL ESTATE PRIVATE LIMITED
Description of Document	: Article 5(a) Agreement (in any other cases)
Property Description	: PLOT OPTION AGREEMENT
Consideration Price (Rs.)	: 0
	: (Zero)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATTVA REAL ESTATE PRIVATE LIMITED
Stamp Duty Paid By	: SATTVA REAL ESTATE PRIVATE LIMITED
Stamp Duty Amount (Rs.)	: 300
	: (Three Hundred only)



Please write or type below this line

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- This stamp is not valid for use in any other jurisdiction.
- In case of any discrepancy, please contact the Government of India.



INDIA NON JUDICIAL

Government of Karnataka

e-Stamp

Certificate No.	: BK-KA0027544-00271007
Certificate Issued Date	: 02-JUN-2020 03:37 PM
Assessors Reference	: MOWDC (P) Subdivison DCC TOWN KA/IV
Unique Doc. Reference	: SUBDIVISIONAL OFFICE TOWNSHIP
Purchased by	: SATTVAR REAL ESTATE PRIVATE LIMITED
Description of Document	: AREA 23 (Kannada) (Kannada) (Kannada)
Property Description	: FULL OPTION AGREEMENT
Consideration Price (Rs.)	: 87,00,000/- (Eighty Seven Lacs only)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATTVAR REAL ESTATE PRIVATE LIMITED
Stamp Duty Paid By	: SATTVAR REAL ESTATE PRIVATE LIMITED
Stamp Duty Amount(Pa.)	: 525 (Five Hundred only)



Please refer to page below this one

Readers Note

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2. The stamp certificate is valid only for the purpose mentioned in the certificate.
3. The stamp certificate is valid only for the purpose mentioned in the certificate.

PUT OPTION AGREEMENT

DATED July 30, 2015

AMONGST

VIRSON SOFTWARE FACILITIES PRIVATE LIMITED

("Company")

AND

HORIZON INDUSTRIAL PARKS LIMITED

("Acquirer")

AND

SAFFVA REAL ESTATE PRIVATE LIMITED

("SREPL")

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PUT OPTION AGREEMENT

This put option agreement is executed on July 18, 2024 ("Execution Date") at Bengaluru, India,

BY AND AMONGST:

1. **VISION SOFTECH FACILITIES PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 and having its registered office at 4th Floor, Windsor #3, Ulsoor Road, Silver Chetty Gardens, Bengaluru - 560 042, Karnataka, India and permanent account number as AACCV3271D (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FIRST PART**;

AND

2. **HORIZON INDUSTRIAL PARKS LIMITED**, a public company incorporated under the Companies Act, 1956 and having its registered office at One World Centre, Unit No 1301B, Tower 1, 343, Jupiter Textile Mills, Sonapat Bagat Mang, Mumbai City, Mumbai, Maharashtra, India - 400015 and permanent account number as AACCU2346P (hereinafter referred to as "Acquirer", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **SECOND PART**;

AND

3. **SATIYA REAL ESTATE PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 and having its registered office at 41 Netaji Subhas Road, Room No-405A, Kulkarna, West Bengal, India, 700001 and permanent account number as ANCCV7400K (hereinafter referred to as the "SREPL", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **THIRD PART**;

Each of the Company, Acquirer and SREPL shall hereinafter be referred to individually as a "Party" and collectively as the "Parties".

WHEREAS:

- A. The Company is engaged in the Business (defined hereinafter).
- B. As of the Execution Date, the shareholding of the Company is as set out in **SCHEDULE I** and 100% (one hundred percent) of the share capital of the Company is held by the Seller Group (defined hereinafter) and SREPL. Simultaneously with the execution of this Agreement, (i) the Company, the Acquirer, SREPL and the Seller Group have entered into a share subscription and purchase agreement ("SPA") pursuant to which SREPL and SREPL have agreed to transfer, and the Acquirer has agreed to purchase, 24,000 (twenty four thousand five hundred) equity shares of the Company representing 69% (sixty nine percent) of the share capital of the Company; and (ii) the Company, the Acquirer and the Seller Group have entered into a call option agreement ("Call Option Agreement"), pursuant to which the Seller Group has agreed to transfer the remaining 25,000 (twenty five thousand five hundred) equity shares of the Company, representing 31% (thirty one percent) of the share capital of the Company. Upon consummation of the transactions contemplated under the SPA and the Call Option Agreement, the Acquirer shall hold 100% (one hundred percent) of the share capital of the Company, on the terms and conditions set out in the SPA and the Call Option Agreement.
- C. SREPL, as the shareholder and promoter of the Company as on the Execution Date, has agreed to provide to the Acquirer, a Put Option (defined hereinafter) and undertake certain obligations

in accordance with the terms and conditions of this Agreement.

- (D) The Parties herewith enter into this Agreement, to record the terms and conditions in relation to the Put Option and certain other matters in connection therewith and incidental thereto.

NOW THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

Unless a contrary intention appears and/or the context otherwise requires: (a) terms defined by inclusion in quotations and/or parentheses have the meanings so ascribed; (b) the following terms shall have the meanings assigned to them herein below; and (c) terms not defined in this Agreement shall have the meaning ascribed to them under the SSPA:

"Act" means the Companies Act, 2013, and shall include any rules, regulations, notifications and circulars issued by the relevant Governmental Authority thereunder, as may be amended, modified, supplemented or re-enacted from time to time;

"Acquirer Director" means the directors nominated by the Acquirer or its Affiliates to the Board;

"Additional Warranties" means the representations and warranties set forth in **SCHEDULE IV (Additional Warranties)**;

"Advance Payment" shall have the meaning ascribed to it in the Call Option Agreement;

"Affiliate" means, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise. If such Person is an individual, in addition to the aforementioned, the term **"Affiliate"** shall include a Relative of such individual. In relation to the Acquirer, in addition to the aforementioned, the term **"Affiliate"** shall include: (i) the funds, collective investment schemes, trusts and partnerships directly and indirectly owned, managed, advised and/or Controlled by Blackstone Inc. or any of its Affiliates; and (ii) any investment trust in relation to which the Acquirer and/or its respective Affiliates hold at least 50% (fifty percent) or more of: (A) the total outstanding units of such investment trust; and/or (B) the shareholding (on a fully diluted basis) of the investment manager of such investment trust, but shall exclude portfolio companies (X) that are not Controlled by the Acquirer and/or its respective Affiliates or (Y) where Acquirer and/or its respective Affiliates own less than 51% (fifty one percent) shareholding on a fully diluted basis. It is clarified that each member of the Seller Group shall be deemed to be an Affiliate of the other; however, the Acquirer shall not be considered an Affiliate of any member of the Seller Group and vice versa, for any purpose hereunder;

"Agreement" means this put option agreement, together with the Schedules and Annexures hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms;

"Anti-Corruption Laws" shall have the meaning ascribed to it in the SSPA;

"Anti-Money Laundering Laws" shall have the meaning ascribed to it in the SSPA;

"Applicable IRR Amount" means 17% (seventeen percent) IRR on the Investment Amount if all amounts required to be paid to the Acquirer under the Put Option Exercise Notice are paid at any time on or before the Option Closing Due Date, and 30% (thirty percent) IRR on the Investment Amount if all amounts required to be paid to the Acquirer under the Put Option Exercise Notice are paid any time after the Option Closing Due Date;

"Applicable Law" or "Law" means any statute, law, regulation, ordinance, code, rule, judgment, certification, rule of common law, Order, decree, by-law, Governmental Approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Governmental Authority having jurisdiction over the matter in question, whether in effect as of the Execution Date or thereafter;

"Balance Demand" means any written demand issued by KLADB to the Company either through the Provisional Letter of Assignment and/or any extension letters after receipt of the Provisional Letter of Assignment, to make payments to KLADB to secure full leasehold rights over the KLADB Land;

"Blackstone Non-Recurring Payment" shall have the meaning ascribed to it in the SSPA;

"Board" means the board of directors of the Company in office at the relevant time, appointed in accordance with the articles of association of the Company, as amended from time to time, and applicable Law;

"Business" means the business of acquisition, construction, development, ownership and maintenance of the Project;

"Business Days" means days (other than Saturday or Sunday) on which banks are generally open for operation in Mumbai, India and Bangalore, India;

"Call Option" shall have the meaning ascribed to it in the Call Option Agreement;

"Call Option Agreement" means the call option agreement dated July 10, 2024 executed by and between the Company, Acquirer and the Seller Group;

"CCB" shall have the meaning ascribed to it in the SSPA;

"Charter Documents" means, with respect to a Person, the articles of association and memorandums of association, by-laws, the certificate of incorporation or similar organizational or incorporation documents of such Person;

"Company" shall have the meaning ascribed to it in the preamble to this Agreement;

"Consent" means any approval, consent, certification, waiver, notice or other authorization of or from or to any Third Party, including scheduled banks and financial institutions (other than a Governmental Approval) that may be required for: (i) fulfilling the obligations under the Transaction Documents; and/or (ii) carrying on the Business in accordance with Applicable Law;

"Control" (including with correlative meaning the terms, "Controlling", "Controlled by" and "under common Control with") shall have the meaning ascribed to it in the SSPA;

"Dardaha" means Dardaha Landed Property LLP;

"Designated Bank Account" shall have the meaning ascribed to it under Clause 4.4.5;

"Encumbrance" means any mortgage, pledge, non-disposal undertaking, encrow, power of attorney (by whatever name called) charge, lien or other security interest securing any obligation of any Person or any other agreement or arrangement having a similar effect, option, pre-emptive right, adverse claim, title retention agreement, conditional sale agreement, co-sale agreement, trust (other title-exceptions of whatever nature) or other encumbrance of any kind, or a Contract to give or refrain from giving any of the foregoing, including any restriction imposed under applicable Laws or Contract on the Transferrability of Shares or the operation of the Business, and the term "Encumbrance" shall be construed accordingly;

"Exercise Date" shall have the meaning ascribed to it in the preamble to this Agreement;

"Government Official" shall have the meaning ascribed to it in the SSPA;

"Governmental Approvals" means any permission, approval, consent, license, permit, Order, authorization, registration, filing, notification, exemption or filing to, from or with any Governmental Authority;

"Governmental Authority" shall have the meaning ascribed to it in the SSPA;

"GDR Repayment Loan" shall have the meaning ascribed to it under paragraph 2 of Part C of SCHEDULE II;

"Insurer Payment" shall have the meaning ascribed to it in the SSPA;

"Information" shall have the meaning ascribed to it under Clause 1(b) i;

"INR" or "Indian Rupee" means the lawful currency of the Republic of India;

"Investment Amount" means:

A. In respect of SBA Trigger Event, the aggregate of:

- (a) amounts discharged by the Acquirer (and/or its Affiliates) (whether towards subscription or purchase of Securities) under the SSPA and/or the Call Option Agreement;
- (b) any inter-corporate deposit or shareholder loan extended by the Company to the Indus Group, which remains outstanding; and
- (c) all amounts infused by the Acquirer (and/or its Affiliates) into the Company, whether through subscription of Securities or as inter-corporate deposits, or shareholder loans for the purposes of (a) making payments to KIADB towards acquisition of the KIADB Land, (b) making payments to SREPL and its Affiliates, (c) construction and development on the KIADB Land and/or (d) for operations of the Company;

in each case, prior to the issuance of the relevant Put Option Exercise Notice;

B. In respect of Land Trigger Event, the aggregate of:

- (i) amounts discharged by the Acquirer (and/or its Affiliates) (whether towards subscription or purchase of Securities) under the SSPA and/or the Call Option Agreement;
- (ii) any inter-corporate deposit or shareholder loan extended by the Company to the Indus Group, which remains outstanding; and
- (iii) any other amounts invested or advanced by the Acquirer (and/or its Affiliates) to make payments due by the Company to Governmental Authorities, including KIADB, provided such amounts (a) do not exceed INR 10,00,00,000 (Indian Rupees

Ten Crores) and (b) are not incurred by the Company to procure any approvals for development of the KIASB Land, including, building plans, master plans for the commencement of construction;

provided that, for the purposes of computing the Investment Amount (in respect of both SIA Trigger Event and Land Trigger Event), amounts payable by the Acquirer (and/or its Affiliates) under the Call Option Agreement shall be deemed to have been paid as of the 1st (First) day from the date of receipt of the Provisional Letter of Allotment;

"IRR" means the annualized internal rate of return calculated on a cash-on-cash basis in accordance with the "XIRR" function in the most current version of the Microsoft Excel software (or such other version used by the Acquirer at its discretion). If the Microsoft Excel "XIRR" function is no longer in vogue at the time an IRR calculation is required under this Agreement, then the Acquirer shall select a substitute software program to calculate IRR;

"IT Act" means the Income-tax Act, 2001 (which, with effect from April 1, 2020, replaced and re-enacted the Income-tax Act, 1961), as amended from time to time, together with any statutory modification or re-enactment thereof, and references to the "IT Act" shall, where the context so requires, be construed as including references to the Income-tax Act, 1961 to the extent applicable to periods prior to April 1, 2020;

"IT Rules" means the Income-tax Rules, 2006 (which replaced the Income-tax Rules, 1962 with effect from April 1, 2006), as amended from time to time, together with any statutory modification or re-enactment thereof, and references to the "IT Rules" shall, where the context so requires, be construed as including references to the Income-tax Rules, 1962 to the extent applicable to periods prior to April 1, 2006;

"KIASB" means the Karnataka Industrial Areas Development Board;

"KIASB Land" means the contiguous land adjoining 100 (one hundred) acres located in Mithalalli Industrial Area, Mahatma Taluk, Kolar, Karnataka and which satisfies the following conditions, (a) the aforementioned land being allotted free from any encumbrance as of such date, and (b) such allotment being at a price not exceeding INR 2,20,00,000 (Indian Rupees Two Crores and Twenty Lakhs) per acre;

"KIASB Lease Deed" shall have the meaning ascribed to it in the SSPA;

"KYC Documents" means certified copies of an entity's or other investment vehicle's (a) structure chart; (b) certificate(s) of incorporation; (c) share registers; (d) list of all ultimate beneficial owners and controllers, including intermediary companies through which any ultimate beneficial owner exercises ownership or control, and (e) any other documents reasonably required by the Acquirer to meet its legal and regulatory obligations under Anti-Corruption Laws, Anti-Money Laundering Laws, and Sanctions Laws;

"Land Review" shall have the meaning ascribed to it under the SSPA;

"Land Review Satisfaction Notice" shall have the meaning ascribed to it under the SSPA;

"Land Trigger Events" collectively means the put option trigger events specified in Clauses 4.1.1 through 4.1.3;

"Letter of Allotment" means any letter, communication and/or correspondence received from KIASB granting or causing to grant allotment of the KIASB Land to the Company and shall include the Provisional Letter of Allotment;

"Mandatory Call Trigger" shall have the meaning ascribed to it under the Call Option Agreement;

"Option Closing" means consummation of the transactions contemplated in Clause 3.4 (Option Closing), including but not limited to the Transfer of the Option Securities by the Acquirer to SKEPL and payment of the Option ICD Consideration (along with applicable interest) in full;

"Option Closing Actions" shall have the meaning ascribed to the term under Clause 5.2;

"Option Closing Date" shall have the meaning ascribed to the term under Clause 5.1;

"Option Closing Due Date" shall have the meaning ascribed to the term under Clause 4.4.3;

"Option Consideration" means an amount in INR equal to $A + B - (C + D)$, where:

A = Investment Amount;

B = Applicable IRR Amount;

C = Indemnity pursuant to Clause 9 of the SSHA or Any Shortfall Payment pursuant to Clause 10 of the SSHA paid directly to the Acquirer (and not to the Company) and actually received by the Acquirer;

D = Interest/coupon paid by the Company in cash to the Acquirer and actually received by the Acquirer on Option Securities under inter-corporate deposit and shareholder loans extended by the Acquirer;

"Option ICD Consideration" means the portion of the Option Consideration set out in the Put Option Exercise Notice that is to be paid to the Acquirer and/or its Affiliates (as applicable) towards repayment of the outstanding inter-corporate deposit or shareholder loans extended by the Acquirer to the Company;

"Option Redemption Consideration" means the portion of the Option Consideration set out in the Put Option Exercise Notice that is to be paid to the Acquirer as (a) consideration for redemption of Option Securities (which are redeemable) that are to be redeemed as part of the Option Closing and (b) payment of unpaid and accrued coupon or interest on Option Securities;

"Option Sale Consideration" means the portion of the Option Consideration set out in the Put Option Exercise Notice that is to be paid to the Acquirer as consideration for Securities that are to be purchased by SKEPL as part of the Option Closing;

"Option Securities" means, any and all the Securities held by the Acquirer on the date of the Put Option Exercise Notice;

"Order" means any order, injunction, judgment, decree, ruling, or award of a court, arbitration body or panel, or other Governmental Authority;

"Party(ies)" shall have the meaning ascribed to it in the preamble to this Agreement;

"Person" means any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, society, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under Applicable Law;

"Put Closing Actions" shall have the meaning ascribed to it under Clause 5.7;

"Project" shall have the meaning ascribed to it in the MSFA;

"Provisional Letter of Assignment" shall have the meaning ascribed to it in the MSFA;

"Put Option" shall have the meaning ascribed to it under Clause 3.1;

"Put Option Exercise Notice" shall have the meaning ascribed to it under Clause 4.4;

"Put Option Trigger Event" means:

A. in respect of the SHA Trigger Event, the earlier of:

- (i) the date that is 4 (four) years after the date of registration of KLADB Lease Deed; and
- (ii) the date upon which the Acquirer ceases to be Controlled by the funds, collective investment schemes, trusts and partnerships directly and indirectly owned, managed, advised and/or Controlled by Blackstone Inc. or any of its Affiliates; and

B. in respect of Land Trigger Events, the earlier of:

- (i) the date that is 15 (fifteen) months from the Duration Date; provided however that, if the Acquirer has issued a Land Review Satisfaction Notice, and the Company has received the Balance Demand, earlier than the aforesaid 15 (fifteen) month period has expired, then the Put Option Trigger Deadline shall be extended until the earlier of (a) payment of the Balance Demand to KLADB and (b) the deadline for payment of the Balance Demand to KLADB; and
- (ii) receipt of KLADB Lease Deed by the Company;

"Put Option Trigger Events" shall collectively mean the Land Trigger Events and the SHA Trigger Event;

"Redemption Loan" shall have the meaning ascribed to it under paragraph 3 of Part B of SCHEDULE II;

"Refund Advance Payment" shall have the meaning ascribed to it under Clause 3.A;

"Relative" shall have the meaning as set forth in Section 2(77) of the Act and shall include the meaning ascribed to it under Accounting Standard 18 prescribed by the Institute of Chartered Accountants of India or other successive accounting standard prescribed under Applicable Law;

"Representative" shall have the meaning ascribed to it in the MSFA;

"Requisite Resource" shall have the meaning ascribed to the term under Clause 7.2;

"Sanctioned Jurisdiction" shall have the meaning ascribed to it in the MSFA;

"Sanctions Laws" shall have the meaning ascribed to it in the MSFA;

"Sanctioned Person" shall have the meaning ascribed to it in the MSFA;

"Sativa Non-Resource Persons" means SEPL and any direct or indirect former, current or future shareholder, director, officer, employee, or Affiliate of SEPL; provided that, if any obligations under this Agreement are assigned to SEPL in accordance with the terms of Clause 15.8, "Sativa Non-Resource Persons" shall mean SEPL and any direct or indirect former, current or future shareholder, director, officer, employee, or Affiliate of SEPL in respect of such assigned obligations;

"SDPL" means Sathya Developers Private Limited;

"Securities" means ordinary equity shares, and any options, warrants, convertible shares, bonds, notes, debentures (including the optionally convertible debentures, if any) and other equity and debt securities of whatever kind of any Person that are directly or indirectly convertible into or exercisable or exchangeable for any equity share, in each case of the Company;

"Seller Group" shall collectively mean Darshita and SDPL;

"Shareholders' Agreement" means the shareholders' agreement dated July 16, 2021 entered into by and between the Company, Seller Group and the Acquirer;

"SMA Trigger Event" means the put option trigger event set out in Clause 4.1.4;

"SMC" shall have the meaning ascribed to it under Clause 9.1.1;

"SDPL Bank Account" means the dematerialized account of SDPL, as notified by SDPL to the Acquirer in writing at least 5 (five) Business Days prior to the Option-Closing Date;

"SDPL Warranties" shall have the meaning ascribed to it under Clause 8.2;

"SSPA" shall have the meaning ascribed to it under Recital B;

"SSPA Closing Date" means the Closing Date as defined under the SSPA;

"Stamp Duty Challen" shall have the meaning ascribed to it under paragraph 1.3 of PART A of SCHEDULE II;

"Tax" or collectively "Taxes" or "Taxeses" includes any and all taxes, assessments, duties, impositions, liabilities and other governmental charges by any Governmental Authority, including, without limitation, taxes on income, capital gains, profits, salaries, sales, wealth, use and occupation, and value added, ad valorem, transfer, franchise, withholding, payroll, employment, excise, stamp duty and property taxes, together with all interest, penalties and additions imposed with respect to such amounts by any Governmental Authority in any jurisdiction;

"Third Party" means a Person who is not a party to this Agreement;

"Transaction" means the transactions effected (or intended to be effected) by and contemplated in the Transaction Documents;

"Transaction Documents" means, collectively, this Agreement, Shareholders' Agreement, SSPA, Call Option Agreement and any other agreement or document designated in writing as a Transaction Document by the Acquirer on one hand, and SDPL on the other hand;

"Transfer" (including, with correlative meaning, the terms "Transferred by" and "Transferability") means to transfer, sell, assign, encumber, place in trust (voting or otherwise), exchange, gift or transfer by operation of Applicable Law or in any other way, dispose of, whether or not voluntarily;

"Unilateral COC Event" means the holding of more than 49% (forty nine percent) of the total equity shares of Company by the Acquirer, in each case in the absence of: (i) written consent of Seller Group, (ii) written permission from KIADB to effect the acquisition of equity shares of the Company by the Acquirer (or its nominee), and (iii) conveyance of the KIADB Land to the Company through a registered sale deed; provided that any increase in holding is a consequence

of the occurrence of an "Outstanding Shareholder Event of Default" under the Shareholders' Agreement shall not be considered a Unilateral COC Event; and

"**Valuation Report**" means (i) a valuation report, from a chartered accountant of repute with respect to the fair market value of the Option Securities as of a date as computed in accordance with Rule 17 of the IT Rules read with the IT Act, and (ii) a valuation report, from a chartered accountant or a merchant banker registered with the Securities and Exchange Board of India or a practicing cost accountant with respect to the fair market value of the Option Securities as of the Option Closing Date as computed in accordance with the Foreign Exchange Management (Non-Debt Instruments) Rules, 2019 read with the Foreign Exchange Management Act, 1999.

1.2 Interpretation

In this Agreement, unless the context otherwise requires:

- 1.2.1 the terms "Clause" and "Schedule" refer to the specified Clause including their sub-clauses or Schedules of this Agreement;
- 1.2.2 reference to an "amendment" includes a supplement, modification, variation, replacement or re-enactment and "amended" is to be construed accordingly;
- 1.2.3 any reference to "writing" shall include printing, typing, lithography, e-mails or transmissions by facsimile and other means of reproducing words in visible form, but excluding text messaging via mobile phones and WhatsApp or any similar messages;
- 1.2.4 any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 shall have the meaning assigned to it in such definition throughout this Agreement unless the NPFA, unless the contrary is expressly stated or the contrary clearly appears from the context;
- 1.2.5 if any provision in this Clause 1 (Definitions and Interpretation) is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement;
- 1.2.6 reference to any document includes an amendment or supplement to, or replacement or variation of, that document, but disregarding any amendment, supplement, replacement or variation made in breach of this Agreement under that document;
- 1.2.7 reference to any legislation or statute or statutory provision shall include a reference to that legislation, statute or statutory provision as amended, modified, supplemented, consolidated or replaced from time to time (whether before or after the Execution Date) and include all statutory instruments, rules, regulations or orders made pursuant to that legislation, statute or statutory provision and any subordinate legislation made under that legislation, statute or statutory provision;
- 1.2.8 reference to Recitals, Clauses, Annexures, Paragraphs, Preamble and Schedules are to Recitals, Clauses, Annexures, Paragraphs of Schedules, Preamble and Schedules of this Agreement, all of which form a part of this Agreement;
- 1.2.9 the ejusdem generis (of the same kind) rule will not apply to the interpretation of this Agreement. Accordingly, references to "include" or "including" are to be construed without limitation;
- 1.2.10 the index, table of contents, headings, subheadings, titles and subtitles are inserted for convenience only and shall not affect the construction or interpretation of this Agreement;

- 1.2.11 the Parties have participated jointly in the negotiation and drafting of this Agreement. In the event any ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by all Parties, and no presumption or burden of proof shall arise favoring or disfavoring any Party by virtue of the authorship of any provision of this Agreement;
- 1.2.12 the Recitals and the Schedules hereto shall constitute an integral part of this Agreement;
- 1.2.13 the terms "hereof", "herein", "hereby", "herein" and derivative or similar words refer to this entire Agreement or specified Clause, Schedule and/or Annexure of this Agreement, as the case may be;
- 1.2.14 the words "directly or indirectly" include directly or indirectly through one or more intermediary Persons or through contractual or other legal arrangements, and "direct or indirect" have the correlative meanings;
- 1.2.15 time is of the essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of the essence;
- 1.2.16 unless otherwise specified, references to days, months and years are to calendar days, calendar months and calendar years, respectively;
- 1.2.17 when any number of days is prescribed in this Agreement, the same shall be reckoned exclusive of the first and inclusive of the last day. For instance, if the number of days prescribed is 30 (thirty) days from 1 July then the computation of 30 (thirty) days shall commence from 2 July and end on 31 July; and
- 1.2.18 words of any gender are deemed to include the other gender; words using the singular or plural number also include the plural or singular number, respectively.

2. ACTIONS ON THE EXECUTION DATE

2.1 On or any time prior to the Execution Date

- 2.1.1 SRIPL shall deliver to the Acquirer, a certified true copy of the resolution passed by its board of directors (and where applicable, shareholders), authorizing the execution, delivery and performance of this Agreement and authorizing its officer(s) to execute this Agreement on its behalf; and
- 2.1.2 the Acquirer and the Company shall deliver to SRIPL, a certified true copy of the resolution passed by their respective boards of directors, authorizing the execution, delivery and performance of this Agreement and authorizing their respective officer(s) to execute this Agreement on their behalf.

3. GRANT OF PUT OPTION

- 3.1 **Put Option.** SRIPL agrees that Acquirer has an irrevocable right and option (but not an obligation) requiring SRIPL to (a) purchase, and/or cause the Company to redeem the Option Securities (as elected by the Acquirer in the Put Option Exercise Notice); and (b) cause the Company to repay all loans and inter-corporate deposits made by the Acquirer, for an aggregate consideration equal to the Option Consideration ("Put Option"), in accordance with the provisions of Clause 4 (Exercise of Option) and Clause 5 (Option Closing and Put Closing Actions).
- 3.2 In the event a Put Option Exercise Notice has been served and SRIPL has failed to consummate all of the actions required from SRIPL and Company on the Option Closing Date on or prior to

the Option Closing Due Date, the Acquirer shall have the right to Transfer and assign its Put Option to any Third Party, along with the Transfer of its Securities held by it in the Company without the consent of SREPL or the Company, and upon such assignment, the assignee shall have the right to exercise the Put Option. It is clarified that the Acquirer shall have the right to Transfer the Put Option to any of its Affiliates at any point in time along with Transfer of Securities without the consent of SREPL or the Company. In the event such Affiliate ceases to be an Affiliate of the Acquirer, then the Acquirer shall cause such Affiliate to forthwith Transfer the rights and obligations under this Agreement to the Acquirer or an Affiliate of the Acquirer, and the Acquirer (or its Affiliate, as applicable), shall continue to be bound by the terms of this Agreement.

4. EXERCISE OF OPTION

4.1 Put Option Trigger Events. The Acquirer may, at its sole discretion and subject to Clause 4.3, exercise the Put Option, upon the occurrence of any of the following events:

- 4.1.1 The Acquirer is not, at its sole discretion, satisfied with the findings of the Land Review conducted in per the terms of the SPPA;
- 4.1.2 The Acquirer has not completed Land Review to its satisfaction, before the Balance Demand is due and payable (as may be read with extensions if any granted by KIADB);
- 4.1.3 The Company does not receive a Provisional Letter of Allotment within 5 (six) months after execution of the SPPA;
- 4.1.4 The Company does not receive a Final Letter of Allotment within 13 (thirteen) months after execution of the SPPA;
- 4.1.5 KIADB, either in part or full, terminates, cancels or revokes the Letter of Allotment; and/or
- 4.1.6 An Exiting Shareholder Event of Default under the Shareholders' Agreement.

4.2 The Parties agree and acknowledge that the right of the Acquirer to trigger the Put Option is independent of the Seller Group, SREPL and/or Company's obligation to procure the allotment of the KIADB Land, and SREPL acknowledges that it shall not have any right to dispute the occurrence of any Put Option Trigger Events on account of default of the Company or otherwise.

4.3 Conditions and Restrictions on exercise of Put Option

4.3.1 Conditions and Restrictions applicable to SPPA Trigger Event. Upon the occurrence of an SPPA Trigger Event, the Acquirer shall be entitled to exercise the Put Option under Call Option, in any order or combination, at its sole discretion; provided that:

- (a) where the SPPA Trigger Event has occurred after the occurrence of a Mandatory Call Trigger, the Acquirer shall necessarily exercise its Call Option;
- (b) where the Acquirer has exercised its Call Option (whether pursuant to Clause 4.3.1(a) or otherwise) and the Call Option has not been consummated within the timelines specified in the Call Option Agreement.

A. solely on account of a default of the Seller Group (including non-compliance or failure to refund any Advance Payment under the Call Option Agreement or any inter-corporate deposit provided by the Acquirer or its Affiliates to the Seller Group or its Affiliates), the Acquirer shall

continue to have the right to exercise the Put Option in respect of the SRA Trigger Event; or

- B. solely on account of a default of the Acquirer, the Acquirer's right to exercise the Put Option in respect of the SRA Trigger Event shall stand in abeyance until the date of consummation of the Call Option; or
- C. for any other reason, the Acquirer's right to exercise the Put Option in respect of the SRA Trigger Event shall stand in abeyance until the date of consummation of the Call Option.

It is certified that during the relevant period of abeyance under sub-clauses (B) and (C) above, (x) the Acquirer shall not be entitled to issue a Put Option Exercise Notice in respect of the SRA Trigger Event; and (y) the Applicable IRR Amount shall not accrue for the duration of the abeyance period.

4.3.2 Conditions and limitations applicable to Land Trigger Events. In respect of Land Trigger Events, the Acquirer's right to exercise the Put Option shall cease in the following circumstances:

- (a) upon the occurrence of a Unilateral COC Event, with effect from the date of such occurrence; and
- (b) in case the Company has lost the allotment of KLAIRB1 and (including through revocation, withdrawal and/or cancellation of the Letter of Allotment) on account of consummation of the Call Option.

4.4 Put Option Exercise Notice. Subject to the provisions of Clause 4.3 above, the Acquirer may exercise the Put Option at its sole discretion, upon occurrence of any Put Option Trigger Event, but prior to the relevant Put Option Trigger Deadline, by issuing a written notice ("Put Option Exercise Notice") to SKIPP, in the format provided under **SCHEDULE III**. The Put Option Exercise Notice shall inter alia specify:

- 4.4.1 the relevant Put Option Trigger Event(s) in which the Put Option Exercise Notice has been issued;
- 4.4.2 the total number of Option Securities held by the Acquirer (and/or its Affiliates);
- 4.4.3 the mode of exercise of Put Option elected by the Acquirer (i.e., through purchase and/or redemption of the Option Securities);
- 4.4.4 the Option Consideration payable and the manner of payment of such Option Consideration, including the applicable Option Redemption Consideration, Option Sale Consideration, Option ECD Consideration, and the Refund Advance Payment, as applicable;
- 4.4.5 deadline to consummate the Option Closing Actions, which shall be earlier of: (a) 5 (five) Business Days prior to the date when the Balance Demand is due and payable to KLAIRB1 or (b) expiry of 40 (forty) days after the receipt of the Put Option Exercise Notice ("Option Closing Due Date"); and
- 4.4.6 the bank account details of the Acquirer ("Designated Bank Account").

4.5 The aggregate of the Refund Advance Payment, Option ECD Consideration, Option Redemption Consideration and Option Sale Consideration will be equal to and set off the Option

Consideration. For the avoidance of doubt, the Acquirer shall have the sole discretion to determine and allocate the Option Consideration (as reduced for the Refund Advance Payment) among the Option Sale Consideration, Option Redemption Consideration and Option KCD Consideration.

- 4.6 Upon issuance of the Put Option Exercise Notice, SRIPL shall (a) purchase and/or cause the Company to redeem (as elected by the Acquirer, in the Put Option Exercise Notice) the Option Securities specified in the Put Option Exercise Notice and pay (or cause to be paid) the relevant Option Redemption Consideration and/or the Option Sale Consideration to the Acquirer, (b) invest necessary funds in the Company to ensure that the Company repays the Option KCD Consideration to the Acquirer, and (c) cause the Seller Group to pay the Refund Advance Payment, in each case towards and to full satisfaction of the Option Consideration and on or prior to the Option Closing Due Date.
- 4.7 The Company shall undertake corporate actions as well as provide necessary support to SRIPL to inflate Redemption Loan and/or KCD Repayment Loan to complete Option Closing Actions prior to the Option Closing Due Date.
- 4.8 If any Consents or Governmental Approvals are required to give effect to Option Closing, SRIPL shall obtain the same, in a timely manner and in compliance with Applicable Laws, and shall copies of such approvals received with the Acquirer. All amounts, penalties and costs payable to KIAMB to give effect to Option Closing or in obtaining consent / waiver from KIAMB, shall be borne by SRIPL; and any other costs of Consents or Governmental Approvals required to give effect to Option Closing shall be borne by the Acquirer. The Option Closing Due Date shall be automatically extended for a period not exceeding 30 (thirty) days in order for SRIPL to obtain such Governmental Approvals (a) subject to SRIPL making best efforts to obtain such Governmental Approvals; and (b) provided that such extension will not be applicable for any approval required in connection with the maximum price that may be payable by a resident to a non-resident or foreign owned or controlled company, including on account of any assistance by SRIPL that the payment of the Option Consideration requires a Governmental Approval. Any such extended date shall then be deemed to be the Option Closing Due Date.

5. OPTION CLOSING AND POST CLOSING ACTIONS

- 5.1 Subject to Clauses 4.6 and 4.8, the Option Closing shall take place, on a date decided by the Acquirer, at the registered office of the Company, or such other place as may be mutually decided by the Parties ("**Option Closing Date**"). Upon the occurrence of Option Closing, SRIPL and/or Company shall not have any recourse to the Acquirer (including to its directors, advisors, employees) for any acts or omissions of the Company, or the Acquirer in relation to the Company, for the period prior to Option Closing Date.
- 5.2 In case the Acquirer has elected:
- 5.2.1 to require SRIPL to purchase the Option Securities, on the Option Closing Date, the relevant Parties shall do or cause to be done, each of the actions set out in Part A of SCHEDULE II (Option Transfer Actions); and/or
- 5.2.2 to require SRIPL to ensure the redemption by the Company of the Option Securities, on the Option Closing Date, the relevant Parties shall do or cause to be done, each of the actions set out in Part B of SCHEDULE II (Option Redemption Actions); and/or
- 5.2.3 to require SRIPL to ensure payment by the Company of the Option KCD Consideration on the Option Closing Date, the relevant Parties shall do or cause to be done, each of the actions set out in Part C of SCHEDULE II (KCD Repayment Actions); and/or

1.1.4 to receive the Refund Advance Payment, SRIFPL shall cause the Seller Group to pay their respective portions of the Refund Advance Payment;

which action(s) shall be given effect to simultaneously, and the Option Closing shall be deemed to have occurred when each of the respective actions set out therein have been completed. The actions set out in this Clause 1.2 shall collectively be referred to as "Option Closing Actions".

1.3 Simultaneously with Option Closing Actions, the Acquirer shall cause the resignation of Acquirer Directors from the Board.

1.4 If any Advance Payment has been paid by the Acquirer under the Call Option Agreement and, as of the date of the Put Option Exercise Notice, remains outstanding or unadjusted as per the terms of the Call Option Agreement, Seller Group shall, and SRIFPL shall cause the Seller Group to, refund such Advance Payment to the Acquirer as part of the Option Closing Actions on or prior to the Option Closing Date ("Refund Advance Payment").

1.5 If the Acquirer has elected to require SRIFPL to purchase the Option Securities in accordance with Clause 1.2.3, SRIFPL may nominate an Affiliate to purchase the Option Securities, subject to such Affiliate satisfying all Background Check Procedures of the Acquirer and such Affiliate being eligible under Applicable Law to acquire the Option Securities. For purposes of this Clause 1.5, "Background Check Procedures" shall include reviewing copies of the Affiliate's KYC Documents. The Acquirer shall, within a period of 7 (seven) days after such Affiliate submitting the KYC Documents to the Acquirer, either: (a) confirm that the Affiliate fulfills the KYC requirements of the Acquirer, and provide its approval for the Affiliate to acquire the Option Securities, pursuant to this Agreement; or (b) provide reasons for the Affiliate's failure to satisfy the KYC requirements of the Acquirer, and in such a case such Affiliate shall re-submit the KYC Documents to satisfy the know-your-customer requirements of the Acquirer, or nominate a different Affiliate (who is eligible under Applicable Law) to acquire the Option Securities, subject to such Affiliate completing the Background Check Procedures.

1.6 If the Transfer and/or redemption of the Option Securities, and repayment of the Option ICD Consideration is not capable of being consummated at the Option Consideration on account of restrictions under Applicable Law on the maximum price payable for purchase and/or redemption of securities from the Acquirer, such sale and purchase or redemption shall be consummated by SRIFPL, or the Company, as applicable, at the maximum price permitted to be paid under Applicable Law, and SRIFPL and Company unconditionally agree and undertake to indemnify and make good the difference between the Option Consideration and the maximum price permitted to be paid and actually received by the Acquirer under Applicable Law.

1.7 **Post-Closing Actions:** The relevant Parties shall do, or cause to be done, each of the actions set out below, as per the timelines set out therein ("Post-Closing Actions").

1.7.1 SRIFPL and/or the Company, as applicable, shall, within 7 (seven) days after the Option Closing Date: (a) deposit any Taxes withheld under this Agreement with the appropriate Governmental Authority, and provide evidence of the same to the Acquirer in relation to which such Tax has been withheld, along with a copy of the challan; (b) complete the filing of withholding Tax returns; (c) issue a withholding Tax certificate in Form 16A to the Acquirer; and (d) provide to the Acquirer, copies of applicable documents evidencing the completion of these actions; and

1.7.2 within 7 (seven) days after the Option Closing Date, SRIFPL and the Company shall file the necessary documents (including in relation to resignation of Acquirer Directors from the Board, forms and filings with the Governmental Authorities (including the Reserve Bank of India and Registrar of Companies), as may be necessary in connection with the actions set out in Clause 5.

6. DEFAULT IN CONSUMMATION OF PUT OPTION

6.1 In case of Land Trigger Events, if Put Option Exercise Notice has been issued and SREPL has not fully consummated the Option Closing Actions and the Balance Demand is due and payable, Acquirer shall, at its sole discretion, have the right to make payment to KJADB, through the Company, towards the Balance Demand or any other amounts demanded by KJADB so as to enable the Company to secure the beneficial rights over the KJADB Land.

6.2. Through:

6.2.1 the definition of Investment Amount for each Land Trigger Event shall include all such amounts paid to KJADB pursuant to Clause 6.1; and

6.2.2 Acquirer shall have the right to issue an addendum to the Put Option Exercise Notice, specifying the revised Option Consideration for Land Trigger Events and this shall be deemed to form part of the original Put Option Exercise Notice issued by the Acquirer. Issuance of an addendum will not modify the Option Closing Due Date as set out in the original Put Option Exercise Notice.

7. COVENANTS

Until the earlier of consummation of the Put Option as per this Agreement or the Put Option Trigger Deadline,

7.1 SREPL shall, and shall ensure that its Representatives shall, continue to comply with all Applicable Laws, including but not limited to the Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws;

7.2 SREPL shall ensure that until the termination of this Agreement in accordance with its terms, it shall maintain adequate measures to comply with and fulfil its obligations under this Agreement, including by maintaining sufficient financial resources and/or assets ("Required Reserves") or undertaking any measures to ensure that the Required Reserves are reasonably available/ accessible to it, and not voluntarily initiate any liquidation, winding up or similar insolvency proceedings in relation to itself;

7.3 If a Government Official becomes associated with, or obtains any legal or beneficial interest, whether direct or indirect, in the Agreement or any relationship contemplated herein, SREPL shall, upon becoming aware of any such association or interest, notify the Acquirer immediately so that the Acquirer may, and hereby reserves the right to, take whatever precautions and actions may be appropriate to comply with applicable Anti-Corruption Laws;

7.4 SREPL shall immediately notify the Acquirer upon becoming aware of any violation or potential violation of Anti-Corruption Laws, Sanctions Laws, or Anti-Money Laundering Laws by itself or by any of its Representatives, agree to cooperate with any compliance inquiry by the Acquirer in response to same, and agree to implement any remedial actions reasonably recommended by the Acquirer in order for SREPL to comply with Anti-Corruption Laws, Anti-Money Laundering Laws, and Sanctions Laws; and

7.5 SREPL agrees and undertakes that, during the term of this Agreement: (i) it will not take any action that would violate Anti-Corruption Laws or Anti-Money Laundering Laws; and (ii) it shall not conduct any business in or related to any Sanctioned Jurisdiction, or with or related to any Sanctioned Person, and will not take any other action in violation of Sanctions Laws.

8. REPRESENTATIONS AND WARRANTIES

8.1 **Acquirer Warranties:** The Acquirer hereby represents and warrants to SREPL that the

following warranties are true, correct and complete in all respects and not misleading in any respect as of the Exercise Date, and on the Option Closing Date, as if made on such dates, by reference to the facts and circumstances then existing:

8.1.1 it is duly organized and validly existing under the laws of the jurisdiction of its incorporation;

8.1.2 it has the power and authority to execute, deliver and perform the obligations set out in this Agreement, and the execution, delivery and performance by it of this Agreement will not:

(a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrances or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:

- (i) its Charter Documents;
- (ii) any Contract to which it is a party;
- (iii) any Consent, Governmental Approval or Order to which it is a party or by which it is bound; or
- (iv) any Applicable Law,

in each case, which would materially and adversely affect its ability to perform its obligations under the Transaction Documents; or

(b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy law applicable to it for the protection of debtors or creditors;

8.1.3 this Agreement, when executed, shall be duly and validly executed by it and shall constitute legal, valid and binding obligations, enforceable against it in accordance with terms of this Agreement; and

8.1.4 it has obtained all necessary corporate and other authorizations required under Applicable Law, to enter into this Agreement and to perform its obligations hereunder.

8.2 **SRIFL Warranty:** SRIFL hereby represents and warrants to the Acquirer and the Company that the following warranties are true, correct and complete in all respects and not misleading in any respect as of the Exercise Date and the Option Closing Date, as if made on such dates, by reference to the facts and circumstances then existing ("SRIFL Warranty"):

8.2.1 SRIFL has the power and authority to execute, deliver and perform the obligations set out in this Agreement, and the execution, delivery and performance by SRIFL of this Agreement will not:

(a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrances or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:

- (f) its Charter Documents;
- (g) any Contract to which it is a party;
- (h) any Consent, Governmental Approval or Order to which SREPL is a party or by which SREPL is bound; or
- (i) the Applicable Law;

in each case, which would materially and adversely affect its ability to perform its obligations under the Transaction Documents; or

- (v) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy law applicable to it for the protection of debtors or creditors;

8.1.2 This Agreement, when executed, shall be duly and validly executed by it and shall constitute legal, valid and binding obligations, enforceable against SREPL, in accordance with terms of this Agreement;

8.1.3 the Additional Warranties, as set out in SCHEDULE IV (Additional Warranties); and

8.1.4 SREPL has obtained all necessary corporate and other authorizations required under Applicable Law, to enter into this Agreement and to perform its obligations hereunder.

8.2 **Option Securities Warranties:** The Acquirer, Transferring the Option Securities, hereby represents and warrants to SREPL that the following warranties are true, correct and complete in all respects, from the date on which Acquirer has acquired the Option Securities and as of the Option Closing Date, as if made on such date, by reference to the facts and circumstances then existing:

8.2.1 Acquirer is the sole and absolute, legal and beneficial owner of the Option Securities; and

8.2.2 Option Securities being Transferred by the Acquirer, as per the terms of this Agreement, are free and clear of any Encumbrances.

8.4 **Warranties to be Independent:** Each of the representations and warranties provided under this Agreement shall be construed as a separate representation and warranty and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement.

8.5 **Knowledge:** None of the: (a) SREPL Warranties shall be treated as qualified by any actual, imputed or constructive knowledge on the part of the Company, the Acquirer and/or any of its Affiliates or its and their respective agents, Representatives, officers, employees or advisors, (b) warranties of the Acquirer shall be treated as qualified by any actual, imputed or constructive knowledge on the part of the Company, SREPL and/or any of its Affiliates or its and their respective agents, Representatives, officers, employees or advisors, and no such knowledge shall preclude any claim for breach of any warranty or operate so as to reduce any amount recoverable.

9. DISPUTE RESOLUTION

9.1 All disputes or differences regarding this Agreement shall be submitted to final and binding arbitration at the request of any of the disputing Parties upon written notice to that effect to the other Parties. In the event of such arbitration:

- 9.1.1 The arbitration shall be in accordance with the rules of the Singapore International Arbitration Centre ("SIAC"), in force at the relevant time (which is deemed to be incorporated into this Agreement by reference);
- 9.1.2 All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall be the seat of the arbitration;
- 9.1.3 The arbitration shall be conducted before a tribunal ("Tribunal") which consists of 3 (three) arbitrators. The claimant(s) shall nominate one arbitrator in the notice of arbitration. The respondent(s) shall nominate one arbitrator in its response to the notice of arbitration. The two party-nominated arbitrators shall then have 20 (twenty) days to agree, in consultation with the parties to the arbitration, upon the nomination of a third arbitrator to act as presiding arbitrator of the tribunal, failing which the President of SIAC shall select the third arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing);
- 9.1.4 The award rendered by the Tribunal shall, in addition to dealing with the merits of the case, fix the costs of the arbitration (which includes the Tribunal's fees) and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by each party;
- 9.1.5 Arbitration awards shall be reasoned awards and shall be final and binding on the disputing Parties;
- 9.1.6 The existence or subsistence of a dispute between the Parties, or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under the Agreement which are not in dispute, and the arbitrators shall give due consideration to such performance, if any, in making a final award; and
- 9.1.7 The provisions of Part I of the Indian Arbitration and Conciliation Act, 1996 (save and except Section 9 thereof) shall not be applicable to, and shall be specifically excluded from, any and all arbitration proceedings conducted in accordance with this Clause 9.
- 9.2 Nothing shall preclude a Party from seeking interim equitable or injunctive relief, or both. The pursuit of equitable or injunctive relief shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 9.

18. CONFIDENTIALITY AND NON-DISCLOSURE

- 18.1 Each Party shall keep all information and other materials passing between it and the other Parties in relation to the transactions contemplated by this Agreement and the other Transaction Documents and also in relation to the Company and/or the Acquirer and/or SHPL as well as the existence and the terms and conditions of this Agreement and the other Transaction Documents ("Information") confidential and shall not, without the prior written consent of the other Party, divulge the Information to any other Person or use the Information other than for carrying out the purposes of this Agreement and the other Transaction Documents except:
- 18.1.1 To the extent that such Information is in the public domain other than by breach of the Agreement and the other Transaction Documents;
- 18.1.2 To the extent that such Information is required or requested to be disclosed by any Applicable Law, the rules of any stock exchange or any applicable regulatory requirements or by any regulatory body to whose jurisdiction the relevant Party is subject or with whose instructions it is customary to comply under notice to the other

Party(ies);

- 10.1.3 To the extent required to be disclosed to any Governmental Authority for the purpose of enforcement of rights and obligations under this Agreement and the other Transaction Documents;
- 10.1.4 To Affiliates, employees, officers, directors, agents, insurers (including brokers and reinsurers) or professional advisers (including, without limitation, attorneys, accountants, consultants, appraisers, auditors and financial advisers) of any Party, subject to such Persons being subject to similar confidentiality obligations as set forth hereunder;
- 10.1.5 To the extent that any of such Information is later acquired by a Party from a source not obliged to any other Party hereto, or its Affiliates, to keep such Information confidential;
- 10.1.6 To the extent that any of such Information was previously known or already in the lawful possession of a Party, prior to disclosure by any other Party hereto;
- 10.1.7 To the extent that any information, similar to the Information, shall have been independently developed by a Party without reference to any Information furnished by any other Party hereto;
- 10.1.8 To any direct or indirect shareholders/equity holders in the Parties or potential sources of capital (including, without limitation, prospective limited partners and any related advisors, Affiliates or agents), subject to such Persons being subject to customary confidentiality obligations; and
- 10.1.9 To any potential transferee of Securities of the Company held by the Acquirer, subject to such Person being subject to similar confidentiality obligations as set forth hereunder.
- 10.2 No formal or informal public announcement or press release which makes reference to the Parties or the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued by any Party without the written consent of the other Parties.
- 10.3 If any of the Parties are obliged to make or issue any announcement or press release required by Law or by any stock exchange or Governmental Authority, it shall give the other Parties every reasonable opportunity to comment on any announcement or release before it is made or issued.
- 10.4 Each Party accepts and acknowledges that the undertakings set out in this Clause 10 are reasonable restrictions placed on the Parties and a breach thereof would cause loss and injury to the other Parties. Each Party agrees that, without prejudice to any other rights of the other Parties, each other Parties will be entitled to seek equitable remedy in the form of injunction or orders against the defaulting Party for any breach or attempted breach of this Clause 10.

11. NOTICES

- 11.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below:

11.1.1 If to **SUREPL:**

Address

Sureva Winant, Floor 4, No. 3 Uluwatu Road, Denpasar

-500061, India

E-mail secretariat@ashfrugroup.in

Attention Mr. Pradyumn Kumar Mishra

11.1.2 If to the Acquirer:

Address Tower 1, 25th Floor, 1401 B, One World Centre,
Sunapee Bapat Marg, Prabhadevi, Dada Road,
Mumbai- 400011, Maharashtra, India

E-mail Compliance@hlpwfs.com

Attention Legal Department

11.1.3 If to the Company (on or prior to Option Closing Date):

Same details as that of the Acquirer

11.1.4 If to the Company (post the Option Closing Date):

Same details as that of CREPE

Except as may be otherwise provided herein, all notices, requests, waivers and other communications made pursuant to this Agreement shall be in writing and signed by or on behalf of the Party giving it.

- 11.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 11, by giving the other Parties written notice of the new address in the manner set forth above.

12. **TERM AND TERMINATION**

- 12.1 This Agreement shall come into full force and effect from the Execution Date.

- 12.2 This Agreement may be terminated by written agreement of all the Parties.

- 12.3 This Agreement is co-terminus with the ISPA if the ISPA terminates prior to 'Closing' hereunder.

- 12.4 The right of the Acquirer to exercise:

12.4.1 the Put Option under this Agreement shall fall away on the expiry of the relevant Put Option Trigger Deadline; and/or

12.4.2 the Put Option in respect of the Land Trigger Events shall fall away in accordance with Clause 4.3.2 (if the events in Clause 4.3.2 occur earlier than the relevant Put Option Trigger Deadline in respect of Land Trigger Events);

provided that, in case the Acquirer has issued a Put Option Exercise Notice within the relevant Put Option Trigger Deadline, this Agreement cannot be terminated.

- 12.5 **Effect of Termination**

- 12.5.1 Save and except as otherwise expressly provided under this Agreement, the right to terminate this Agreement shall be without prejudice to all other rights and remedies available to a Party under Applicable Law.
- 12.5.2 The termination of this Agreement shall not relieve any Party of any obligations or liabilities accrued prior to the date of termination or affect the right of any Party (including remedies) accrued prior to the date of termination.
- 12.5.3 Clause 1 (Definitions and Interpretation), Clause 7 (Covenants), Clause 8 (Representations and Warranties), Clause 9 (Dispute Resolution), Clause 10 (Confidentiality and Non-Disclosure), Clause 11 (Notice), Clause 12.1 (Effect of Termination) and Clause 13 (Miscellaneous), shall survive the termination of this Agreement.

13. MISCELLANEOUS

13.1 Counterparts

This Agreement shall be executed simultaneously in any number of counterparts, each of which shall be deemed an original, but all of which will constitute one and the same instrument. The delivery of signed counterparts by electronic mail in "portable document format" ("pdf") shall be as effective as signing and delivering the counterpart in person.

13.2 Specific Performance

This Agreement (and each of the other Transaction Documents to which they are Parties) shall be specifically enforceable at the instance of any Party. The Parties agree that a non-defeating Party will suffer immediate, material, irreparable, continuing and irreparable damage and harm in the event of any material breach of this Agreement and the remedies at Law in respect of such breach will be inadequate and that such non-defeating Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under this Agreement (and each of the other Transaction Documents to which they are Parties) in addition to any and all other legal or equitable remedies available to it.

13.3 Entire Agreement

This Agreement together with the Recitals and all the Schedules hereto, together with the Transaction Documents, and any agreements between the Parties, executed in writing, on or about the date of this Agreement, constitute and contain the entire agreement and understanding between the Parties (including their Affiliates) with respect to the subject matter hereof and supersede all previous communications, negotiations, commitments, either oral or written between the Parties (including their Affiliates) in respect of the subject matter hereof. Parties agree that this Agreement is a "Transaction Document" as defined under the NSPA.

13.4 Governing Law and Jurisdiction

This Agreement shall be governed in all respects by the Laws of India (without reference to its conflict of Laws provisions) and subject to the provisions of Clause 9 (Dispute Resolution), the courts at Bangalore, India, shall have exclusive jurisdiction with respect to all matters set out herein.

13.5 Severability

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes,

or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties shall negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

15.6 Amendments

This Agreement shall be modified, amended or supplemented only by the mutual written agreement of the Parties. No change, alteration, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

15.7 Rights Cumulative

15.7.1 The rights, powers, privileges and remedies provided in this Agreement are cumulative and are without prejudice, independent of and in addition to, each other rights and remedies as the Parties may have at law or in equity or otherwise, including the right to seek damages, specific performance, rescission, restitution or other injunctive relief, none of which rights or remedies shall be affected or diminished thereby.

15.7.2 No failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.

15.7.3 No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

15.8 Reservation of Rights

No forbearance, indulgence or relaxation or inaction by any Party at any time to require performance of any of the provisions of this Agreement shall in any way affect, diminish or prejudice the right of such Party to require performance of that provision, and any waiver or acquiescence by any Party of any breach of any of the provisions of this Agreement shall not be construed as a waiver or acquiescence of any continuing or succeeding breach of such provisions, a waiver of any right under or arising out of this Agreement or acquiescence to or recognition of rights other than that expressly stipulated under this Agreement.

15.9 Successors and Assigns

15.9.1 Subject to Clause 3.2 and Clause 15.9.2, no rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties.

15.9.2 In the event of any restructuring of SDFL (including by way of merger, demerger, amalgamation or otherwise) where SDFL ceases to exist, SDFL shall have the right to assign its obligations under this Agreement to SDFL, subject to SDFL satisfying Regulated Revenue requirements as may be reasonably required by the Acquirer.

15.10 Costs and Expenses

15.10.1 Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the other Transaction Documents and the consummation of the transactions contemplated hereby and thereby, including without limitation all fees and expenses of legal and financial advisers, independent accountants and actuaries.

13.10.2 Stamp duty payable on the execution of this Agreement and the Transfer of the Option Securities shall be borne by SHEPL.

13.11 Government Approvals

If any action under this Agreement (including the payment of the Option Consideration) is subject to any Consent and/or third-party approvals (including, any Governmental Approvals), subject to Clause 4.8, SHEPL shall be responsible for obtaining such approvals; provided that, the Acquirer shall also have the right (but not the obligation) to apply for and obtain such approvals).

13.12 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

13.13 No Waiver

13.13.1 No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing. Any failure or delay by SHEPL, or the Acquirer, to require the enforcement of the obligations, agreements, undertakings or covenants in this Agreement shall not be construed as a waiver by SHEPL or the Acquirer of any of their rights, unless made in writing referring specifically to the relevant provisions of this Agreement and signed by a duly authorized Representative of SHEPL or the Acquirer, as the case may be. Any such waiver shall not affect in any way the validity of this Agreement or the right to enforce such obligation, agreement, undertaking or covenant at any other time. All rights and remedies existing under this Agreement, except as otherwise provided herein are cumulative to, and not exclusive of, any rights or remedies otherwise available.

13.13.2 Parties agree that consummation of transactions under this Agreement shall not be considered as a waiver of any rights of the Parties under any other Transaction Documents.

13.14 Further Assurances

The Parties shall execute other documents, cause meetings to be held, resolutions passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be reasonably necessary or in order to give full effect to this Agreement and the transactions contemplated under the Agreement, provided that no such document or agreement shall be inconsistent with the spirit and intent of this Agreement, and provided further that, this Clause 13.14 does not limit a Party's right to grant or withhold a consent, where such Party had full discretion to exercise such consent under the Transaction Documents.

13.15 No Recourse

13.15.1 Notwithstanding anything that may be expressed or implied in this Agreement under the other Transaction Documents, the Parties agree and acknowledge that neither SHEPL nor its respective Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or

equitable proceeding or by virtue of any Applicable Law) against any Blackstone Non-Recurring Person in connection with this Agreement (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Blackstone Non-Recurring Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the Company. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by SRSP, (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Blackstone Non-Recurring Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation. Notwithstanding anything to the contrary herein or any actions or omissions or representations of Blackstone Inc. or any of its Affiliates, in whatever capacity, it is understood that neither Blackstone Inc. nor any of its Affiliates is acting as a financial adviser, agent or underwriter to or otherwise on behalf of the Company or any of its respective Affiliates, unless retained to provide such services pursuant to a separate written agreement.

- 11.15.2 Other than as expressly provided in the Transaction Documents, Parties agree and acknowledge that neither the Acquirer nor any of its Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Satva Non-Recurring Person in connection with this Agreement and/or the other Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Satva Non-Recurring Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against SRSP. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by the Acquirer (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Satva Non-Recurring Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation, other than as expressly provided in the Transaction Documents.

(Following this page is the signature page.)

IN WITNESS WHEREOF, the Parties have entered into this Agreement the day and year first above written.

For and on behalf of MCMSPV INDUSTRIAL PARKS LIMITED



Name: E. A. G. G. G.

Title: Managing Director

IN WITNESS WHEREOF, the Parties have entered into this Agreement for day and year first above written.

For and on behalf of NATIVA REAL ESTATE PRIVATE LIMITED:



Name: ARVIND SINGH

Date: 20/08/2020

IN WITNESS WHEREOF, the Parties have entered into this Agreement the day and year first above written.

For and on behalf of FIDUCIA SOUTHCOAST FACILITIES PRIVATE LIMITED:



Name: PRASHANT KUMAR MISHRA

Title: Managing Director

Signature page to the put option agreement executed by and between Meridian Industrial Parks Limited, Active Fuel Gas Private Limited and Fluoride Facility Private Limited.

SCHEDULE 1 | SHAREHOLDING PATTERN ON EXECUTION DATE

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
Sativa Developments Private Limited	10,000	34%
Sativa Real Estate Private Limited	12,000	24%
Dandota Landed Property LLP	20,000	60%
Total	50,000	100%

SCHEDULE B | OPTION CLOSING ACTIONS

References to Option Securities in Part A, Part B and Part C below, shall themselves be read in conjunction with the Put Option Exercise Notice.

Part A | Option Transfer Actions

1. SREPL shall:
 - 1.1 have:
 - (a) complied with the covenants and obligations under this Agreement;
 - (b) confirmed that SREPL Warranties are accurate as of the Option Closing Date; and
 - (c) obtained all Consents and third-party approvals (including, any Governmental Approvals) required in relation to the Option Closing and costs for the same shall be borne by the relevant Party in the manner agreed in Clause 4.8 of the Agreement;
 - 1.2 remit the Option Sale Consideration in immediately available cleared funds, by way of a wire transfer, through normal banking channels, to the Designated Bank Account (subject to deduction of applicable withholding Taxes), and provide a copy of such wire remittance instructions used by SREPL; and
 - 1.3 provide the Acquirer a copy of the stamp duty payment receipt, evidencing the payment of stamp duty required for the Transfer of the Option Securities to SREPL, ("Stamp Duty Challen").
2. The Company shall have procured the Valuation Report.
3. Simultaneously with the remittance of the Option Sale Consideration, the Acquirer shall: (a) deliver signed delivery instruction slips to its depository participant to debit to the Acquirer's deposit account and credit to SREPL, Deposit Account (and deposit account of the nominee of SREPL) with the Option Securities; and (b) provide a copy of the statement issued by its depository participant which records the debit of the Amortised Option Securities from its deposit account.
4. The Company shall:
 - 4.1 convene a meeting of its Board and undertake to approve and take on record the Transfer of the Option Securities to SREPL, and its nominee, and provide a certified true copy of the minutes of such meeting to the Acquirer; and
 - 4.2 update its register of shares and debentures to record the sale of the Option Securities to SREPL.

Part B | Option Redemption Actions

1. SREPL shall have:
 - (a) complied with the covenants and obligations under this Agreement;
 - (b) confirmed that SREPL Warranties are accurate as of the Option Closing Date; and
 - (c) obtained all Consents and third-party approvals (including, any Governmental Approvals) required in relation to the Option Closing and costs for the same shall be borne by the relevant

Party in the manner agreed in Clause 4.8 of the Agreement.

2. The Company shall have procured the Valuation Report under the IT Act.
3. The Company shall, convene a meeting of its Board and its shareholders, as applicable, to approve: (a) the procurement of an unsecured loan from SRIFPL for an amount equal to the Option Redemption Consideration ("Redemption Loan"), and (b) the redemption of the Option Securities. The Parties agree that the Redemption Loan shall not be repayable, nor shall SRIFPL be entitled to recall the Redemption Loan, until after the Option Closing Date.
4. SRIFPL shall grant the Redemption Loan to the Company.
5. The Company shall immediately, upon receipt of the Redemption Loan redeem the Option Securities for the Option Redemption Consideration after withholding and deducting applicable Taxes.
6. The Company shall:
 - (i) convene a meeting of its Board and its shareholders to approve and undertake the redemption of the Option Securities, and provide a certified true copy of the minutes of such meeting to the Acquirer; and
 - (ii) update its register of debenture holders to record the redemption of the Option Securities and make necessary filings with Governmental Authorities.

Part C) ECD Repayment Actions

1. SRIFPL shall have:
 - (a) complied with the covenants and obligations under this Agreement;
 - (b) confirmed that SRIFPL Warranties are accurate as of the Option Closing Date; and
 - (c) obtained all Consents and third-party approvals (including, any Governmental Approvals) required in relation to the Option Closing and costs for the same shall be borne by the relevant Party in the manner agreed in Clause 4.8 of the Agreement.
2. The Company shall, convene a meeting of its Board and its shareholders, as applicable, to approve: (a) the procurement of an unsecured loan from SRIFPL for an amount equal to the Option ECD Consideration ("ECD Repayment Loan"), and (b) payment of Option ECD Consideration. The Parties agree that the ECD Repayment Loan shall not be repayable, nor shall SRIFPL be entitled to recall the ECD Repayment Loan, until after the Option Closing Date.
3. SRIFPL shall grant the ECD Repayment Loan to the Company.
4. The Company shall immediately, upon receipt of the ECD Repayment Loan, make payment of the Option ECD Consideration to the Acquirer after withholding and deducting applicable Taxes.
5. The Company shall provide a certified true copy of the minutes of the aforementioned meetings to the Acquirer.

SCHEDULE III | FORMAT OF PUT OPTION EXERCISE NOTICE

[to be printed on the letterhead of the Acquirer]

Date: _____

PUT OPTION EXERCISE NOTICE

To,

Satva Real Estate Private Limited

[address of SREPL]

Attention: [x]

Re: Put Option Exercise Notice issued pursuant to the put option agreement dated July 18, 2024 ("Put Option Agreement") entered into between Harbison Industrial Parks Limited ("Acquirer"), Vision Sathbhak Facilities Private Limited ("Company"), and Satva Real Estate Private Limited ("SREPL")

- Capitalized terms used but not defined in this Put Option Exercise Notice shall have the meaning set forth in the Put Option Agreement.
- Pursuant to Clause 4 of the Put Option Agreement, we are exercising our Put Option due to the occurrence of the following Put Option Trigger Event:

(i) **[insert details of the specific Put Option Trigger Event to be included]**.

- We hold **[insert details of all securities held by Acquirer]** in the Company.
- On or before [insert date falling within 60 (sixty) days after this notice] ("Scheduled Closing Date"), you are required to purchase the Option Securities as follows:

Details of securities (number and class)	Proposed purchasing entity	Option Sale Consideration payable as of Scheduled Closing Date**

- On or before the Scheduled Closing Date, you are required to redeem the Option Securities as follows:

Details of securities (number and class)	Option Redemption Consideration payable as of Scheduled Closing Date**

** In the event Option Closing Date is delayed beyond the Scheduled Closing Date, the Option

Consideration amount will increase and be computed as per the Put Option Agreement (and the Option Sale Consideration and Option Redemption Consideration shall increase proportionally).

6. On or before the Scheduled Closing Date, you are required to make payment of the Option KCD Consideration, which as of the date hereof is [●] of principal and [●] as of date hereof. [Additional interest on the Option KCD Consideration for each day up to the Scheduled Closing Date is as set out in Annexure [●]]. In the event Option Closing Date is delayed beyond the Scheduled Closing Date, the Option KCD Consideration amount will increase and be computed as per its terms.
7. On or before the Scheduled Closing Date, you are required to return DGR [●] paid as Advance Payment under the Call Option Agreement.
8. Our Designated Bank Account details are as follows:

Account Number	[●]
Name	[●]
Branch	[●]
IFSC Code	[●]

9. In respect of the Option Securities being purchased, fair valuation report under [insert relevant provisions of Income Tax Act] and Foreign Exchange Management (Non-Debt Instruments) Rules, 2019 is hereby annexed as Annexure I.
10. We request you to complete all actions required to be undertaken by you, to achieve the transactions set out in Clause 5 read with SCHEDULE II of the Put Option Agreement.
11. Clause 9 (Dispute Resolution), 10 (Confidentiality and Non-Disclosure) and 11 (Miscellaneous) of the Put Option Agreement shall apply *mutatis mutandis* to this Put Option Exercise Notice.

For and on behalf of [name of the person(s) exercising the put option],

Authorized Signatory

SCHEDULE IV (ADDITIONAL WARRANTIES)

Compliance with Anti-Corruption Laws, Sanctions Laws and Anti-Money Laundering Laws

1. SRIFL, or any of its Representatives and Affiliates connected to the acquisition, construction, development, ownership and maintenance of the Project, have not at any time taken, any action, directly or indirectly, or failed to take any action which constitutes a violation of any Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.
2. Neither SRIFL, nor any of its Representatives have made, offered to make, or promised to make or caused to be made, directly or indirectly, any Improper Payments: (a) to or for the use or benefit of any Government Official, due to any other Person either for an advance or reimbursement, with knowledge or intent to know that any part of such Improper Payment would be directly or indirectly given or paid by such other Person, or would be reimbursed by such other Person for payments previously made, to any Government Official; (x) to any other Person or entity to obtain or keep business or to secure some other improper business advantage; or (d) the payment of which would otherwise be in violation of applicable Anti-Corruption Laws.
3. SRIFL, or any of its Representatives is not a Government Official or a Governmental Authority.
4. No Government Official is associated with SRIFL or has any legal or beneficial interest in the Transaction or any payments to be made in connection with the Transaction.
5. Neither SRIFL, nor any of its Representatives is currently or has been: (a) targeted under any Sanctions Laws; or (b) has engaged in any business activities with or for the benefit of any Persons that are the subject of Sanctions Laws (including any Sanctioned Person)-or involving a Sanctioned Jurisdiction, in violation of applicable Sanctions Laws.
6. The Option Consideration to be paid by SRIFL, under this Agreement is not derived from and does not reflect the proceeds of any illegal activity or conduct, nor does it otherwise constitute the proceeds of crime.
7. SRIFL, has not used, employed, transacted in, or transferred any funds in connection with the Transaction that are derived from or reflect the proceeds of any illegal activity or conduct, or in any other manner that would violate Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.
8. SRIFL, and its Representatives are in compliance with all applicable Anti-Money Laundering Laws.
9. No proceeding by or before any Governmental Authority involving either SRIFL, or any of its Representatives related to a violation or potential violation of Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws, is pending or has been threatened.
10. SRIFL, has not made a voluntary, directed or involuntary disclosure to any Governmental Authority with respect to any alleged act or omission relating to any non-compliance with any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.



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Government of Karnataka

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Certificate No.	: IN 1034408000412020V
Certificate Issued Date	: 26-Jan-2026 3:24 PM
Account Reference	: MONACO (Fly)kalatada-104 TORAYKA-07
Unique Doc. Reference	: SUBSILKAWAPCL08908181089017
Purchased by	: SATTVA DEVELOPERS PRIVATE LTD - SATTV
Description of Document	: ATTORNEY'S Agreement on its records or MCA - Sale of immovable property, possession of the property is not delivered
Property Description	: SECURITIES SUBSCRIPTION AND PURCHASE AGREEMENT
Consideration Price / Market Value (Rs.)	: \$7,36,00,000 (Eighty Seven Crore only)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATTVA DEVELOPERS PRIVATE LIMITED
Stamp Duty Paid By	: SATTVA DEVELOPERS PRIVATE LIMITED
Stamp Duty Amount (Rs.)	: 28,008 (Twenty Thousand only)



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Stacy M. Smith

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28. The process of removing the negative is another aspect of the dualization.

It is one of the few species of grass in the genus where the chromosome number is



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Certificate No.	: IN KARNAM 177386617
Certificate Issued Date	: 29-Jun-2025 01:20 PM
Account Reference	: NCMAC (P) Lakshmi DCM TOWN KA-04
Unique Cert. Reference	: SUBB KAKASFCLOSRDPRD/081877
Purchased by	: SATYAM DEVELOPERS PRIVATE LIMITED
Description of Document	: Article 28 Indemnity Bond (As per Article 47)
Property Description	: SECURITIES SUBSCRIPTION AND PURCHASE AGREEMENT
Consideration Price (Rs.)	: 87,00,00,000 (Eighty Seven Crore only)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATYAM DEVELOPERS PRIVATE LIMITED
Stamp Duty Paid By	: SATYAM DEVELOPERS PRIVATE LIMITED
Stamp Duty Amount (Rs.)	: 500 (Five Hundred only)



Please write or type below the line



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Certificate No.	: BKACD488020641608Y
Certificate Issued Date	: 25-Jun-2018 11:08 AM
Account Reference	: KCHACC (P)KARNATAKA COM 10MNYKA-6Y
Unique Doc. Reference	: BUBB KANAKPCL000000400004000Y
Purchaser(s)	: SATTVA DEVELOPERS PRIVATE LIMITED
Description of Document	: ASSESSMENT Agreement (in any other words)
Property Description	: SECURITIES SUBSCRIPTION AND PURCHASE AGREEMENT
Consideration Price (Rs.)	: 0 (Zero)
First Party	: HORIZON INDUSTRIAL PARKS LIMITED
Second Party	: SATTVA DEVELOPERS PRIVATE LIMITED
Stamp Duty Paid By	: SATTVA DEVELOPERS PRIVATE LIMITED
Stamp Duty Amount (Rs.)	: Nil (Not Hundred and 00/100)



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DATED July 18, 2024

SHARE SUBSCRIPTION AND PURCHASE AGREEMENT

AMONGST

SATTVA DEVELOPERS PRIVATE LIMITED

AND

SATTVA REAL ESTATE PRIVATE LIMITED

AND

DARSHITA LANDED PROPERTY LLP

AND

HORIZON INDUSTRIAL PARKS LIMITED

AND

VISION SOFTECH FACILITIES PRIVATE LIMITED

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SHARE SUBSCRIPTION AND PURCHASE AGREEMENT

This SHARE SUBSCRIPTION AND PURCHASE AGREEMENT is executed on July 18, 2020 (the "Execution Date") at Bengaluru, India, by and amongst:

1. **HOURLTON INDUSTRIAL PARKS LIMITED**, a public company incorporated under the laws of Companies Act, 1956 and having its registered office at One World Centre, Unit No 1041B, Tower 1, 841, Jyotiya Textile Mills, Vasupati Nagar Marg, Marolli City, Mumbai, Maharashtra, India - 400033 and permanent account number as AACCC2346P (hereinafter referred to as "Investor", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the **FIRST PART**;
2. **SATTVA DEVELOPERS PRIVATE LIMITED**, a company incorporated under the laws of Companies Act, 1956 and having its registered office at 41 Nrupji Subhas Road, Room No-407A, Kolkata, West Bengal, India, 700001 and permanent account number as AAJX2860P (hereinafter referred to as "SDPL", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the **SECOND PART**;
3. **SATTVA REAL ESTATE PRIVATE LIMITED**, a company incorporated under the laws of Companies Act, 1956 and having its registered office at 41 Nrupji Subhas Road, Room No-407A, Kolkata, West Bengal, India, 700001 and permanent account number as AAJXV3858R (hereinafter referred to as "SREPL", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the **THIRD PART**;
4. **DARSHITA LANDED PROPERTY LLP**, a limited liability partnership incorporated under the laws of Limited Liability Partnership Act, 2008 and having its registered office at 4th floor, Salapurna Windsor, No. 3, Ulsoor Main Road, Bengaluru Karnataka 560042, India and permanent account number as AAMTDH000H (hereinafter referred to as "Darshita", which expression shall include its successors and permitted assigns) of the **FOURTH PART**;

AND

5. **VISION INFOTEC FACILITIES PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 and having its registered office at Salapurna Windsor, 3, Ulsoor Road, 4th Floor, Bengaluru, Karnataka - 560042, India and permanent account number as AAJXV3277D (hereinafter referred to as the "Company", which expression shall include its successors and permitted assigns) of the **FIFTH PART**;

SDPL, SREPL and Darshita shall hereinafter collectively be referred to as "Sattva".

The Investor, Sattva and the Company shall hereinafter be referred to individually as a "Party" and collectively as the "Parties".

WHEREAS

- A. The authorized share capital of the Company is INR 10,00,000 (Indian Rupees Ten Lakhs) divided into 1,00,000 (One Lakh) Equity Shares (as defined hereinafter). The issued, subscribed and paid-up share capital of the Company is INR 5,00,000 (Indian Rupees Five Lakhs) divided into 50,000 (Fifty Thousand) Equity Shares (as defined hereinafter).
- B. The Company is engaged in the business of developing and operating industrial and

logistics park, light assembly, light industry, cold storage or data centre project ("Business"), and is proposing to obtain allotment of land from Karnataka Industrial Areas Development Board ("KIADB") for this purpose.

- C. Relying on the aforesaid and subject to the terms and conditions set out in this Agreement, the Investor has agreed to acquire a stake in the Company through subscription of Subscription Securities (as defined hereinafter) and purchase of Sale Securities (as defined hereinafter) from Darcha; and Company has agreed to issue and allot the Subscription Securities and Darcha and SRIPL have agreed to transfer their respective Sale Securities to the Investor.
- D. The shareholding pattern of the Company, (i) as on the Execution Date is set out in Part A of Schedule I, and (E) immediately after Closing (as defined hereinafter) on the Closing Date (as defined hereinafter), is as set out in Part B of Schedule I.
- E. The Parties are now entering into this Agreement to record the mutual rights and obligations in relation to the subscription of the Subscription Securities and acquisition of the Sale Securities, by the Investor and other matters in connection therewith.

NOW THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

"Accounting Standards" shall mean applicable accounting standards issued by the Institute of Chartered Accountants of India, including the Indian Accounting Standards or generally accepted accounting practices and principles in India;

"Act" shall mean the Companies Act, 2013, and shall include any rules, regulations, notifications and circulars issued by the relevant Governmental Authority hereunder, as may be amended, modified, supplemented or re-enacted thereof from time to time;

"Affiliate" shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise. If such Person is an individual, in addition to the aforementioned, the term "Affiliate" shall include a Relative of such individual. In relation to the Investor, in addition to the aforementioned, the term "Affiliate" shall include (i) the funds, exclusive investment schemes, trusts and partnerships directly and indirectly owned, managed, advised and/or Controlled by Blackstone Inc. or any of its Affiliates; and (ii) any investment trust in relation to which the Investor and/or its respective Affiliates hold at least 10% (ten percent) or more of: (A) the total outstanding units of such investment trust, and/or (B) the shareholding (on a fully diluted basis) of the investment manager of such investment trust, but shall exclude portfolio companies that are not Controlled by the Investor and/or its respective Affiliates. It is clarified that each of SCPL, MEPL and Darcha shall be deemed to be an Affiliate of the other; however, the Investor shall not be considered an Affiliate of SCPL, SRIPL, Darcha or the Company and vice versa, for any purpose hereunder;

"Agreement" shall mean this share subscription and purchase agreement, together with the Schedules hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms.

"Anti-Corruption Laws" shall mean any anti-corruption and anti-bribery Law in which a Party performs business, including the (Indian) Prevention of Corruption Act, 1988, the U.S. Foreign Corrupt Practices Act of 1977, and the United Kingdom Bribery Act of 2010, in each case as amended, and where applicable, legislation enacted by member states and signatories implementing the OECD Convention Combating Bribery of Foreign Officials in International Business Transactions;

"Anti-Money Laundering Laws" shall mean the: (a) (Indian) Prevention of Money Laundering Act, 2002, as amended and any related or similar Law issued, administered or enforced by any Governmental Authority in India, and (b) all applicable financial record keeping and reporting requirements and prevention of money laundering statutes (including applicable rules and regulations thereunder) and all applicable rules, regulations or guidelines in which jurisdiction such Party is established, incorporated or otherwise conducts business or enters assets, and any related or similar rules, regulations or guidance administered or enforced by any Governmental Authority of such jurisdiction;

"Applicable IRR" shall mean 15% (fifteen percent) IRR;

"Applicable Law" or "Law" shall mean any statute, law, regulation, ordinance, code, rule, judgment, certification, rule of common law, Order, decree, bye-law, Governmental Approval, directive, guideline, requirement or other governmental contribution, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Governmental Authority having jurisdiction over the matter in question, whether in effect as of the Execution Date or thereafter;

"Arrears Shortfall Payment" shall have the meaning as set forth in Clause 18;

"Arrears Shortfall Information" shall have the meaning as set forth in Clause 20;

"Articles" shall mean the articles of association of the Company, as amended from time to time;

"Balance Securities" shall mean Equity Shares of the Company and/or any other Securities held by SCPL and Dardara after the Closing Date;

"Blackstone Non-Reserve Persons" means a former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner or other beneficial owner of Investor or Blackstone Inc.; or any direct or indirect former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner of any of the foregoing;

"Board" shall mean the board of directors of the Company in office at the relevant time, appointed in accordance with the Articles and applicable Law;

"Business" shall have the meaning as set forth in Recital B;

"Business Day" shall mean days (other than Saturday or Sunday) on which banks are generally open for operation in Mumbai, India and Bangalore, India;

"Call Option Agreement" shall mean the call option agreement of even date executed between the Parties (other than SCPL) in relation to the Balance Securities;

"Call Option Warrant" shall mean the 'Additional Warrant' being provided under the Call Option Agreement;

"CCD" shall mean 3.0000% compulsorily convertible debentures of the Company having face value of INR 10 (Indian Rupee Ten) per CCD, terms of which have been set out in the SDA;

"Charter Documents" shall mean, with respect to a Person, the articles of association and memorandum of association, the certificate of incorporation or similar organizational or incorporation documents, of such Person;

"Closing" shall have the meaning as set forth in Clause 3.1;

"Closing Date" shall mean the date on which Closing occurs pursuant to Clause 3.1;

"Conditions Precedent" shall have the meaning as set forth in Clause 4.2;

"Conditions Precedent Completion Letter" shall mean the letter in the form annexed hereto in Schedule (I) issued by Satva to the Investor;

"Consent(s)" shall mean any approval, consent, ratification, waiver, notice or other authorization of or from or to any Third Party, including scheduled banks and financial institutions (other than a Governmental Approval), that may be required for: (i) the consummation of the transactions contemplated under this Agreement, (ii) carrying on the business of the Company in accordance with applicable Laws and this Agreement, or (iii) execution and performance of this Agreement;

"Contract" shall mean, with respect to a Person, any agreement, contract, obligation, promise, undertaking, understanding, sub-contract, lease, instrument, note, warranty, insurance policy, benefit plan or legally binding commitment or undertaking of any nature, whether express or implied, that is enforceable against and/or by such Person under applicable Laws;

"Control" (including with cumulative meaning, the terms **"Controlled by"**, **"Controlling"** and **"under common Control with"**) shall mean, with respect to a Person, the acquisition or control, directly or indirectly, of more than 50% (fifty percent) of the voting rights or of the issued share capital of such Person or the right to appoint and/or remove all or the majority of the members of the board of directors or other governing body of such Person, the power to direct or cause the direction of the management, to exercise significant influence on the management or policies of such Person, whether obtained directly or indirectly, and whether obtained by ownership of share capital, the possession of voting rights, through Contract or otherwise;

"Designated Bank Account" shall mean the bank account of the Company designated for receipt of Subscription Amount under Section 42(f) of the Act, with the following details;

Name	VISION SOFTTECH FACILITIES PRIVATE LIMITED - SECURITY APPLICATION MONEY
Account number	1417000012630
IFSC Code	FDRL0081417

Bank Name	Federal Bank
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"Director" shall mean a director of the Company on the Board;

"Encumbrance" shall mean any mortgage, pledge, non-disposal undertaking, encumbrance, power of attorney (by whatever name called) charge, lien or other security interest creating any obligation of any Person or any other agreement or arrangement having a similar effect, option, pre-emptive right, adverse claim, title retention agreement, conditional sale agreement, co-sale agreement, trust (other title exceptions of whatsoever nature) or other encumbrance of any kind, or a Contract to give or refrain from giving any of the foregoing, including any restriction imposed under applicable Laws or Contract on the Transferability of Securities or the operation of the business of the Company, and the term **"Encumbrance"** shall be construed accordingly;

"Escrow Agent" shall mean CTL Trusteeship Limited;

"Escrow Agreement" shall mean the agreement of even date executed between SDPL, Davila, Investor and Escrow Agent in relation to the Balance Securities;

"Equity Share" shall have the meaning as set forth in Recital A;

"Existing Director" shall mean Mr. Harish Khaitan and Mr. Pradyuman Kumar Mishra;

"Fair Valuation Certificate" shall mean (i) a valuation certificate for the Subscription Securities from a registered valuer (registered in accordance with the Companies Act read with the Companies (Registered Valuers and Valuation) Rules, 2017), (ii) a valuation report, from a chartered accountant of repute with respect to the fair market value of the Sale Securities and Subscription Securities as of a date, not exceeding 15 (fifteen) days prior to the Closing Date as computed in accordance with Rule 57 of the IT Rules read with the IT Act, and (iii) a valuation report, from a chartered accountant or a merchant/broker registered with the Securities and Exchange Board of India or a practicing cost accountant with respect to the fair market value of the Subscription Securities and Sale Securities as of the Closing Date as computed in accordance with the Foreign Exchange Management (Non-Debt Instruments) Rules, 2019 read with the Foreign Exchange Management Act, 1999;

"Fillage" shall have the meaning as set forth in Clause 1.3(i);

"Fully Diluted Basis" shall mean the calculation made assuming the exercise, conversion or exchange of all the Securities into maximum number of Equity Shares possible in accordance with the terms of conversion thereof regardless of whether such Securities are exercisable, convertible or exchangeable at such time;

"Government Official" shall mean: (i) an officer, employee, agent or any person acting in an official capacity for or on behalf of a government, including its departments, agencies, instrumentalities, quasi- or partially-government owned or controlled entities, or locally provisioned government entities; (ii) an officer or employee of an international organization (e.g., World Bank, United Nations, Asian Bank for International Cooperation or International Monetary Fund); or (iii) an officer or employee of a political party or any party official, or a candidate for political office;

"Governmental Approvals" shall mean any permission, approval, consent, license, permit, Order, authorization, registration, filing, notification, exemption or ruling to, from or with any Governmental Authority;

"Governmental Authority" shall mean any national, state, provincial, local or similar government, governmental, regulatory or administrative authority (including Kamukha Industrial Area Development Board, branch, agency, any statutory body or commission or any non-governmental regulatory or administrative authority, body or other organization to the extent that the rules, regulations and standards, requirements, procedures or Orders of such authority, body or other organization have the force of Law or any court, tribunal, arbitral or judicial body, or any stock exchange or body or authority regulating securities exchange;

"Governmental Documents" shall have the meaning as set forth in Clause 7.3(i);

"Handover Documents" shall mean all documents, permits, licenses, title documents, authorisations, credentials of the Company, books of accounts, and any corporate, tax or other records relating to Company and the land proposed to be acquired by the Company from KIDDB, a list of which will be provided by the Investor to Satva prior to the Evacuation Date;

"Improper Payment" shall have the meaning as set forth in paragraph Para A6.7 of Schedule III;

"Indemnified Persons" shall mean Investor and Investor's Affiliates, and the Company (after Closing) and each of their respective directors, officers and employees;

"Indemnifying Person" shall mean SDPL;

"Information" shall have the meaning as set forth in Clause 12.1;

"Investor Demand Account" shall mean the demand account of the Investor with the following details:

BP Name	K.R.I Bank Limited
BP ID	5415408
Client Name	Horizon Industrial Parks Limited
Client ID	87187949

"Investor Directors" shall collectively mean Mr. Krupa Chaudhari and Ms. Divyani Shah;

"IRR" shall mean the annualised internal rate of return calculated on a cash-on-cash basis in accordance with the "XIRR" function in the most current version of the Microsoft Excel software (or such other version used by Investor at its discretion). If the Microsoft Excel -XIRR function is no longer in usage at the time an IRR calculation is required under this Agreement, then Investor shall select a substitute software program to calculate IRR;

"IT Act" means the Income-tax Act, 2021 (which, with effect from April 1, 2023, replaced and re-enacted the Income-tax Act, 1961), as amended from time to time, together with any statutory modification or re-enactment thereof, and references to the "IT Act" shall, where the context so requires, be construed as including references to the Income-tax Act, 1961 to the extent applicable to periods prior to April 1, 2023;

"IT Rules" means the Income tax Rules, 2024 (which replaced the Income tax Rules, 1962 with effect from April 1, 2024), as amended from time to time, together with any statutory modification or re-enactment thereof, and references to the "IT Rules" shall, where the context so requires, be construed as including references to the Income-tax Rules, 1962 to the extent applicable to periods prior to April 1, 2024.

"KJADB" shall have the meaning as set forth in Recital B.

"KJADB Amount" shall mean the cost of allotment of the Project Land from KJADB, on a lease-own sale basis, which shall be an all-inclusive cost of not more than INR 1,20,00,000 (Indian Rupees Two Crores and Twenty Lakhs) per acre of the Project Land;

"KJADB LA" shall mean the "Letter of Allotment Letter" dated November 18, 2021 read with the letter dated March 4, 2022 bearing no. KJADB/EC/MJL/OC/Supply-2021/447/4273/2021-22, received from KJADB for allotment of 300 (one hundred) acres of contiguous land in Mithibaili Industrial Area, Mitha Taluk, Kolar, Karnataka at a price not exceeding the KJADB Amount;

"KJADB Lease Deed" shall have the meaning as set forth in Clause 7.2(b), and shall include any equivalent document executed in accordance with Applicable Law as in force at the relevant time, evidencing the Company's right, title and interest to the KJADB Land;

"KJADB Lease Long Stop Date" shall mean a period of 12 (twelve) months after the Closing Date;

"KJADB Litigation Order" shall have the meaning as set forth in paragraph 5.6 of Schedule III;

"Land Review" shall have the meaning as set forth in Clause 7.3;

"Litigation" shall mean suits, civil and criminal actions, arbitration proceedings, disputes, movements, prosecution, mediation, investigation, formal written inquiry (provided such inquiry is being conducted by a Governmental Authority), writ petitions and all other legal proceedings, or written claims of any kind, pending, whether before any court, judicial or quasi-judicial or regulatory authority, tribunal, Governmental Authority or any arbitrator;

"Long Stop Date" shall mean a period of 6 (six) months from the Execution Date;

"Losses" shall mean any and all actual and direct losses, liabilities, judgments, awards, fines, penalties, Taxes, fees, settlements and expenses, damages (whether or not resulting from claims from any third party), charges, costs (including reasonable and documented costs of investigation or other response actions), out-of-pocket expenses such as attorneys' and accountants' fees and disbursements, deposits made with any Governmental Authority (other than KJADB), but shall not include indirect, consequential, punitive, special, punitive or nominal losses or liabilities except where such losses are claimed by Third Parties against the Identified Persons;

"Material Adverse Effect" shall mean an adverse change to any of the following:

- (i) the validity or enforceability of any of the Transaction Documents, including, without limitation, the validity or enforceability of the rights or remedies of any of the Parties under any of the Transaction Documents or which arise out of a change in Applicable Law or any act or omission by the Company; or
- (ii) the ability of the Investor and/or the Company to perform their respective obligations under any of the Transaction Documents; or
- (iii) the status and validity of any Contracts, Consents or Governmental Approvals required for the Company to carry out the Project and/or to carry on the Business (directly or indirectly);

"Option Closing Date" shall have the meaning ascribed to it in the Call Option Agreement;

"Order" shall mean any final order, injunction, judgment, decree, ruling, writ, assessment or award of a court, arbitration body or panel or other Governmental Authority;

"Ordinary Course of Business" shall mean an action taken by or on behalf of the Company that is recurring in nature and is taken in the ordinary course of the Company's normal day-to-day operations and satisfies all of the following:

- (i) Taken in accordance with sound and prudent business practices;
- (ii) That does not require any separate or special authorization of any nature;
- (iii) Similar in nature and magnitude to actions customarily taken, without any separate or special authorization, in the ordinary course of the normal day-to-day operations of the Company's business; and
- (iv) Consistent with past practice and existing policies of the Company;

"Party" shall have the meaning assigned in the Franchise;

"Person" shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, society, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under Applicable Law;

"Project" shall mean warehouse, including (but not limited to) industrial and logistics park, light assembly, light industry, cold storage or data centre project to be developed on the Project Land;

"Project Land" / "KLADB Land" shall mean the contiguous land admeasuring 100 (one hundred) acres located in Mithiballi Industrial Area, Malur Taluk, Kolar, Karnataka;

"Provisional Letter of Allotment" shall mean the letter of allotment which is received by the Company from KLADB to allot the KLADB Land to the Company, after payment of the initial demand from KLADB, which satisfies the following conditions: (a) the aforementioned land being at least 100 (one hundred) acres of contiguous land and free from any Encumbrances and (b) each allotment being at a price not exceeding the KLADB Amount;

"Purchase Consideration" shall mean the total amount payable by the Investor to each of SHEPL and Dandota on the Closing Date for the Sale Securities, in the following proportions:

Name of Sattra Entity	Purchase Consideration Payable by Investor
SHEPL	INR 9,33,91,135
Dandota	INR 13,36,11,600

"Relative" shall have the meaning as set forth in Section 2(77) of the Act;

"Representatives" shall mean, in relation to any Person, such Person's principal, agent, executive, manager, directors, officers, employees, or agents working on behalf of and at the direction of such Persons, as applicable;

"Relevant Articles" shall have the meaning set forth in Clause 6.10(i);

"Sale Securities" shall mean 24,500 (Twenty Four Thousand Five Hundred) Equity Shares which are proposed to be transferred by Satva to the Investor on the Closing Date, in the manner set out below;

S. No	Satva	Number of Equity Shares
1.	SRPL	12,000
2.	Dardika	12,500

"Sanctioned Jurisdiction" shall mean any country or jurisdiction that is, or at the relevant time was, the target or subject of a comprehensive country-wide or region-wide export, import, financial, or investment embargo under the Sanctions Laws (including Cuba, Iran, North Korea, Syria (until July 3, 2023), and the Crimea, Donetsk, Luhansk, Kherson, and Zaporizhzhia regions of Ukraine (as amended from time to time)).

"Sanctions Laws" shall mean all the economic or financial sanctions, trade and import and export-related laws, regulations or embargoes implemented or enforced by the United States (including U.S. Treasury Department, U.S. Commerce Department and U.S. State Department), the European Union, the United Kingdom (including, His Majesty's Treasury), the United Nations, the Reserve Bank of India or any other Governmental Authority to whose jurisdiction a Party is subject.

"Sanctioned Person" shall mean any individual, entity or vessel that is the subject or target under Sanctions Laws, including (i) any individual, entity or vessel that is listed on any U.S. or other sanctions-related restricted party list (including the List of Specially Designated Nationals and Blocked Persons by the Office of Foreign Assets Control of the U.S. Department of the Treasury), or any Reserve Bank of India circular on sanctions or withheld dealer list; (ii) any entity that is 50% (fifty percent) or more owned or otherwise controlled by an individual or entity described in paragraph (i); or (iii) any national of (including any such national that has taken up permanent residence outside the relevant Sanctioned Jurisdiction), or any entity based in or organized under the laws of a Sanctioned Jurisdiction (including any part of a government of a Sanctioned Jurisdiction).

"Satva Loan 1" shall mean an inter-corporate deposit extended by Satapura Properties Private Limited for INR 11,44,51,144 (Indian Rupees Twelve Crores Forty Four lakhs Fifty One Thousand Two Hundred and Sixty Six) which loan is unsecured and carries nil interest;

"Satva Loan 2" shall mean an inter-corporate deposit proposed to be extended by Satapura Properties Private Limited for up to INR 54,36,44,000 (Indian Rupees Fifty Four Crores Thirty Six Lakhs Forty Six Thousand) which loan will be unsecured and carries nil interest and is in a form and manner acceptable to the Investor, which is proposed to be utilized by the Company solely to make payment to KIADB against the KIADB LA.

"Satva Non-Reserve Person" means, in relation to each of SRPL, SRPL and Dardika, any direct or indirect former, current or future shareholder, director, officer, employee, or Affiliate of SRPL, SRPL and Dardika, so may be applicable;

"Securities" shall mean shares in the Share Capital, whether equity or preference;

"SHA" shall mean the shareholders' agreement of even date executed between the Parties (other than SRPL) governing the inter se rights and obligations vis a vis each other and the Company;

"Share Capital" shall mean the share capital of the Company;

"Share Equivalents" shall mean

- (i) any options and warrants (including options issuable under any employee stock option plan) or any other right to purchase and/or be allotted equity shares under any outstanding commitments, contingent or otherwise, such as convertible securities, options and/or warrants (including employee stock option plans);
- (ii) all other instruments, agreements or arrangements existing or enabling the allottee or holder thereof to acquire and/or exercise, whether directly or indirectly, beneficial interest in equity shares; and/or
- (iii) voting rights in a company or otherwise having the characteristics (including ranking or voting arrangements) of equity shares of any class or kind;

"**SEAC**" shall have the meaning as set forth in Clause 11.1(i);

"**Sharehold Period**" shall have the meaning as set forth in Clause 3.3;

"**Subscription Amount**" shall mean an amount equal to INR 66,86,37,270 (Indian Rupees Sixty Six Crores Eighty Lakh Ninety Seven Thousand Two Hundred and Seventy) payable by the Investor for subscription of the Subscription Securities;

"**Subscription Securities**" shall mean 6,68,66,327 (Six Crore Sixty Eight Lakh Nine Thousand Seven Hundred and Twenty Seven) CCUs to be issued and allotted by the Company to the Investor on the Closing Date;

"**Tax**" or collectively "**Taxes**" or "**Taxation**" includes any and all taxes, assessments, duties, impositions, liabilities and other governmental charges by any Governmental Authority, including, without limitation, taxes on income, capital gains, profits, services, sales, wealth, use and occupation, and value added, ad valorem, transfer, franchise, withholding, payroll, employment, excise, stamp duty and property taxes, together with all interest, penalties and additions imposed with respect to such amounts by any Governmental Authority in any jurisdiction;

"**Tax Warranties**" shall mean the Warranties set out in paragraph 11 of Schedule III;

"**Third Party**" shall mean a Person who is not a party to this Agreement;

"**Third Party Claims**" shall have the meaning as set forth in Clause 9.5(ii);

"**Transaction Documents**" shall mean this Agreement, SHA, Call Option Agreement, Escrow Agreement and any other agreement or document designated in writing as a Transaction Document by the Investor on one hand, and any of Sotera on the other hand;

"**Transfer**" (including, with correlative meaning, the terms "**Transferred by**" and "**Transferability**") shall mean to transfer, sell, assign, Encumber, place in trust (vesting or otherwise), exchange, gift or transfer by operation of Applicable Law or in any other way, dispose of, whether or not voluntarily;

"**Tribunal**" shall have the meaning as set forth in Clause 11.3(ii);

"**U.S.**" shall mean the United States of America;

"**Warranties**" shall mean the representations and warranties provided by the Warrantors in this Agreement, including those set forth in Schedule III; and

"**Warrantor**" shall have the meaning set forth in Clause 8.1.

1.2 Interpretation

- (i) Headings and bold typeface are only for convenience and shall be ignored for the purpose of interpretation.
- (ii) Unless the context of this Agreement otherwise requires:
 - (a) Words using the singular or plural number also include the plural or singular number, respectively;
 - (b) Words of any gender are deemed to include the other gender;
 - (c) Reference to the word "include" shall be construed without limitation;
 - (d) The terms "hereof", "herein", "hereby", "herein" and derivative or similar words refer to this entire Agreement or specified Clause or Schedule of this Agreement, as the case may be;
 - (e) The terms "Clause" and "Schedule" refer to the specified Clause including its sub-clause or Schedule of this Agreement.
- (iii) Reference to any legislation or law or any policy issued by a Governmental Authority or to any provision thereof shall include references to any such legislation, law or any policy as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to statutory provisions shall include any subordinate legislation made from time to time under that provision;
- (iv) The Recitals and the Schedules hereto shall constitute an integral part of this Agreement;
- (v) The index hereto and headings and titles herein are used for convenience of reference only and shall not affect the construction of this Agreement;
- (vi) Any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 above shall have the meaning assigned to it in such definition throughout this Agreement, unless the contrary is expressly stated or the contrary clearly appears from the context;
- (vii) If any provision in Clause 1 is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement;
- (viii) When any number of days is prescribed in any document, the same shall be reckoned exclusively of the first and inclusively of the last day unless the last day does not fall on a Business Day, in which case the last day shall be the next succeeding day that is a Business Day;
- (ix) Time is of the essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of the essence;
- (x) Notwithstanding anything to the contrary, any time limits specified in any provision of this Agreement, within which any Party is required to perform any obligations or complete any activity, shall be extended by such period as may be

required to comply with any requirement of Law; provided that, the Party that is required to comply with such Law shall, upon informing the other Parties of such extension in writing, act in good faith and take all necessary steps to ensure compliance with such Law within the minimum time possible.

- (c) Reference to any document includes an amendment or supplement to, or replacement or revision of, that document, but disregarding any amendment, supplement, replacement or revision made in breach of this Agreement.
- (d) Reference to an "amendment" includes a supplement, modification, revision, replacement or re-enactment and "amended" is to be construed accordingly.
- (e) Any obligation, covenant, warranty, representation or undertaking in this Agreement that is expressed to be made, undertaken or given by Satva shall be deemed *mutatis mutandis* to be jointly and severally made, undertaken and given by each of SDPL, SRIPL and Dardata and they shall be jointly and severally responsible in respect of the same; and
- (f) No provision of this Agreement shall be interpreted in favor of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting thereof or by reason of the extent to which any such provision is inconsistent with any prior draft thereof. This Agreement has been negotiated and reviewed by the Parties and the Parties have participated jointly in the negotiation and drafting of this Agreement. Accordingly, in the event any ambiguity or a question of intent or interpretation arises, this Agreement will be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favoring or disfavoring any Party by virtue of the authorship of any provisions of this Agreement. Additionally, no court or arbitrator construing this Agreement will construe it more stringently against one Party than against the other.

2. AGREEMENT TO SUBSCRIBE TO SUBSCRIPTION SECURITIES AND PURCHASE OF SALE SECURITIES

2.1 Subject to the terms and conditions of this Agreement, the fulfillment of the Conditions Precedent to the satisfaction of the Investor and in reliance on the Warranties, on the Closing Date:

- (i) the Investor agrees to subscribe to, and the Company agrees to issue and allot to the Investor, the Subscription Securities, free from all Encumbrances, in consideration of the Subscription Amount; and
- (ii) the Investor agrees to purchase, and each of SRIPL and Dardata agree to transfer to the Investor, the Sale Securities, free from all Encumbrances, for the Purchase Consideration.

2.2 The Investor can choose to acquire the Sale Securities and/or subscribe to the Subscription Securities by itself or nominate any other Affiliates in writing.

2.3 Tax Deducted at Source.

- (i) The Investor shall be entitled to deduct and withhold Tax from payment of Purchase Consideration to be made pursuant to this Agreement as per Section 370 read with Section 402 of the IT Act ("Tax Deducted at Source").
- (ii) To the extent that amounts are so withheld and paid to the appropriate

Governmental Authority pursuant to any Applicable Law relating to Tax, such withheld amounts shall be treated for all purposes of this Agreement as having been paid to the relevant payer in respect of which such deduction and withholding was made.

- (ii) The Investor shall: (i) deposit any Taxes withheld under this Agreement with the relevant Governmental Authority; (ii) complete filing of withholding tax returns within the statutory due date; and (iii) issue a withholding Tax certificate in as per the IT Act within the prescribed statutory timelines.

3. COVENANTS OF EEE COMPANY AND SATTVA UNTIL CLOSING DATE

3.1 The Company shall, and Sattva shall procure that the Company shall, during the period between the Escrow Date and Closing Date ("Standstill Period"):

- (i) take all actions necessary to give effect to the transactions contemplated under this Agreement;
- (ii) otherwise conduct its operations in the Ordinary Course of Business in compliance with Applicable Laws;
- (iii) not undertake any action and/or enter into any Contract in relation to the Company (including its business, operations, and/or management) and/or the Project Land, without the prior written consent of the Investor;
- (iv) not undertake any action which results or is reasonably likely to result in any modification to the Share Capital, including any increase or decrease in the issued, paid-up and subscribed Share Capital, declaration, setting aside or payment of dividend or any other distributions on the Share Capital or the purchase or redemption of the Equity Shares or any other securities of the Company or issuing any Equity Shares, Share Equivalents or any other securities of the Company for consideration or otherwise;
- (v) not amend or modify or supplement the Charter Documents of the Company;
- (vi) not undertake or agree to undertake any action which would reasonably be expected to result in a Material Adverse Effect;
- (vii) not change any of the Company's accounting policies or the Company's auditors;
- (viii) not make or change any Tax election, settle or compromise any proceeding with respect to any Tax claim or assessment relating to the Company, surrender any right to claim a refund of Taxes, consent to any extension or waiver of the limitation period applicable to any Tax claim or assessment relating to the Company, filing any amended tax return, or incurring any liability for Tax other than in the ordinary and usual course of business or other than where such actions or transactions are required to be undertaken pursuant to applicable law in which case such actions or transactions may be undertaken with prior written notification to the Investor;
- (ix) not engage in any business activities (including entering into any contract, acquiring or disposing of any assets and incurring any liabilities) other than complying with this Agreement and Applicable Law;
- (x) not initiate, agree to settle, or settle any Litigation involving the Company and/or the Project Land without the prior written consent of Investor;

- (vi) not create, extend, or incur any financial indebtedness and/or forgive, cancel, release, assign or waive any financial indebtedness owed to the Company, except the Sativa Loan 1; or
- (vii) not agree to or attempt to do any of the foregoing.

3.2 During the Standstill Period:

- (i) If a Government Official becomes associated with, or obtains any interest, whether direct or indirect in the Company, or any legal or beneficial interest in the proposed Agreement or any relationship contemplated herein, the Company along with the Sativa shall, upon becoming aware of any such association or interest, notify the Investor immediately as that Investor may, and hereby reserves the right to, take whatever proceedings and actions as may be appropriate to comply with applicable Anti-Corruption Laws.
- (ii) the Company along with Sativa shall immediately notify the Investor upon becoming aware of any violation or potential violation of Anti-Corruption Laws, Sanctions Laws, or Anti-Money Laundering Laws by the Company or any of its Representatives (including but not limited to receipt of oral or written notice from any Governmental Authority of an investigation or inquiry into any such violation or potential violation); and
- (iii) the Company agrees and undertakes that, it: (a) shall operate in compliance with and will not take any action that would violate Anti-Corruption Laws or Anti-Money Laundering Laws; and (b) shall not conduct any business in or related to any Sanctioned Jurisdiction, or with or related to any Sanctioned Person, and will not take any action in violation of Sanctions Laws.

- 3.3 During the Standstill Period, the Company and Sativa confirm that, they shall not directly or indirectly speak or discuss, enter into any contract, understanding or term sheet or any other agreement of like nature (whether or not such contract, understanding, term sheet or agreement is absolute, reversible, contingent, conditional, oral, written, binding or otherwise), or solicit with any Third Party, for a potential acquisition of Issuance, Project Land or assets of the Company.

4. CONDITIONS PRECEDENT

- 4.1 The obligation of the Investor to subscribe to the Subscription Securities and purchase the Sale Securities from Sativa on the Closing Date, is conditional upon the satisfaction of the Conditions Precedent, to the satisfaction of the Investor (or where permissible under Applicable Law, waiver or deferment in writing at their sole discretion).
- 4.2 Sativa and the Company shall (as relevant) complete the conditions set out in **Schedule IV ("Conditions Precedent")** as soon as possible and in any event on or prior to the Long Stop Date, provided that any conditions that are required to be fulfilled either on the Closing Date or immediately prior to such date shall be fulfilled only on the Closing Date or immediately prior to the Closing Date in accordance with the terms of this Agreement.
- 4.3 Upon satisfaction of the last of the Conditions Precedent (other than any conditions that are required to be fulfilled either on the Closing Date or immediately prior to the Closing Date) that are required to be fulfilled by the Company or Sativa, as the case may be, Sativa shall issue to the Investor the Conditions Precedent Completion Letter, enclosing, where applicable, certified true copies of all necessary documents evidencing fulfillment of each of the Conditions Precedent.

5. CLOSING

5.1 Closing

- (3) The process of Closing shall begin on the date hereof, after the Investor being satisfied with the Conditions Precedent Completion Letter. The venue of Closing shall be Bangalore, India, unless mutually agreed to otherwise in writing by the Parties.
- (4) Subject to the satisfaction of the Conditions Precedent in accordance with Clause 4.3 above (including those required to be satisfied at or immediately prior to Closing), at the Closing, the Parties shall take the following actions in the order indicated below, which actions would be deemed to have been performed simultaneously:
 - (a) The Company and Satva shall certify in writing that the Warranties are true, accurate and not misleading in any respects as of the Execution Date and the Closing Date, as though made on and as of each such date and that the Company and Satva have complied with all of their respective obligations and undertakings under this Agreement at and/or prior to the Closing Date;
 - (b) Subject to completion of actions under Clause 5.1(i)(v), the Investor shall remit the (i) Subscription Amount into the Designated Bank Account, and (ii) the Purchase Consideration subject to deduction of Tax Deducted at Source as per Clause 2.3 of this Agreement into the relevant bank accounts of SHPL and Dardha, by way of a wire transfer or such other method as may be acceptable to the relevant Parties, and the Investor shall furnish to each of the Company and Satva, a copy of the necessary document evidencing the respective remittances;
 - (c) Simultaneously with the remittance of the Purchase Consideration each of SHPL and Dardha shall instruct its respective depository participant to Transfer its respective Sale Securities to Investor's Demat Account through duly executed depository instruction slips, as well as evidence of payment of necessary stamp-duty on such Transfer;
 - (d) Simultaneously with the actions set out in Clauses 5.1(i)(b) and 5.1(i)(c) above, the Company shall convene:
 - (A) a meeting of the Board for the passing of necessary resolutions for:
 - (1) recording the receipt of the Subscription Amount as remitted to the Company;
 - (2) allotting the Subscription Securities to the Investor;
 - (3) approving the issue of the letter of allotment in relation to the Subscription Securities;
 - (4) executing corporate actions and forms for the Transfer of Sale Securities to the Investor, if required by the depository participant;

- (c) taking on record the transfer of Sale Securities to the Investor;
 - (d) approving the appointment of the Investor Directors as non-executive Directors;
 - (e) authorizing Mr. Karam Shah to liaise with Governmental Authorities in connection with the Project and the Governmental Actions (including in relation to KAADB and any other Governmental Authority), including attending meetings, executing, verifying and submitting all necessary applications, affidavits, written submissions and filings, making appearances and representations, facilitating access to advocates, consultants and other representatives of Investor to undertake and complete the Land Review and undertaking all other acts, deeds and things necessary in relation to the aforesaid;
 - (f) authorizing Hattori Industrial Parks Limited for all actions in relation to development, construction and operation of the Project;
 - (g) authorizing:
 - (i) changes to the register of members of the Company to reflect the Investor as the legal and beneficial owner of the Subscription Securities and Sale Securities;
 - (ii) changes to the register of directors of the Company to reflect the appointment of Investor Directors;
 - (iii) issuance of duly stamped debenture certificate to the Investor evidencing title to the Subscription Securities;
 - (iv) repayment of Fatma Loan 1 and Fatma Loan 2 (if extended) in full; and
 - (v) filing of necessary forms with jurisdictional Registrar of Companies, and the authorized credit bank;
 - (h) convening an extraordinary general meeting of the shareholders of the Company on the Closing Date at short notice for approving the appointment of the Investor Directors as non-executive directors to the Board;
 - (i) at extraordinary general meeting of the shareholders of the Company on the Closing Date at short notice for approving the appointment of the Investor Directors as non-executive directors to the Board.
- (vi) The Company shall share with the Investor: (i) a duly stamped letter of allotment in relation to the Subscription Securities, (ii) certified copies of

the relevant updated statutory registers of the Company indicating the Investor as the owner of the Sale Securities and Subscription Securities;

- (b) Satva shall handover the Handover Documents to the Company; and
- (c) Upon the completion of all the actions set out under Clause 5.1(i), the Company shall provide the Investor with certified true copies of the resolutions passed under Clause 5.1(i), along with certified true copies of updated register of members and register of directors of the Company reflecting the subscription to the Subscription Securities by the Investor and the transfer of the Sale Securities by Satva to the Investor, and the appointment of the Investor Directors.

- (ii) All actions contemplated by this Agreement to be consummated at Closing under Clause 5.1(i) shall be deemed to have occurred simultaneously and the Closing as contemplated herein shall not be deemed to have occurred unless all such actions are consummated. In the event that all Closing actions are not completed on the same day, the day on which the last Closing action is completed shall be deemed to be the Closing Date for the purposes of this Agreement.

6. CONDITIONS SUBSEQUENT

- 6.1 Within 5 (five) Business Days after the Closing Date, the Company shall:

- (i) issue the relevant duly stamped certificates in relation to the Subscription Securities to the Investor;
- (ii) file Form PAS-3 reflecting the allotment of the Subscription Securities to the Investor;
- (iii) file Form DIR-12 in relation to the change in directors, and Form MGT-14 in relation to adoption of Revised Articles; and
- (iv) initiate actions to create the registration under Fictitious Master and Business Unit.

- 6.2 Within 7 (seven) Business Days after filing Form PAS-3 as per Clause 6.1(i), the Company shall:

- (i) initiate repayment of INR 12,00,01,244 (Indian Rupees Twelve Crore Forty Four Lakhs Fifty One Thousand Two Hundred and Sixty Six) to Salarpuria Properties Private Limited towards the Satva Loan 1.
- (ii) initiate payment of INR 14,36,46,888 (Indian Rupees Fifty Four Crore Thirty Six Lakhs Forty Six Thousand) towards amount due and payable to KLAIDB as per the terms of the KLAIDB DA to secure the Pre-liquid Letter of Allotment; provided that, in the event Salarpuria Properties Private Limited has exceeded Satva Loan 1 for the purpose of making the payment to KLAIDB as per the KLAIDB DA, then all of the outstanding principal (being up to INR 14,36,46,888 (Indian Rupees Fifty Four Crore Thirty Six Lakhs Forty Six Thousand)) shall be repaid to Salarpuria Properties Private Limited.

- 6.3 Immediately upon repayment of the loans and advances made by it in the manner set out in Clause 6.2, Satva shall procure that Salarpuria Properties Private Limited issues a no dues certificate (in the form agreeable to the Investor) to the Company for all amounts owed to it under the Satva Loan 1 and Satva Loan 2.

- 4.4 Within 30 (thirty)-days after the Closing Date, the Company shall apply for international security identification number (EIN) under the Depositories Act, 1996 for the Subscription Securities and ensure requisite actions for credit of the Subscription Securities to the Investor's Debit Account.
- 4.5 Within 5 (five) days after the Closing Date, Darshita and SREPL shall have completed all obligations under the Escrow Agreement for the deposit of the Balance Securities. Within 15 (fifteen) days from receipt of Provisional Letter of Allotment, each of SREPL and Darshita shall deposit their respective Balance Securities into the demat account(s) opened or opened in accordance with the Escrow Agreement.
- 4.6 The Investor shall provide the Company with a declaration in the Form BDN-1 and the Company shall, within 30 (thirty) days after receipt of such declaration from the Investor, file the Form BDN-2 with the jurisdictional Registrar of Companies.
- 4.7 The Company shall provide all documents, declarations and reasonable assistance required by the Investor for filing of Form D1 within 30 (thirty) days after the Closing Date.
- 4.8 The Company shall make necessary filings with the relevant Governmental Authority in relation to the taxes deposited pursuant to redemption of optionally convertible debentures issued to Mascon Properties Private Limited, and Satva shall provide all information reasonably required by the Company in this regard.
- 4.9 The Company shall have obtained renewal or extension of the order from State Level Single Window Clearance which expired on June 22, 2021, from Karnataka Udyog Mitra, within 180 (one hundred and eighty) days after the receipt of Provisional Letter of Allotment.
- 4.10 Within 5 (five) days after the Closing Date:
 - (i) the Investor and Satva shall have agreed on the form of the articles of association of the Company to reflect the terms of the Shareholders' Agreement ("Restated Articles");
 - (ii) the Company shall convene a meeting of the Board for the passing of necessary resolutions for:
 - (a) authorizing the adoption of the Restated Articles subject to approval of the shareholders of the Company; and
 - (b) convening an extraordinary general meeting of the shareholders of the Company at short notice for adoption of the Restated Articles; and
 - (iii) the Company shall convene an extraordinary general meeting of the shareholders of the Company at short notice for adoption of the Restated Articles.

5. POST-CLOSING COVENANTS

- 5.1 The Investor shall have the absolute right to review, verify and survey the KINDB Land ("Land Review") allotted to the Company, including but not limited to verification of matters set out in Schedule V. Satva hereby undertakes to ensure that Investor and its representatives are provided with all information and access to KINDB Land, requested by it to complete Land Review to its satisfaction. Upon completion of Land Review to the Investor's satisfaction, Investor shall issue a written notice to Satva and the Company ("Land Review Satisfaction Notice").

- 7.2 Satva agrees to support the Company (on a best efforts basis) to ensure the following actions are completed as soon as practicable, and in any event no later than the KLADB Lease Long Stop Date, to the sole satisfaction of the Investor:
- (i) procure a Provisional Letter of Allocation in relation to the KLADB Land;
 - (ii) rectify any issues, including but not limited to those affecting the ground coverage, possession of the Company of the KLADB Land;
 - (iii) obtain peaceful possession of 100 (one hundred) acres of contiguous vacant KLADB Land, free from all encumbrances;
 - (iv) procure execution of duly stamped and registered lease over sale deed between the Company and KLADB in relation to the KLADB Land ("KLADB Lease Deed"); and
 - (v) settle any pending litigation and outstanding compensation claims from unlawful landowners of the KLADB Land.
- 7.3 In undertaking any actions in relation to obtaining allotment of Project Land from KLADB (collectively, "Governmental Actions"), Satva shall, and shall cause Company and Company's Representatives to:
- (i) provide copies to the Investor, of any Filings, reports or applications (collectively, "Filings") required to be filed by the Company in relation to the Governmental Actions, with any Governmental Authority reasonably in advance of, and in any event within 3 (three) Business Days before any deadline for submission of such Filing, and the Investor shall be given a reasonable opportunity to review and comment on such Filings, and Satva shall discuss and incorporate such comments from the Investor into the Filings, and Company shall not file any Filings on behalf of, or in relation to, the Investor, without the Investor's prior written consent;
 - (ii) provide copies of any Governmental Approval, legal notices or Orders received or received in relation to the Company, or any correspondence or oral communication from any Governmental Authority in relation to any Governmental Action, to the Investor (collectively, "Governmental Documents"), in each case as soon as practicable and in any event within 5 (five) Business Days after procurement or receipt of any Governmental Document; and the Investor shall be given a reasonable opportunity to review and comment on any response to the relevant Governmental Authority in respect of such Governmental Document, in advance of delivery thereof, and in any event within 5 (five) Business Days before any deadline for such response; and Satva shall discuss and incorporate all such comments from the Investor into such response, and Company shall not submit any such response on behalf of, or in relation to, the Governmental Documents or the Company, without the Investor's prior written consent;
 - (iii) in connection with any application for any Governmental Action and/or Governmental Approval, or the submission of any Filings, give the Investor, reasonably notice of all formal pre-scheduled meetings between the Company and such Governmental Authority and Satva shall ensure that at least 1 (one) Representative of the Investor is present during all such pre-scheduled meetings;
 - (iv) provide all other information available with Satva, or known by them in relation to the Company, that are not expressly covered in sub-clauses (i) through (iii) above and that is otherwise requested by the Investor, to the Investor; and

- (v) continue to comply with all Applicable Laws, including but not limited to the Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws.
- 7.4 If any of SDPL, GREPL or Dumbita becomes a Government Official or Governmental Authority (as applicable), Satva shall notify Investor immediately, so that Investor may, and hereby reserves the right to, take any precautions and actions that may be reasonably required to comply with applicable Anti-Corruption Laws.
- 7.5 In connection with Governmental Actions as per Clause 7.3, if any Government Official becomes associated with, or obtains an interest, whether direct or indirect, in the Company, then Satva shall notify Investor immediately so that Investor may, and hereby reserves the right to, take whatever precautions and actions may be appropriate to comply with applicable Anti-Corruption Laws.
- 7.6 In relation to the Governmental Actions, the Company along with Satva shall immediately notify Investor upon becoming aware of any actual or potential violation of Anti-Corruption Laws, Sanctions Laws, or Anti-Money Laundering Laws by the Company or any of its Representatives (including but not limited to receipt of oral or written notice from any Governmental Authority of an investigation or inquiry into any such violations).
- 7.7 In relation to the Governmental Actions, or any other actions Satva undertakes in relation to the Company or the Business, Satva shall cause the Company to: (i) operate in compliance with and will not take any action that would violate Anti-Corruption Laws or Anti-Money Laundering Laws; and (ii) not conduct any business in or related to any Sanctioned Jurisdiction, or with or related to any Sanctioned Person, and will not take any other action in violation of Sanctions Laws.
- 7.8 The Parties agree that under Clauses 7.5, 7.6 and 7.7, Satva shall not be responsible for any actions of the Company's Representatives appointed by the Investor or Investor Directors.

8. REPRESENTATIONS AND WARRANTIES

- 8.1 Each of SDPL, GREPL and Dumbita (collectively, "Warrantors"), jointly and severally represent and warrant to the Investor, that each of the Warranties is true and correct as of the Escrow Date and shall be true and correct on and as of the Closing Date (and not including in any manner whatsoever), as if made on each such date.
- 8.2 None of the Warranties shall be treated as qualified by any actual or constructive knowledge on the part of the Investor or any of their Affiliates or any of their agents, representatives, officers, employees, advisors or any of the Directors appointed by the Investor or any of their Affiliates.
- 8.3 The Warrantors agree and acknowledge that the Investor is entering into this Agreement strictly in reliance of the Warranties. Each of the Warranties shall be construed as a separate representation, warranty, covenant or undertaking, as the case may be, and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement, and in the event and to the extent that any such representation and warranty explicitly provides an exception, exclusion or qualification thereto by reference to a circumstance or fact stated in such representation and warranty, such exception, exclusion and qualification shall be applicable only and limited to such representation and warranty and shall not, and shall in no circumstance be deemed to, apply as an exception, exclusion or qualification to any other representation or warranty made in this Agreement unless and to the extent explicitly stated in such other representation or warranty. None of the representations or warranties of the Warrantors contained in this Agreement or the

Transaction Documents and some of the information contained in any certificate, or other document delivered pursuant hereto or therein or in connection with the transactions contemplated hereby or thereby contains any untrue statement of a fact or omits to state a fact necessary to make the statements herein or therein not misleading.

8.4 Each of the Parties severally represents, warrants and covenants in favor of the other Parties that, as of the Transaction Date and as of the Closing Date:

- (i) It is duly organized and validly existing under the applicable Laws of its jurisdiction of formation. It has the power and authority to execute, deliver and perform the obligations set out in this Agreement. This Agreement has been duly and validly executed by it and constitutes legal, valid and binding obligations, enforceable against it in accordance with terms of this Agreement.
- (ii) The execution, delivery and performance by it of this Agreement will not:
 - (a) Violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrance or constitute a default, an event of default (or event that, without giving of notice or lapse of time or both, would constitute an event of default) or an event causing rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:
 - (A) its Charter Documents;
 - (B) any Contract to which it is a party;
 - (C) any Consent, Governmental Approval or Order to which it is a party or by which it is bound; or
 - (D) any applicable Law.
 - (b) Constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other applicable Law for the protection of debtors or creditors.
- (iii) No Consent or Governmental Approval to, from or with any Person is required on its part in connection with the execution, delivery and performance of the Agreement, the compliance by it with any of the provisions hereof or thereof, or the consummation of the transactions contemplated hereby or thereby.

9. INDEMNITIES

9.1 Subject to the terms hereof, the Indemnifying Parties, shall indemnify, defend and hold harmless the relevant Indemnified Parties from and against any and all Losses, suffered or incurred by any of the Indemnified Parties which arise out of, or result from or are connected with:

- (i) any misrepresentation is, inaccuracy is or breach by the Warrantors of any of the Warranties (other than Tax Warranties);
- (ii) any misrepresentation is, inaccuracy is or breach by the Warrantors of any of the Tax Warranties;

- (iii) any obligation or liability of the Company arising as a result of any liability or claim(s) or any Litigation or dispute in respect of the Company and/or the conduct of Business by the Company prior to the Closing Date, irrespective of whether the liability in respect of the same arises before or after the Closing Date;
 - (iv) any obligation or liability of the Company arising as a result of any Tax accrued or imposed on the Company for, or attributable to, any taxable period (or portion thereof) ending on or prior to the Closing Date;
 - (v) any breach of undertaking, covenants (other than covenant in Clause 10), or obligations of the Company and/or Sectors contained in this Agreement;
 - (vi) breach by the Company and/or Warrantors of any of the covenants in Clause 10;
 - (vii) any fraud, willful misconduct and/or gross negligence committed by Warrantors in respect of the transactions contemplated in this Agreement;
 - (viii) any misrepresentation, inaccuracy or breach by the Warrantors of any of the Call Option Warranties;
 - (ix) any breach of undertaking, covenants of the Company and/or Sectors contained in the Call Option Agreement; or
 - (x) any fraud, willful misconduct and/or gross negligence committed by Warrantors in respect of the transactions contemplated in the Call Option Agreement.
- 9.2 100% (one hundred percent) of a Loss arising out of, resulting from or connected with circumstances under Clause 9.1 above shall be deemed to be a Loss to the Indemnified Persons. Provided however that, Loss, in respect of claims under Clause 9.1(vi) shall be deemed to be a Loss to the Investor and Investor's Affiliates solely and shall be equal to the amount compensated as per Clause 10 below.
- 9.3 Investor shall have the sole discretion to require the Indemnifying Persons to make indemnity payments due to Indemnified Persons to the account of the Investor and / or to the account of the Company.
- 9.4 Any indemnity payments made pursuant to this Clause 9 shall be made free and clear of and without deduction for or on account of any Taxes, charges, fees, costs, expenses or duties, except as may be required by applicable Law, and shall be grossed up for an amount equal to the aggregate of Taxes, charges, fees, costs, expenses or duties, that: (a) Indemnifying Person is liable to withhold on such payments, and (v) Investor is liable to pay towards the receipt of such payments, such that the Investor receives, after the incidence of such Taxes, charges, fees, costs, expenses or duties, an amount equal to the full amount which it would have received had payments not been made subject to such Taxes, charges, fees, costs, expenses or duties, subject to the Indemnifying Persons having received a certificate or letter from a tax advisor of the Indemnified Persons to the effect that the Indemnified Persons are not entitled to any tax credits with respect to such indemnity payments which will have the effect of the Indemnified Person receiving monetary benefit in excess of the indemnity payments paid by the Indemnifying Persons.
- 9.5 **Indemnification Procedures**
- (i) Any claim for indemnity pursuant to this Agreement shall be made by the Indemnified Persons by notice in writing to the Indemnifying Persons ("Indemnifying Notice"). The Indemnifying Persons shall, subject to Clause 9.7

makes the indemnity payment in cash and in immediately available funds (or such other manner acceptable to the Indemnified Persons) to the Indemnified Persons within 10 (ten) days after the date of receipt of a claim for indemnity from any of the Indemnified Persons.

(ii) Third Party claims

(a) Within 15 (fifteen) Business Days after the receipt of an Indemnifying Notice from the Indemnified Persons, where a claim from a Third Party ("Third Party Claim") is indicated, any Indemnifying Person may, if they so desire (in its sole and absolute discretion) and at the Indemnifying Person's cost, by written notice to the Indemnified Persons, assume the conduct of any dispute, compromise, defense, appeal or negotiations with respect to such Third Party Claim, on their own or in consultation with the Indemnified Persons (as the Indemnifying Person may deem fit). In such an event, the Indemnifying Person shall have the right to control the defense, appeal, negotiation or settlement of such Third Party Claim or proceeding and shall also be entitled to cause the Company to take, any action, as it may deem necessary, to control the defense, negotiation or settlement of such Third Party Claim or proceeding (including without limitation, making claims or counter claims against such Third Parties) to the extent it does not adversely affect the Indemnified Persons.

(b) Notwithstanding an Indemnifying Person's election to control the defense, negotiation or settlement of such claim or proceeding as provided for above, the Indemnified Persons may continue to control such defense, negotiation or settlement at the cost of the Indemnifying Persons if (1) the Indemnified Persons reasonably determine that a fair outcome or settlement cannot be reached by the Indemnifying Persons due to actual or potential conflicts of interest (including with respect to defenses available) or (2) the Third Party Claim entails a criminal action against or potential criminal liability for the Indemnified Persons, or entails action against or liability for the Indemnified Persons under any applicable Law relating to bribery, corruption, money-laundering or trade sanctions.

(c) In the event an Indemnifying Person assumes control in accordance with Clause 9.5(c)(b), then:

(A) the Indemnified Persons shall continue to have the right to appoint its counsel of its own cost for the purpose of evaluating the relevant Third Party Claim;

(B) the Indemnifying Person shall not settle the Third Party Claim without the prior written consent (which consent shall not be unreasonably withheld) of the Indemnified Persons unless (i) the Indemnifying Person pays the full amount of the liability or settlement in connection with such Third Party Claim, (ii) the relevant Indemnified Person (or the Company where the Third Party Claim relates to the Company) is released completely and unconditionally in connection with such Third Party Claim, and (iii) there is no cession or restriction upon the future activities or business of the Indemnified Person (or the Company where the Third Party Claim relates to the Company); and

- (C) the Indemnified Person(s) shall not admit liability or make any agreement or compromise, settlement or payment in relation to the Third Party Claim without prior written consent of the Indemnifying Person(s).
- (d) In the event the Indemnifying Person(s) do/ does not assume the conduct of any dispute, compromise, defence, appeal or negotiations with respect to a Third Party Claim in the manner as set out in Clause 9.5(1)(a) or the provisions of Clause 9.5(1)(b) apply, the Indemnified Person(s) shall have the right to defend themselves against such Third Party Claim without waiving any right of indemnity against the Indemnifying Person(s), and the reasonable costs of such defence shall be borne by the Indemnifying Person(s). If the Indemnified Person(s) have assumed the conduct of any dispute, defence, compromise or appeal of a Third Party Claim, the Indemnifying Person(s) shall reasonably cooperate with the Indemnified Person(s) in relation to the conduct of any dispute, defence, compromise or appeal of the Third Party Claim. The Indemnified Person(s) shall conduct such proceedings in good faith. The Indemnified Person(s) shall keep the Indemnifying Person(s) informed about the status of such proceedings from time to time.
- (e) Notwithstanding anything contained herein, in the event during the defence of a Third Party Claim any amounts are ordered to be paid by the Indemnified Person(s) to any Governmental Authority, in respect of a matter which gives rise to a Third Party Claim, the Indemnifying Person(s) shall make such payments to the Indemnified Person(s), as are ordered to be made to such Governmental Authority, at least 7 (seven) Business Days prior to the due date of such payment. In the event that the Indemnified Person(s) is refunded all or any part of such payments from a Third Party, the Indemnified Person(s) shall as soon as reasonably practicable and within 15 (fifteen) Business Days after the receipt of such amounts, return the same to the Indemnifying Person(s), subject to deductions for amounts representing any agreed or uncontested liability of the Indemnifying Person(s) under Clause 9.3(K)(i).
- (f) To the extent the payment to any Indemnified Person(s) of any amounts pursuant to the provisions of this Clause 9, is subject to receipt of Governmental Approvals, the Indemnifying Person(s) shall obtain all such Governmental Approvals and shall make all applications and take all steps required to obtain the same, and the Indemnifying Person(s) undertakes to take all such steps, and extend all such co-operation that the Indemnified Person(s) may reasonably require and obtain such Governmental Approvals.

9.6 Nature of Indemnification

- (1) Notwithstanding any actual or implied knowledge or notice of any facts or circumstances which the Indemnified Person(s) may have as a result of such investigation, the Indemnified Person(s) shall be entitled to rely upon such Indemnifying Person's representations, warranties, covenants and/or agreements set forth in this Agreement or in any certificate, schedule or exhibit delivered pursuant hereto.
- (2) The obligation of the Indemnifying Person(s) to indemnify the Indemnified Person(s) pursuant to this Clause 9 shall arise irrespective of any defence or right of appeal available to the Indemnified Person(s), and the Indemnifying Person(s) shall be

entitled to a refund of any excess amounts paid pursuant to this Clause 5, in the event the Indemnified Persons' Loss is ultimately less than amounts paid by the Indemnifying Persons. The failure of the Indemnified Persons to notify the Indemnifying Persons of a claim shall not relieve the Indemnifying Persons of any indemnification responsibility under this Clause 5.

- (ii) The Indemnifying Persons shall reasonably co-operate with and assist the Indemnified Person in connection with any matter falling within the scope of this Clause 5.

4.3 Limitation of Liability

- (i) The total monetary liability of the Indemnifying Persons under all indemnity claims arising under Clause 5.1 (other than under Clauses 5.1(vi) and 5.1(v)) shall not exceed INR 65,00,00,000 (Indian Rupees Sixty Five Crores); provided that (a) if the Applicable IER to be paid on the Shortfall Premium under Clause 13 results in the aggregate of such indemnity claims exceeding this limit, then the INR 65,00,00,000 (Indian Rupees Sixty Five Crores) limit shall be increased by such Applicable IER; and (b) if payments have been received by the Indemnified Persons under Clauses 5.1(v) or 13, then the limit of INR 65,00,00,000 (Indian Rupees Sixty Five Crores) hereunder will stand reduced by the Shortfall Premium actually received by the Indemnified Persons. If relevant Indemnified Persons recover any funds pursuant to any insurance policy or from any Third Party in relation to any claims under this Clause 5, the amounts payable under this Clause 5 by the Indemnifying Persons to the Indemnified Persons shall stand reduced to the extent such Indemnified Persons have recovered all such amounts.
- (ii) With respect to the indemnification obligations under Clauses 5.1(ii), 5.1(iii), 5.1(iv) and 5.1(v), unless the Indemnifying Notice has been issued within a period of 48 (forty eight) months after the Closing Date, the Indemnifying Persons shall not have any obligation to indemnify, provided that if an Indemnifying Notice has been served within the 48 (forty eight) month timeline as set out above, then the indemnity obligations under this Clause 5 shall continue till the time such claim has been finally adjudged in accordance with this Agreement and settled in full by the Indemnifying Persons.
- (iii) With respect to the indemnification obligations under Clauses 5.1(ii) and 5.1(v), unless the Indemnifying Notice has been issued within the applicable statutory limitation period, the Indemnifying Persons shall not have any obligation to indemnify, provided that if an Indemnifying Notice has been issued within the applicable statutory limitation period as set out above, then the indemnity obligations under this Clause 5 shall continue till the time such claim has been finally adjudged in accordance with this Agreement and settled in full by the Indemnifying Persons.
- (iv) With respect to the indemnification obligations under Clauses 5.1(vii) and 5.1(viii), unless the Indemnifying Notice has been issued within a period of 48 (forty eight) months after the Option Closing Date, the Indemnifying Persons shall not have any obligation to indemnify, provided that if an Indemnifying Notice has been served within the 48 (forty eight) month timeline as set out above, then the indemnity obligations under this Clause 5 shall continue till the time such claim has been finally adjudged in accordance with this Agreement and settled in full by the Indemnifying Persons.

- 9.8 The Parties agree that limitations of liabilities set out in Clause 9.3 shall not apply to indemnity claims arising under Clause 5.1(vii) and Clause 5.3(c), provided that upon listing of the Investor on a registered stock exchange in India, the time limit for issuing an indemnifying Notice for such claims shall be 7 (seven) years from the Closing Date and Option Closing Date respectively; and monetary liability in Clause 9.3(c) shall mutatis mutandis apply to such claims.
- 9.9 Warranties hereby absolutely and unconditionally waive any and all claims, whether known or latent, that Warranties may have against the Company (b) as of the Closing Date and (c) at any time in relation to any guarantee or indemnities issued for the benefit of the Company (including any indemnity obligations hereunder).

10. AREA SHORTFALL PAYMENT

- 10.1 In the event (a) the aggregate leased area specified under the KIADB Lease Deed, or (b) area of which possession is granted to the Company under the possession certificate from KIADB is less than 100 (one hundred) acres, Salira agrees to pay the Investor a one-time payment equal to the sum of (x) Shortfall Premium (as calculated in Clause 10.2 below) and (y) an additional amount that would entitle the Investor to achieve the Applicable IRR on the Shortfall Premium (collectively, the "Area Shortfall Payment"), computed and payable from the Closing Date, until the date of actual payment, which payment shall be completed within a period of 60 (sixty) days after a written notice by the Investor ("Area Shortfall Intimation").

- 10.2 Shortfall Premium shall mean an amount in INR, computed as $X * Y\%$

Where $X = \text{INR } 65,00,00,000$

$Y = [100 - (\text{area mentioned in the KIADB Lease Deed or possession certificate, whichever is lower, measured in acres}) / 100]$, expressed as a percentage.

- 10.3 The Parties agree that the Area Shortfall Payment shall be made free and clear of, and without deduction for or on account of any taxes, charges, fees, costs, expenses or duties, except as may be required by applicable Law.
- 10.4 The Investor shall have the sole discretion to require that the Area Shortfall Payment amount be payable to the Investor or the Company.
- 10.5 The Parties agree that the Area Shortfall Payment is a genuine pre-estimate of the expenses and losses (including loss of value of the Company) owing to the failure to procure the KIADB Lease Deed for 100 (one hundred) acres, as per the terms of this Agreement.

11. DISPUTE RESOLUTION

- 11.1 All disputes or differences regarding this Agreement shall be submitted to final and binding arbitration at the request of any of the disputing Parties upon written notice to that effect to the other Parties. In the event of such arbitration:
- (i) The arbitration shall be in accordance with the rules of the Singapore International Arbitration Centre ("SIAC"), in force at the relevant time (which is deemed to be incorporated into this Agreement by reference);
 - (ii) All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall be the seat of the arbitration.

- (iii) The arbitration shall be conducted before a tribunal ("Tribunal") which consists of 3 (three) arbitrators. The claimant(s) shall nominate one arbitrator in the notice of arbitration. The respondent(s) shall nominate one arbitrator in the response to the notice of arbitration. The two party-nominated arbitrators shall then have 20 (twenty) days to agree, in consultation with the parties to the arbitration, upon the nomination of a third arbitrator to act as presiding arbitrator of the tribunal, failing which the President of SIAC shall select the third arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing).
 - (iv) The award rendered by the Tribunal shall, in addition to dealing with the merits of the case, fix the costs of the arbitration (which includes the Tribunal's fees) and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by each party;
 - (v) Arbitration awards shall be reasoned awards and shall be final and binding on the Disputing Parties;
 - (vi) The existence or subsistence of a dispute between the Parties, or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under the Agreement which are not in dispute, and the arbitrators shall give due consideration to such performance, if any, in making a final award; and
 - (vii) The provisions of Part I of the Indian Arbitration and Conciliation Act, 1996 (save and except Section 5 thereof) shall not be applicable to, and shall be specifically excluded from, any and all arbitration proceedings conducted in accordance with this Clause 13.1.
- 11.2 Nothing shall preclude a Party from seeking interim equitable or injunctive relief, or both. The pursuit of equitable or injunctive relief shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 13.1.
- 12. CONFIDENTIALITY AND NON-DISCLOSURE**
- 12.1 Each Party shall keep all information and other materials passing between it and the other Parties in relation to the transactions contemplated by this Agreement and the other Transaction Documents also in relation to the Company, the Investor and/or Sutra as well as the existence and the terms and conditions of this Agreement and the other Transaction Documents ("Information") confidential and shall not, without the prior written consent of the other Party, divulge the Information to any other Person or use the Information other than for carrying out the purposes of this Agreement and the other Transaction Documents except:
- (i) to the extent that such Information is in the public domain other than by breach of the Agreement and the other Transaction Documents;
 - (ii) to the extent that such Information is required or requested to be disclosed by any Applicable Law, the rules of any stock exchange or any applicable regulatory requirements or by any regulatory body to whose jurisdiction the relevant Party is subject or with whose instructions it is customary to comply under action to the other Party(ies);
 - (iii) to the extent required to be disclosed to any Governmental Authorities for the purpose of enforcement of rights and obligations under this Agreement and the other Transaction Documents;

- (v) to Affiliates, employees, officers, directors, agents, insurers (including brokers and re-insurers) or professional advisers (including, without limitation, attorneys, accountants, consultants, appraisers, auditors and financial advisors) of any Party, subject to such Persons being subject to similar confidentiality obligations as set forth hereunder;
 - (vi) to the extent that any of such Information is later acquired by a Party from a source not obligated to any other Party hereto, or its Affiliates, to keep such Information confidential;
 - (vii) to the extent that any of such Information was previously known or already in the lawful possession of a Party, prior to disclosure by any other Party hereto;
 - (viii) to the extent that any information, similar to the Information, shall have been independently developed by a Party without reference to any Information furnished by any other Party hereto;
 - (ix) to any direct or indirect or shareholders/investors in the Parties or potential sources of capital (including, without limitation, prospective limited partners and any related advisors, Affiliates or agents), subject to such Persons being subject to customary confidentiality obligations; and
 - (x) to any potential transferee of Securities in the Company held by the Investor, subject to such Person being subject to similar confidentiality obligations as set forth hereunder.
- 12.2 No formal or informal public announcement or press release which makes reference to the Parties or the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued by any Party without the written consent of the other Parties.
- 12.3 If any of the Parties are obliged to make or issue any announcement or press release required by Law or by any stock exchange or Governmental Authority, it shall give the other Parties every reasonable opportunity to comment on any announcement or release before it is made or issued.
- 12.4 Each Party accepts and acknowledges that the undertakings set out in this Clause 12 are reasonable restrictions placed on the Parties and a breach thereof would cause loss and injury to the other Parties. Each Party agrees that, without prejudice to any other rights of the other Parties, each other Parties will be entitled to seek equitable remedy in the form of an injunction against the defaulting Party for any breach or attempted breach of this Clause 12.

13. NOTICES

- 13.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below;
- (i) If to the Investor:

Address:	Tower 1, 11th Floor, 1001 B, One World Centre, Sungupti Bapat Marg, Purbhuli, Delhi Road, Mumbai- 400015, Maharashtra, India
----------	--

Email: Compliance@shipuka.com

Attention: Legal Department

(i) If to Satva:

Address: Satva Windsor, Floor 4, No. 3 Ulloor Road,
Bangalore - 560042, India

Email: secretarial@satvagroup.in

Attention: Mr. Pradyuman Kumar Mishra

(ii) If to the Company:

Address: Satva Windsor, Floor 4, No. 3 Ulloor Road,
Bangalore - 560042, India

Email: secretarial@satvagroup.in

Attention: Mr. Pradyuman Kumar Mishra

(iii) If to the Company after Closing

Same notice details as the Investor

- 11.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 11.2, by giving the other Parties written notice of the new address in the manner set forth above.

14. TERM AND TERMINATION

14.1 Term

This Agreement shall come into effect on the date hereof and shall remain valid and binding on the Parties until such time that it is terminated prior to the Closing Date either (i) by the Parties through mutual written consent, or (ii) in accordance with Clause 14.2.

14.2 Termination

- (i) This Agreement may be terminated at the option of the Investor, by written notice to Satva, if:
- (a) any action has been taken, any Order has come into effect, or any Applicable Law having been enacted, promulgated or issued or deemed applicable to the transactions contemplated by the Agreement, which would restrain, enjoin or otherwise prohibit or make illegal the consummation of the transactions contemplated hereby or which could be expected to otherwise result in a diminution of the benefits of the transactions contemplated hereby or thereby;
 - (b) Closing has not occurred on or before the Long Stop Date, or the Conditions Precedent, have not been satisfied on or before Long Stop Date,

as the case may be;

- (c) The Company or any of Sathra is in breach of any of the Warranties or covenants or other agreements contained in this Agreement as of, or prior to, the Closing Date, as the case may be; or
- (d) Any Material Adverse Effect has occurred as of, or prior to, the Closing Date.
- (ii) This Agreement may be terminated at the option of Sathra, by written notice to the Investor, if the Conditions Precedent, have been satisfied and the Closing has not occurred on or before the Long Stop Date; provided that any of Sathra is not then in material breach of any of its obligations under any Transaction Documents to which they are a party as of such time.
- (iii) It is clarified that this Agreement cannot be terminated after the Closing Date, other than with mutual written consent of all Parties.

14.3 Effect of Termination

- (i) Other than as contemplated in this Clause 14.3, upon termination of the Agreement in terms of Clause 14.2 prior to the Closing Date, neither of the Parties hereto shall have any rights or claims against each other.
- (ii) Clauses 1 (Definitions and Interpretation), 3.1 (Representations and Warranties), 9 (Indemnities), 11 (Dispute Resolution), 12 (Confidentiality and Non-disclosure), 13 (Notices), 14.3 (Effect of Termination), and 15 (Miscellaneous) shall survive termination of this Agreement, and nothing herein shall release any Party from any liability in relation to any breach of this Agreement prior to termination of the Agreement.

15. MISCELLANEOUS

15.1 Counterparts

This Agreement shall be executed simultaneously in any number of counterparts, each of which shall be deemed an original, but all of which will constitute one and the same instrument. The delivery of signed counterparts by electronic mail in "portable document format" ("pdf") shall be as effective as signing and delivering the counterpart in person.

15.2 Specific Performance

This Agreement (and each of the other Transaction Documents to which they are Parties) shall be specifically enforceable at the instance of any Party. The Parties agree that a non-defaulting Party will suffer immediate, material, irreparable, continuing and inseparable damage and harm in the event of any material breach of this Agreement and the remedies at Law in respect of such breach will be inadequate and that such non-defaulting Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under this Agreement (and each of the other Transaction Documents to which they are Parties) in addition to any and all other legal or equitable remedies available to it.

15.3 Entire Agreement

This Agreement together with the Recitals and all the Schedules hereto, together with the Transaction Documents, and any agreements between the Parties, executed in writing, on

or about the date of this Agreement, constitute and contain the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersede all previous communications, negotiations, conversations, either oral or written between the Parties in respect of the subject matter hereof.

11.4 Governing Law and Jurisdiction

This Agreement shall be governed in all respects by the Laws of India (without reference to its conflict of Laws provisions), and subject to the provisions of Clause 10 (Dispute Resolution), courts at Bengaluru, India, shall have exclusive jurisdiction with respect to all matters set out herein.

11.5 Enforceability

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties shall negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

11.6 Amendments

This Agreement shall be modified, amended or supplemented only by the mutual written agreement of the Parties. No change, alteration, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

11.7 Rights Cumulative

- (B) Notwithstanding anything contained in any other terms of Clause 9, the rights, powers, privileges and remedies provided in this Agreement are without prejudice, independent of and in addition to, such other rights and remedies as the Parties may have at law or in equity or otherwise, including the right to seek damages, specific performance, rescission, restitution or other injunctive relief, none of which rights or remedies shall be affected or diminished thereby.
- (C) Neither failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.
- (D) No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

11.8 Successors and Assigns

No rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties; provided however, and notwithstanding the foregoing, the Investor shall be entitled to assign the whole or any part of this Agreement to one or more of its Affiliates, or to any Person who acquires any Stakeholding in the Company held by the Investor and/or its Affiliates, without the prior consent of the other Parties.

15.9 *Costs and Expenses*

- (i) Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the other Transaction Documents and the consummation of the transactions contemplated hereby and thereby, including without limitation all fees and expenses of legal and financial advisors, independent accountants and auditors.
- (ii) Stamp duty payable on the execution of the Agreement, and the transfer of the Sale Securities shall be borne by the investor.

15.10 *Relationship of the Parties*

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, does them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

15.11 *No Waiver*

- (i) Each of SDPL, SHPL and Darbha hereby irrevocably and unconditionally waive any and all rights, claims, and remedies against the Company and/or Investor that they may have under Applicable Law, equity or otherwise in relation to Clause 7.2.
- (ii) No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing. A waiver or any failure or delay by Satva or the Investor to require the enforcement of the obligations, agreements, undertakings or covenants in this Agreement shall not be construed as a waiver by Satva or the Investor of any of their rights, unless made in writing referring specifically to the relevant provisions of this Agreement and signed by a duly authorized representative of Satva or the Investor. Any such waiver shall not affect in any way the validity of this Agreement or the right to enforce such obligation, agreement, undertaking or covenant at any other time. All rights and remedies existing under this Agreement, except as otherwise provided herein are cumulative to, and not exclusive of any rights or remedies otherwise available.

15.12 *Further Assurances*

The Parties shall execute other documents, cause meetings to be held, resolutions passed, causes their votes and do and perform, and cause to be done and performed such further acts and things as may be reasonably necessary or in order to give full effect to this Agreement and the transactions contemplated under the Agreement, provided that no such document or agreement shall be inconsistent with the spirit and intent of this Agreement, and provided further that, this Clause 15.12 does not limit a Party's right to grant or withhold a consent, where such Party had full discretion to exercise such consent under the Transaction Documents.

15.13 *No Recourse*

- (i) Notwithstanding anything that may be expressed or implied in this Agreement and/or the other Transaction Documents, the Parties agree and acknowledge that

neither Satria nor their respective Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Blackstone Non-Resource Person in connection with this Agreement and/or the Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Blackstone Non-Resource Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the Company. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by Satria (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Blackstone Non-Resource Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation. Notwithstanding anything to the contrary herein or any actions or omissions or representations of Blackstone Inc. or any of its Affiliates, in whatever capacity, it is understood that neither Blackstone Inc. nor any of its Affiliates is acting as a financial adviser, agent or underwriter to or otherwise on behalf of the Company or any of its respective Affiliates, unless retained to provide such services pursuant to a separate written agreement.

- (E) Other than as expressly provided in the Transaction Documents, Parties agree and acknowledge that neither the Investor nor any of its Affiliates shall have any rights against, and no such Person shall make any claim (whether by the enforcement of any agreement, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Satria Non-Resource Person in connection with this Agreement and/or the other Transaction Documents (whether by the enforcement of any agreement or by any legal or equitable proceeding, or by virtue of any statute, regulation or other Applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Satria Non-Resource Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against Satria. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by the Investor (for themselves and on behalf of their Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Satria Non-Resource Person for any obligation of the Company under this Agreement and the Transaction Documents for any claim based on, in respect of, or by reason of such obligations or its creation, other than as expressly provided in the Transaction Documents.

[THE REMAINDER OF THIS PAGE HAS BEEN INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, the Parties have caused into this Agreement the Sign and Seal first above written.

For and on behalf of **WIRESON INDUSTRIAL PARKS LIMITED**



Name: Sharon Brown
Title: Administrative Manager

IN WITNESS WHEREOF, the Parties have entered into this Agreement (the *deal*) and your first subscription.

For and on behalf of **BLANDETT'S LANDS & PROPERTY LLP**



Name: **John Thomas** E-MAIL: **john@blanetts.co.uk**
Title: **ACTING CEO** SIGNATURE

Signature page to the share subscription and purchase agreement executed by and between Furgate Industrial Park Limited, Natus Real Estate Private Limited, Natus Development Private Limited, Blandett Lands Property LLP and Ficus Salubr Facilities Private Limited.

ITS MEMBERS MANAGED, the Parties have entered into this Agreement for (the and) use (the above) entities.

For and on behalf of KATP's DEVELOPERS PRIVATE LIMITED



Name: PANDURANGA KUMAR SUDHAN
Title: Managing Director

(Signature page is the store subscription and purchase agreement entered into and between Kattana Industrial Parks Limited, Kattana Real Estate Private Limited, Kattana Developers Private Limited, Gensler Limited Property LLP and Kattana Select Facilities Private Limited)

IN WITNESS WHEREOF, the Parties have entered into this Agreement for day and year first above written.

For and on behalf of KUTPA REAL ESTATE PRIVATE LIMITED:



Name: KUTPA REAL ESTATE PRIVATE LIMITED
Title: AUTHORIZED SIGNATORY

*Signature page is the above subscription and purchase agreement executed by and behalf of
Kutpa Industrial Park Limited, Kutpa Real Estate Private Limited, Kutpa Development
Private Limited, Karama Limited Property LLP and Kutpa Logistics Private
Limited.*

IN WITNESS WHEREOF, the Parties have caused this Agreement to be signed and the seal of the company to be hereunto set.

For and on behalf of VISIONS/STEC INC./STEC PRIVATE LIMITED



Name: PONG-TUNEE KONG N. QUER

Title: MANAGING DIRECTOR

*Signature page to the share subscription and purchase agreement executed by and between
Berlitz Industrial Parks Limited, Satwa Real Estate Private Limited, Satwa Development
Private Limited, Daminda Landel Property LLP and Vision Steels Facilities Private
Limited.*

SCHEDULE I

SHAREHOLDING PATTERN OF THE COMPANY

PART A : SHAREHOLDING PATTERN OF THE COMPANY AS ON THE EXECUTION DATE

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
SCPL	18,000	36%
SRPL	12,000	24%
Devika	20,000	40%
Total	50,000	100%

PART B : SHAREHOLDING PATTERN OF THE COMPANY AS ON THE CLOSING DATE

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
SCPL	18,000	36%
Devika	7,500	15%
Investor	24,500	49%
Total	50,000	100%

SCHEDULE II

CONDITIONS PRECEDENT COMPLETION LETTER

(Dated prior to the Closing Date)

To,

Hortson Industrial Parks Limited
Tower 1, 15th Floor, 1501 B, One World Centre,
Sungati Eapen Marg, Pashanandri, Dahanu Road,
Mumbai- 400113, Maharashtra, India

Attention: Director

Re: Share subscription and purchase agreement dated July 18, 2026 ("SSPA") executed by and amongst Sattva Developers Private Limited, Sattva Real Estate Private Limited, Darshita Landed Property LLP (collectively, "Sattva"), Hortson Industrial Parks Limited and Vision Softtech Facilities Private Limited.

We refer to the SSPA executed by the parties hereto. In this letter, all capitalized terms used but not defined shall have the meaning given to them under the SSPA.

Sattva hereby confirms the fulfillment of the Conditions Precedent (other than any conditions that are required to be fulfilled either on the Closing Date or immediately prior to the Closing Date set out in Clause 4 read with Schedule IV of the SSPA). Where applicable, the documents evidencing the fulfillment of the Conditions Precedent (or, with respect to conditions that are required to be fulfilled either on the Closing Date or immediately prior to the Closing Date, evidence of capability of fulfilling the same) are enclosed herewith.

Yours sincerely,

(Insert signature pages for Sattva)

SCHEDULE III

REPRESENTATIONS AND WARRANTIES OF THE WARRANTORS

1. Power and Authority

- 1.1 The Company is duly organized and validly existing under the laws of its jurisdiction of formation.
- 1.2 Each of the Warrantors is duly organized and validly existing under the laws of its jurisdiction of formation.
- 1.3 Each of the Warrantors and Company have the power and authority to execute, deliver and perform this Agreement and the Transaction Documents to which it is a party and to consummate the transactions contemplated hereby and thereby.
- 1.4 This Agreement and the Transaction Documents, when executed, will have been duly and validly executed by the Company and each of the Warrantors, and each constitutes or will constitute, as applicable, legal, valid and binding obligations of the Company and the Warrantors (as applicable), enforceable against them in accordance with their terms.

2. Conflicting Instruments, Consents and Governmental Approvals

- 2.1 The execution, delivery and performance by the Company and each of the Warrantors, of this Agreement and the other Transaction Documents to which it is a party and the transactions contemplated hereby or thereby do not and shall not:
 - (i) Violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any incumbrances or constitute a default, or event of default (or an event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or redemption or a loss of rights under any or all of the following:
 - (a) The Charter Documents of the Company or the Warrantors, as applicable;
 - (b) Any outstanding Contract that imposes material obligations or liabilities or grants material rights or entitlements to which either the Company or the Warrantor is a party;
 - (c) Any Governmental Approval or Order to which the Company or any of the Warrantors, is a party or by which they are bound;
 - (d) Any Consents, or Governmental Approvals, as the case may be, required to give effect to and complete the transactions contemplated in this Agreement; or
 - (e) Any Applicable Law affecting the Company and/or the Warrantors; or
 - (ii) Constitute an act of bankruptcy, insolvency, insolvency or fraudulent conveyance under any bankruptcy act or other Applicable Law.
- 2.2 No Consent or Governmental Approval is, from or with any Person is required on the part of the Company under the Warrantors in connection with the execution, delivery and performance of this Agreement, the compliance by any of them with any of the provisions herein or thereof, or the consummation of the transactions contemplated hereby or thereby.

1.3 The Company has not, nor has anyone on its behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Sale Securities can be forfeited, extinguished or rendered void or voidable. Neither the Company nor anyone acting on behalf of the Company have entered into or arrived at any agreement or arrangement with any Person, which will render the Transfer of any of the Sale Securities pursuant to this Agreement in violation of such agreements or arrangements.

1.4 To the knowledge of Satva as of the Closing Date, there is no arrangement that the Satva is a party to for disposal or creation of any Encumbrance on the Project Land.

2. Organization and Capital Structure

2.1 The Company is a private limited company incorporated under the provisions of the Act and is duly organized, validly existing and in good standing under Applicable Law.

2.2 The Company has the corporate power and authority to own, hold, operate and use its assets and carry on the Business as now conducted.

2.3 The authorized share capital of the Company is INR 10,00,000 (Indian Rupees Ten Lakh) divided into 1,00,000 (one lakh) Equity Shares.

2.4 The issued, subscribed and paid up share capital of the Company is INR 1,00,000 (Indian Rupees One Lakh) divided into 50,000 (fifty thousand) Equity Shares.

2.5 Part A of Schedule I hereto represents all of the issued, subscribed and paid-up Share Capital as of the Execution Date. Part B of Schedule I hereto represents all of the issued, subscribed and paid-up Share Capital as of Closing Date (immediately after Closing). Other than Balance Securities and Sale Securities there are no outstanding Securities and/or Share Equivalents of any nature whatsoever or any other rights (including options, warrants and calls) which entitle or may entitle any Person to subscribe for or receive any Securities and/or Share Equivalents at present or at a later date.

2.6 Except pursuant to this Agreement:

- (i) There are no pre-emptive rights, rights of first refusal or other similar rights relating to any Securities or Share Equivalents of the Company;
- (ii) There are no shareholder agreements, voting trusts or other arrangements or understandings with respect to the voting of any securities, Securities or Share Equivalents of the Company; and
- (iii) The Company has not issued, committed to issue, made any changes to, or registered any sale of Securities or Share Equivalents, now and except those Securities already issued and subscribed for before the Execution Date.

2.7 Each allotment and sale/transfer of Securities and Share Equivalents of the Company has been made in compliance with all Applicable Laws, and all corporate actions required to be performed by the Company under all Applicable Laws have been performed.

2.8 The Company does not have, any subsidiary and does not otherwise currently own any shares in the capital of or any interest in, or control of, directly or indirectly, any Person. The Company is not the holder or beneficial owner of any shares or other capital in any body corporate (whether incorporated or not) and does not otherwise control any Person, whether directly or indirectly, whether through the ownership of securities or through control over composition of board of directors or by contract or proxy, or whether alone or in concert with others.

4. Shareholding

- (b) The shareholding pattern of the Company as of the date of this Agreement is set forth in Part A of Schedule I; and upon the completion of allotment of Subscription Securities and Transfer of Sale Securities on Closing Date shall be as set out in Part B of Schedule I. All the existing Securities of the Company have been validly issued and transferred and the Subscription Securities will be validly issued.
- (c) Upon allotment of the Subscription Securities as contemplated in this Agreement, the Investor shall be the sole legal and beneficial owner of the Subscription Securities free from any Encumbrances and shall have good and marketable title to such Subscription Securities.

5. Ownership of Sale Securities

- 5.1 Each of SRIPL and Dushita are the sole legal and beneficial owners of their respective Sale Securities.
- 5.2 Each of SRIPL and Dushita have duly acquired their respective Sale Securities and all such Sale Securities are fully paid.
- 5.3 Each of SRIPL and Dushita have good and marketable title to their respective Sale Securities, free and clear of any and all Encumbrances, equities, and claims whatsoever, with full right and authority to sell and deliver the same to the Investor, under this Agreement, and upon delivery of the Sale Securities, shall convey to the Investor, good and marketable title to their respective Sale Securities free and clear of all Encumbrances.
- 5.4 All stamp and registration duties or similar Taxes, as may be applicable, chargeable in India in respect of the issuance and allotment to, and / or registration of Sale Securities by, the Seller, has been duly paid.
- 5.5 Each of SRIPL and Dushita have not, nor have anyone on their behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Sale Securities can be forfeited, extinguished or rendered void or voidable.

6. Compliance with Law

- 6.1 The Company has, from the date of its incorporation, been in compliance with applicable Law in all material respects. The Company has, from the date of its incorporation, been in compliance with applicable Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws.
- 6.2 The Company is not in default with respect to any Order served upon it, and there are no threatened or outstanding investigations, inquiries or disputes with any Governmental Authorities in respect of any actual or potential non-compliance with applicable Law.
- 6.3 No misrepresentations have been made in respect of filings made with Governmental Authorities by the Company, or Seller on behalf of the Company.
- 6.4 The Company and Seller have not received any written notice from any Governmental Authority in respect of any actual or potential non-compliance with any applicable Laws, including Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws, in respect of the Company or Business.

- 6.5 The Company and Satva (in relation to Company and Business) have not received any written notice from any Governmental Authority and there are no threatened or outstanding investigations or inquiries by, or disputes with a Governmental Authority or dispute or proceedings with any Person, or any internal investigation, in each case, relating to any actual or potential violation of any Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by (a) the Company, (b) the directors or key employees of the Company, or (c) any authorized agents of the Company engaged by the Company for the purposes of the Business.
- 6.6 The Company and Satva (in relation to Company and Business) have not taken any action that would constitute a violation of any applicable Anti-Corruption Laws.
- 6.7 Neither Satva (in relation to the Company or Business), nor the Company nor any of their respective directors, or to the knowledge of Satva, any officers, employees or agents (when acting on behalf of the Company), has made, promised to make, or caused to be made any money, property, contribution, gift, entertainment or other thing of value ("Improper Payment"), directly or indirectly: (x) to or for the use or benefit of any Government Official; (y) to any other Person either for an advance or reimbursement, if it knows or has reason to know that any part of such Improper Payment will be directly or indirectly given or paid by such other Person, or has reimbursed such other Person for payments previously made, to any Government Official; (x) to any other Person or entity to obtain or keep business or to secure some other improper business advantage; or (d) otherwise in violation of applicable Anti-Corruption Laws, in each case in relation to the Company or the Business.
- 6.8 Neither the Company nor Satva, including any of their directors, employees, an Governmental Authority or Government Official, as the case may be.
- 6.9 The Company and Satva have not made a voluntary, directed or involuntary disclosure to any Governmental Authority with respect to any alleged act or omission relating to any non-compliance with any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.
- 6.10 In respect of the Project Land:
- (i) Satva has not received any written notice from any Governmental Authority, and
 - (ii) there are no investigations or inquiries,
- relating to any actual or potential violation of any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by the Company, the directors or key employees of the Company, or any authorized agents of the Company.
- 6.11 In relation to the Project Land, Satva has not, and have not caused the Company to, make, promise to make, or cause to be made, any Improper Payments: (i) to or for the use or benefit of any Government Official; (ii) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would reimburse such other Person for Improper Payments previously made, to any Government Official; or (iii) to any other Person or entity to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate Anti-Corruption Laws.
- 6.12 Satva has not directly or indirectly used, employed, transferred, or transacted in any funds in connection with the Project Land that are derived from or reflect the proceeds of any illegal activity or conduct.
- 6.13 *Compliance with Sanctions Laws:*

- (i) Neither the Company nor any of Satva is a Sanctioned Person.
- (ii) Satva will not use any amounts payable under this Agreement or the relationship proposed herein, for the purpose of financing the activities of, any persons and countries that are, or were at the relevant time, a target of or subject to any Sanctions Laws, including (i) any Sanctioned Person; (ii) Sanctioned Jurisdictions; or (iii) otherwise in violation of any Sanctions Laws.
- (iii) Neither the Company nor any of the directors or employees of the Company, or any authorized agents of the Company engaged by the Company for the purpose of the Business, is a Sanctioned Person.
- (iv) The Company and its directors, employees and authorized agents have not made, and do not make, directly or indirectly, any sales to or engage in business activities or transactions with or for the benefit of, and for the purpose of financing the activities of, any persons and countries that are, or were at the relevant time, a target of or subject to any Sanctions Laws, including (i) any Sanctioned Person; (ii) any Sanctioned Jurisdictions; or (iii) otherwise in violation of any Sanctions Laws.

6.14 Compliance with Anti-Money Laundering Laws:

- (i) The operations of the Company have been conducted at all times in compliance with applicable Anti-Money Laundering Laws. The Company has not used, employed, transferred, or transacted in any funds in connection with the Business that are derived from or reflect the proceeds of any illegal activity or conduct.
- (ii) Each of SCPL, SKPL and Dushita has not, in relation to the Company and/or Business, taken any action that would constitute a violation of any applicable Anti-Money Laundering Laws.

6.15 The Purchase Consideration payable under this Agreement is for the sole benefit of each of Satva.

7. Brokers

7.1 Neither the Company nor Satva have entered into any agreement, arrangement or understanding with any Person which could result in the broker or the Company being obligated or liable to pay any broker's fee, brokerage commission, advisory fee (including fee to be paid to legal and tax advisors) or similar payment in connection with the transactions contemplated hereby or in the other Transaction Documents.

8. Business of the Company

- 8.1** The Company has been incorporated as a special purpose vehicle which would undertake the Business. Other than Business, the Company does not engage in any other business or activity, including any business in which foreign direct investment of 100% (one hundred percent) under the automatic route is not permitted.
- 8.2** The business of the Company has been carried out as per its memorandum of association, since its incorporation.
- 8.3** The Company does not have, and never had, any employees and does not hold any investments.
- 8.4** The Company has not entered into any contracts since incorporation, other than in respect of the transactions contemplated under this Agreement.

- 8.5 Details of all existing bank accounts of the Company together with details of signatories to such accounts are as set out below:

Details of Bank Account	Purpose	Signatories
A/c No : 14370210024-02	Current A/c	a) Mr Bijay Kumar Agarwal b) Mr Mahesh Kumar Khaitan c) Mr Pradyumn Kumar Mishra d) Mr Pradyep Kumar Dhanrajani

- 8.6 The KJADB SA is valid and subsisting and in full force and effect, and KJADB's consolidation of the KJADB SA has been quashed pursuant to the order of the High Court of Karnataka dated February 18, 2026 in W.P 25571/2022 ("KJADB Litigation Order"). No appeal or challenge has been made by KJADB to the KJADB Litigation Order and Satva is not aware of any such actions proposed to be undertaken by KJADB.

9. Books and Records

- 9.1 The Company: (i) keeps books and records which, in reasonable detail, accurately and fairly reflect the transactions and dispositions of the assets of the Company, and (ii) maintains a system of internal accounting controls in accordance with the Accounting Standards.
- 9.2 The Company does not maintain any off-the-books accounts or more than one set of books, records or accounts.

10. Financials and Liabilities

- 10.1 True, correct and complete copies of the audited financial statements as of March 31, 2023, and management financials for the period from April 1, 2025 until June 22, 2026 present fairly and accurately in all respects the financial position and results of operations of the Company, as of the respective dates and for the respective periods covered thereby ("Delivered Financial Statements").
- 10.2 The Delivered Financial Statements and the notes thereto present fairly and accurately in all respects the financial position and results of operations of the Company, as of the respective dates and for the respective periods covered thereby. The Delivered Financial Statements and the notes thereto have been or are prepared in accordance with Applicable Law and the Accounting Standards consistently applied and followed throughout the period indicated, and are true and correct in all respects. The balance sheets reflected in the Delivered Financial Statements present true and complete representations of the assets and liabilities of the Company as of the dates specified therein. The Company has established and maintains, adheres to and enforces a system of internal accounting controls that are effective in providing assurance regarding the reliability, completeness and accuracy of financial reporting and the preparation of its Delivered Financial Statements in accordance with Applicable Law and the Accounting Standards.
- 10.3 Other than Satva Loan 1, and potentially Satva Loan 2 as on Closing Date, which is being repaid as a Condition Subsequent, the Company does not have any outstanding indebtedness, borrowings or liabilities of any nature (whether accrued, absolute, contingent or otherwise).
- 10.4 The Company has not received any notice (which is currently outstanding and subsisting) to repay under any agreement relating to any financial indebtedness.
- 10.5 All accounts and notes receivable of the Company have arisen from bona fide transactions in the Ordinary Course of Business consistent with past practice and are payable on ordinary trade

items. None of the accounts or the notes receivable of the Company are subject to any defenses, set-offs or counter-claims.

- 10.6 All transactions with related party(ies) have been undertaken in accordance with applicable Law and have been disclosed in the audited and unaudited financial statements referenced in paragraph 10.1 above.

11. Company Tax Warranties

- 11.1 In relation to any and all Taxes pertaining to tax periods, or to transactions, before the Closing Date and for all tax periods a portion of which occur before the Closing Date:

- (a) the Company has complied with Applicable Laws relating to Taxes and has no Tax liability other than those disclosed in the Delivered Financial Statements; and
- (b) there are no proceedings relating to Taxes pending against the Company under any Applicable Laws.

- 11.2 The Company will not be required to include any item of income in, or exclude any item of deduction from, taxable income for any taxable period (or portion thereof) ending after the Closing Date as a result of any action taken prior to the Closing Date.

- 11.3 The Company is not treated for any Tax purpose as resident in a country other than India and the Company has not had a branch or permanent establishment in a country other than India.

- 11.4 The Company:

- (i) is not a party to, nor has any obligation, under any Tax-sharing, Tax indemnity or Tax allocation agreement or arrangement; and
- (ii) is not, nor has it ever been, a member of an affiliated, consolidated, combined or unitary group for any period or a party to any joint venture, partnership or other agreement that could be treated as a partnership for Tax purposes, or has any liability for the Taxes of another Person, whether as a transferee or successor, by contract or otherwise.

- 11.5 There are no outstanding agreements, waivers or arrangements extending the statute of limitations with respect to any Taxes of the Company.

- 11.6 The Company has not entered into any scheme or arrangement that was designed to wilfully avoid Taxes.

- 11.7 Any outstanding Tax receivables as reflected in the Delivered Financial Statements are enforceable.

- 11.8 Any outstanding GST related receivable as reflected in the Delivered Financial Statements are available as credit against the future payment of liabilities related to GST.

- 11.9 Since the Company's inception, no entity classification election has been filed with the United States Internal Revenue Service in respect of the Company (including pursuant to United States Treasury Regulations section 301.7701-2(c)).

- 11.10 To the best of the knowledge of the Existing Shareholders, the Company has not been Relevant for U.S. federal income tax purposes prior to the Closing Date. "Relevant" for these purposes means that the classification of the Company for U.S. federal income tax purposes is either as association taxable as a corporation or an entity that is tax-transparent (i.e., either a partnership

or an entity disregarded as separate from its owner) affects the liability of any Person for U.S. federal tax or information purposes.

11. Litigation

11.1 Other than the writ petition bearing reference no. W.P. No. 15571/2021 (GM-KIA/20) before the High Court of Karnataka, no Litigation has been (i) initiated against the Company since the incorporation of the Company or to its knowledge threatened against the Company or (ii) initiated by the Company (whether by way of counter claim or appeal or otherwise) against any Person, including in relation to the KLAED LandKLAEDB LA.

11.2 There are no proceedings under any applicable insolvency, reorganization, or similar applicable law concerning the Company and no events have occurred which, under applicable law, may result in any such proceedings. There are no legal proceedings involving the Company, and no investigations have been commenced by Governmental Authorities against the Company.

12. Sale Securities Tax Warranties

12.1 There are no pending or ongoing claims, suits, suits, proceedings, disputes, demands or investigations or actions or appeals or litigation against or with respect to the Warranties with respect to any Taxes or Tax return that can render the transfer of the Sale Securities on the Closing Date void under Section 49B of IT Act and Section 51 of Central Goods and Services Tax Act, 2017 and no notification, inquiries or investigations have been received by the Warranties that such a claim, suit, suit, proceeding or investigation is pending or threatened.

12.2 Each of SRIZPL and Dushika are residents of India for Tax purposes, and none is treated for any Tax purpose as resident in a country other than India.

12.3 All the rights attached to the Sale Securities are exercisable only by Satva.

13. Intellectual Property

13.1 The Company does not own any right, title and interest in any trademarks, trade names, service marks, service names, trade dress, domain names, logos and corporate names, the trade secrets, know-how and other confidential information relating to the Business, including proposals, financial and accounting data, business and marketing plans, customer and supplier lists, sales targets, sales statistics, market share statistics, marketing surveys and reports, marketing research and any advertising or other promotional material and related information and any databases (electronic or otherwise) containing any of the foregoing (collectively, "Intellectual Property").

13.2 The Company has not applied for or sought any registrations in respect of any of the Intellectual Property.

14. Tangible Movable Property

The Company does not own, had not acquired or disposed any tangible movable property or immovable assets.

15. Information and Disclosure

All information in relation to the Company, the Business and assets of the Company, which would be material to an understanding of the Business, assets, liabilities, condition (financial or otherwise) or operations of the Company as may be relevant in making a decision in relation to the sale of Sale Securities under this Agreement, have been made available and disclosed to

the Investor prior to the Exception Date and such information is true, correct and accurate in all respects, and no such information omits to state any material fact necessary to make such statements accurate.

SCHEDULE IV CONDITIONS PRECEDENT

1. On the Execution Date, the Company and each of SOPL, SREPL and Durkha shall provide to the Investor, certified true copies of the resolutions passed by their board of directors for the execution of and performance of the Transaction Documents. The Company shall also provide a resolution of its board of directors appointing the valuers.
2. Maanot Properties Private Limited shall have issued a no dues certificate to the Company pursuant to the redemption of the 1,10,000 (One Lakh Ten Thousand) optionally convertible debentures of the Company (which redemption has been completed prior to the Execution Date).
3. The Company shall have deposited the Taxes withheld pursuant to the redemption of the optionally convertible debentures issued to Maanot Properties Private Limited referred to in paragraph 1 above), with the relevant Governmental Authorities, and delivered to the Investor a challan evidencing such deposition of Tax as per the applicable Tax Laws.
4. The Company shall have passed the following resolutions of the Board and shall have provided certified true copies with respect thereto to the Investor:
 - (i) Approving the issuance of the Subscription Securities, subject to obtaining the approval of the shareholders of the Company in accordance with Applicable Law;
 - (ii) Subject to the approval of the shareholders in a duly convened meeting of the shareholders of the Company, approving the offer and issuance of Subscription Securities by way of a private placement offer letter in Form PAS-4 or such other form as the Act may prescribe ("Offer Letter") to the Investor in accordance with the Act;
 - (iii) Convening an extraordinary meeting of the shareholders of the Company at shorter notice for approving the offer and issuance of Subscription Securities by way of the Offer Letter to the Investor in accordance with Sections 42 and 42(1)(a)(ii) of the Act;
 - (iv) Taking on record the Fair Valuation Certificate; and
 - (v) Filing of necessary forms with the Registrar of Companies and to do all other actions as may be necessary to give effect to the issue and allotment of the Subscription Securities.
5. The resolution authorizing the issue of Subscription Securities to the Investor in accordance with the Act and the rules prescribed thereunder shall have been passed at a general meeting of the shareholders of the Company and not resolved according to the procedure as set out under the Act and the Investor shall have been provided with certified true copies of such resolution.
6. The Company shall have issued the Offer Letter offering the Subscription Securities to the Investor along with supporting documents in the form and manner as prescribed under the Companies (Prospectus and Allotment of Securities) Rules, 2014.
7. The Company shall have filed with the Registrar of Companies, Form MGT-14, approving the issue / offer of the Subscription Securities, following the meetings convened as detailed above.
8. The Parties shall have agreed on the form of the resolutions to be passed on the Closing Date as per Clause 5.1(b)(c).

9. The Investor, the Company and Satria shall have complied in all respects with all covenants and other agreements in this Agreement required to be performed and/or complied with on or prior to the Closing.
10. Each of the warranties given by all the Parties shall be true and correct in all respects as of the Escrow Date and as of the Closing Date, as though made on and as of each such date.
11. The Company shall have obtained the Fair Valuation Certificate with respect to the Subscription Securities and the Sale Securities, as applicable.
12. Each of SRIPL and Dambila shall provide to the Investor a certificate from a reputed chartered accountant, in a form and manner acceptable to the Investor, confirming that there are no pending or ongoing tax proceedings against or outstanding demands against the relevant Satria entity, which could render the transactions contemplated under this Agreement void pursuant to Section 499 of IT Act and/or under Section 81 of Central Goods and Services Tax Act, 2017.
13. Investor and Satria shall have entered into Escrow Agreement with the Escrow Agent.
14. KLADB shall have accepted and complied with KLADB Litigation Order and made demand for payment of monies towards acquisition of KLADB Land in the manner set out in the KLADB SA, at the KLADB Account.
15. The Company shall have provided all data required by the Investor for completion of legal due diligence to its satisfaction, and the Investor shall have concluded such diligence to its satisfaction.

SCHEDULE V
INDICATIVE LIST OF LAND REVIEW ASPECTS

Land Review shall include the following aspects:

1. Title diligence to review clear, marketable, and leasehold title to contiguous KIADB Land and leasehold rights being in line with standard KIADB leases;
2. Physical inspection and physical survey of the entire 100 (one hundred) acres, including from a government surveyor;
3. Assessment of KIADB Land not being impacted by any kharab / parasitosis, forest land, cart track, sewerage lines, drains, culverts, railway lines, railbats, pipelines, endangered plantations, HT / LT power lines;
4. Assessment of whether the KIADB Land will benefit from all permanent and legally enforceable easements, access rights and other contractual rights (if any) necessary or appropriate for the continued use, F&B, resultant efficiency, enjoyment and maintenance of such property, including a reasonable access road of at least 18 (eighteen) meter width connecting such land to the external public network, suitable for withstanding commercial and industrial use;
5. Assessment of outstanding or contingent land dues or land related payments;
6. Technical assessment of attainable ground coverage, development potential, costing of the specific issues, viability of the allotment, environmental impact and other relevant parameters;
7. Physical and topographical survey of the land;
8. Review of encumbrances or restrictions on the KIADB Land;
9. Review of litigation (whether pending or threatened) and/or regulatory proceedings, and
10. Peaceful possession and title with KIADB which is capable of being passed on by KIADB to the Company.